

The Mendes Denial establishes that Plaintiff was treated differently because of her associations and her intended use of the records---grounds bearing no rational relationship to any legitimate government interest in public records administration.

\item ORS 181A.250 prohibits law enforcement agencies from maintaining and disseminating intelligence files based on individuals' exercise of constitutional rights. Washington County's use of such intelligence in administrative fee decisions confirms that Plaintiff's differential treatment was motivated by her identity and advocacy, not by any content-neutral criterion.

\item As a direct and proximate result of Washington County's differential treatment, Plaintiff has been denied equal access to public records and has suffered harm in an amount to be proved at trial.

\end{enumerate}

% — COUNT VI —————

\subsection\*{COUNT VI}

\subsubsection\*{Monell --- Municipal Liability\}

42 U.S.C.\ \sect\ 1983\

(Against Defendant Washington County)}

\begin{enumerate}

\item Plaintiff realleges and incorporates paragraphs 1 through 55.

\item Defendant Washington County is liable for the constitutional

violations described in this Complaint under *Monell*

*v. Dep't of Soc. Servs.*, 436 U.S. 658 (1978), on three independent grounds.

**Leg 1 --- Relay-Chain Probable Cause Custom:**

Washington County maintained a custom or practice under which law enforcement officers effected felony arrests based on relay-chain probable cause reports, without requiring the arresting officer to independently verify the underlying factual basis. Plaintiff's September 18, 2024 arrest---made on an affidavit contradicted by three contemporaneous reports, before the investigation concluded---was carried out pursuant to this custom. This custom was the moving force behind the violation of Plaintiff's Fourth Amendment rights.

**Leg 2 --- Association-Based Records Suppression**

**Custom:** Washington County maintained a custom or practice of using law enforcement intelligence data gathered concerning individuals' associational activities and advocacy to direct administrative decisions, including public records fee determinations. The Mendes Denial (September 19, 2025) is direct documentary evidence of this custom---it states on its face that the fee denial was based on County evidence of Plaintiff's associations and intended use. This custom, operating through ORS 181A.250-prohibited intelligence sharing, was

the moving force behind violations of Plaintiff's First and Fourteenth Amendment rights.

\\item \\textbf{Leg 3 --- Failure to Train:} Washington County failed to train Community Corrections officers on the constitutional distinction between administrative orders of arrest under ORS 144.350 and judicial arrest warrants satisfying \\textit{Payton v.\\ New York}, resulting in the unlawful May 10, 2025 home entry and arrest.

\\textit{City of Canton v.\\ Harris}, 489 U.S.\\ 378, 388 (1989).

\\item As a direct and proximate result of Washington County's customs, practices, and failures to train, Plaintiff suffered the constitutional violations described in each Count above, in amounts to be proved at trial.  
\\end{enumerate}

% — COUNT VII —————

\\subsection\*{COUNT VII}

\\subsubsection\*{Fourteenth Amendment --- Procedural Due Process\\

Ex Parte Initiation of Punitive Proceedings Without Notice\\

42 U.S.C. \\S1983\\

(Against Defendants Thompson and Clark, Individually)}  
\\begin{enumerate}

\\item Plaintiff realleges and incorporates paragraphs 1 through 55 and paragraphs 42 through 50 as if fully set forth herein.

\\item The Fourteenth Amendment prohibits the government from depriving

any person of liberty without due process of law. The minimum requirements of procedural due process are notice and an opportunity to be heard at a meaningful time and in a meaningful manner.

\textit{Mathews v. Eldridge}, 424 U.S. 319, 333 (1976). Due process requires notice reasonably calculated, under all the circumstances, to apprise interested parties of the pendency of proceedings affecting their rights and to afford them an opportunity to present their objections. \textit{Mullane v. Central Hanover

Bank & Trust Co.}, 339 U.S. 306, 314 (1950).

\item On May 10, 2025, Defendant Clark---acting in her capacity as a Washington County Community Corrections supervisor, outside any pending adversarial proceeding, and without any motion before the court---sent an ex parte email to Defendant Judge James C. Thompson.

The content of that communication caused Thompson to act against

Plaintiff's liberty interests without any notice to Plaintiff and without any opportunity for Plaintiff to be heard.

\item Upon receiving Clark's ex parte communication, Defendant Thompson---without any motion pending before the court, without notice to Plaintiff, and without affording Plaintiff any opportunity to respond---directed the Washington County release office to seek a violation report against Plaintiff. This directive set in motion the contempt proceeding that ultimately resulted in case 25CN05790, filed December 30, 2025, which directly threatens Plaintiff's liberty.

Clark's initiation of the ex parte communication, and Thompson's direction to the release office based on that communication, are administrative acts, not judicial or advocacy acts.

Under the functional test for judicial immunity, an act is judicial only if it is (1) a function normally performed by a judge, and (2) the parties dealt with the judge in his judicial capacity.

*Stump v. Sparkman*, 435 U.S. 349, 362 (1978);

*Bliven v. Hunt*, 579 F.3d 204, 212 (2d Cir. 2009).

Directing an administrative agency to initiate enforcement proceedings against a litigant---based on an ex parte communication, outside any adversarial proceeding, with no motion pending---is not a function normally performed by a judge in his judicial capacity.

*Forrester v. White*, 484 U.S. 219, 228 (1988). Absolute judicial immunity does not attach to Thompson's conduct.

Defendant Clark is a Community Corrections supervisor with no prosecutorial role. She is therefore entitled to qualified immunity only. Clark's qualified immunity is defeated because the right to notice and an opportunity to be heard before a criminal proceeding is modified was clearly established at the time of her conduct.

*Mullane v. Central Hanover Bank & Trust Co.*,

339 U.S. 306 (1950); *Mathews v. Eldridge*,

424 U.S. 319 (1976). No reasonable official in Clark's position

could have believed that transmitting an ex parte communication to a sitting judge---without notice to the affected party---was constitutionally permissible.

\item The ex parte contempt chain was compounded by Washington County's court notification system, which directed all notices to Plaintiff to a residential address she had not occupied for approximately ten years and to an administrative placeholder entity she never retained---while Plaintiff's actual, current address appeared in the court's own release documents. Plaintiff received no notice of the June 2025 show cause hearing in case 25CN02140. Proceedings affecting Plaintiff's liberty advanced entirely without notice reasonably calculated to reach her.

\textit{Mullane}, 339 U.S.\ at 314.

\item The contempt proceeding initiated through this ex parte chain lacked a legally valid statutory predicate. Plaintiff was subject to a security release pursuant to ORS 135.265. ORS 135.290 bars a contempt proceeding predicated on conduct during a security release. The proceeding was void on its face---a fact that Thompson, as the presiding judge, and Clark, as the initiating supervisor, either knew or were deliberately indifferent to.

\item On June 10, 2025, Washington County employee Stiefer authored an email documenting the Clark-to-Thompson ex parte communication

chain. The state withheld this email chain from Plaintiff in violation of \textit{Brady v. Maryland}, 373 U.S. 83, 87 (1963).

The withholding of this documentation---which is direct evidence of the due process violation alleged in this Count---further deprived Plaintiff of her ability to challenge the proceedings affecting her liberty.

\item As a direct and proximate result of Defendants Thompson's and Clark's conduct, Plaintiff was subjected to a void contempt proceeding, suffered deprivation of liberty, emotional distress, reputational harm, and ongoing legal harm, in an amount to be proved at trial.

\end{enumerate}

% — COUNT VIII —————

\subsection\*{COUNT VIII}

\subsubsection\*{Fourteenth Amendment --- Substantive and Procedural Due Process\\

Knowing Use of False Grand Jury Testimony and Suppression of Exculpatory Evidence\\

42 U.S.C. \sect 1983\\

(Against Defendant Gerten, Individually)}

\begin{enumerate}

\item Plaintiff realleges and incorporates paragraphs 1 through 55

and paragraphs 26 through 31 as if fully set forth herein.

\item The Fourteenth Amendment's Due Process Clause prohibits the government from obtaining or maintaining a criminal prosecution through the knowing use of false or misleading evidence.

\textit{Napue v. Illinois}, 360 U.S. 264, 269 (1959) ("[T]he same result obtains when the State, although not soliciting false evidence, allows it to go uncorrected when it appears."). The government's knowing use of false testimony---or its failure to correct testimony it knows to be false---violates due process regardless of whether the testimony was technically elicited by the prosecutor. \textit{Id.}

\item The Fourteenth Amendment's Due Process Clause additionally requires the prosecution to disclose material exculpatory evidence to the defense. \textit{Brady v. Maryland}, 373 U.S. 83, 87 (1963).

Evidence is material if there is a reasonable probability that, had the evidence been disclosed, the result of the proceeding would have been different. \textit{United States v. Bagley}, 473 U.S. 667, 682 (1985).

\item On January 14, 2025, a Washington County grand jury returned a true bill in case 24CR49043. Defendant Gerten was the presenting prosecutor responsible for presenting the matter to the grand jury.

\item Witness Baker provided testimony before the grand jury. Baker's testimony materially contradicted Deputy David Rambin's sworn probable

cause affidavit---the affidavit that formed the basis for Plaintiff's September 18, 2024 arrest and continued prosecution. The contradiction was not peripheral; it went to the core factual predicate of the charge: the identification of Plaintiff as the person responsible for the conduct alleged.

\item Defendant Gerten knew of the contradiction between Baker's testimony and Rambin's affidavit at the time of the grand jury presentation. Specifically: (a) Gerten was present during Baker's testimony before the grand jury; (b) Gerten had access to Rambin's probable cause affidavit as the presenting prosecutor---it was the foundational document of the prosecution she was presenting; and (c) the contradiction between Baker's account and Rambin's affidavit was apparent on the face of the two documents. No reasonable prosecutor reviewing both documents could have failed to recognize the conflict.

\item Despite this knowledge, Gerten failed to correct the false or misleading impression created by Baker's testimony before the grand jury returned its true bill. This failure allowed the indictment to issue on a false factual foundation, in violation of

\textit{Napue v. Illinois}, 360 U.S. 264, 269 (1959). The indictment---and with it, Plaintiff's continued prosecution and deprivation of liberty---rests on a grand jury record that Gerten

knew was materially false and misleading.

\item Gerten's failure to correct Baker's contradictory testimony is an investigatory act, not an advocacy act. The duty to ensure the accuracy of evidence presented to a grand jury---and to correct known false impressions---arises before the initiation of formal adversarial proceedings and is part of the investigatory function.

\textit{Buckley v. Fitzsimmons}, 509 U.S. 259, 273 (1993).

Absolute prosecutorial immunity does not attach to this conduct.

\item Separately, the June 10, 2025 Stiefer email documenting the Clark-to-Thompson ex parte communication chain constitutes material exculpatory evidence under \textit{Brady v. Maryland}, 373 U.S. 83, 87 (1963): it is direct evidence of the unconstitutional ex parte initiation of the contempt proceeding against Plaintiff, and its disclosure would create a reasonable probability of a different outcome in the contempt proceedings and in the underlying criminal case. The state withheld this email chain from Plaintiff. Gerten, as the supervising prosecutor responsible for the prosecution of Plaintiff, was responsible for the disclosure obligations owed to Plaintiff under \textit{Brady}. The withholding of the Stiefer email constitutes a \textit{Brady} violation.

\item The right to be free from prosecution maintained through knowingly false grand jury testimony was clearly established as of

January 14, 2025. \textit{Napue v. Illinois}, 360 U.S. 264

(1959); \textit{Giglio v. United States}, 405 U.S. 150 (1972).

The right to disclosure of material exculpatory evidence was clearly

established as of June 10, 2025. \textit{Brady v. Maryland},

373 U.S. 83 (1963); \textit{United States v. Bagley},

473 U.S. 667 (1985). No reasonable prosecutor could have believed

that knowingly allowing materially false testimony to stand

uncorrected before a grand jury, or withholding direct evidence of an

unconstitutional ex parte proceeding, was consistent with the

Fourteenth Amendment. Gerten is not entitled to qualified immunity.

\item As a direct and proximate result of Gerten's conduct, Plaintiff

has been subjected to prosecution under an indictment issued on a

false factual foundation, has been denied material exculpatory

evidence, has suffered continuous deprivation of liberty from

September 18, 2024 through the present, and has suffered emotional

distress, reputational harm, and financial loss, in an amount to be

proved at trial.

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% PRAYER FOR RELIEF

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\section\*{PRAYER FOR RELIEF}

WHEREFORE, Plaintiff Ashle' Penn respectfully requests that this Court enter judgment in her favor and against Defendants as follows:

**A. COMPENSATORY DAMAGES** against all Defendants, in amounts to be determined at trial, for: deprivation of liberty from September 18, 2024, to the present; emotional distress, anxiety, and psychological harm; reputational harm; financial losses incurred in defending against unlawful prosecution; and denial of access to public records and harm resulting therefrom.

**B. PUNITIVE DAMAGES** against individual Defendants Ramin, Does 1--4, Bineham, Gerten, Thompson, and Clark in amounts sufficient to deter future constitutional violations, based on Defendants' reckless or callous indifference to Plaintiff's clearly established constitutional rights. *Smith v. Wade*, 461 U.S. 30, 56 (1983).

**C. DECLARATORY RELIEF** pursuant to 28 U.S.C. §§ 2201--2202:

**1.**

\item A declaration that the January 14, 2025 indictment in Case No.\ 24CR49043 is void \textit{ab initio}, the grand jury having operated during a period---January 3 through January 31, 2025---when no valid Presiding Judge Order authorized its existence;

\item A declaration that the Washington County Circuit Court has not acquired subject matter jurisdiction over Case No.\ 24CR49043 on the basis of the void January 14, 2025 indictment;

\item A declaration that Plaintiff's September 18, 2024 arrest violated the Fourth Amendment;

\item A declaration that the May 10, 2025 warrantless home entry and arrest violated the Fourth Amendment;

\item A declaration that Washington County's use of law enforcement intelligence data in public records fee determinations violated ORS 181A.250 and the First and Fourteenth Amendments.

\end{enumerate}

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\noindent \textbf{D.\quad INJUNCTIVE RELIEF:}

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\item An injunction barring Defendants from proceeding with prosecution of Plaintiff in Washington County Case No.\ 24CR49043 under the January 14, 2025 void indictment, pursuant to

\textit{Ex parte Young}, 209 U.S.\ 123 (1908), as to official-  
capacity claims;

\item An injunction barring Washington County from using law  
enforcement intelligence data derived from Plaintiff's associational  
activities or exercise of constitutional rights in any  
administrative records or fee determination.

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\noindent \textbf{E.\quad ATTORNEY FEES AND COSTS} pursuant to  
42 U.S.C.\ \sect\ 1988 and any other applicable statute.

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\noindent \textbf{F.\quad SUCH OTHER AND FURTHER RELIEF} as this  
Court deems just and proper.

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% JURY DEMAND

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\section\*{DEMAND FOR JURY TRIAL}

Plaintiff Ashle' Penn demands a jury trial on all issues so triable  
pursuant to Rule 38 of the Federal Rules of Civil Procedure.

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\noindent Respectfully submitted,

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\noindent Dated: \underline{\hspace{2in}}

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\textbf{ASHLE' PENN}\

Pro Se Plaintiff\

\underline{\hspace{2.5in}} \textit{[Address]}\

\underline{\hspace{2.5in}} \textit{[Phone]}\

\href{mailto:edify@pennandpenn.com}{edify@pennandpenn.com}

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% — Court caption —————

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\textbf{IN THE UNITED STATES DISTRICT COURT}\

\textbf{FOR THE DISTRICT OF OREGON}\

\textbf{PORTLAND DIVISION}

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ASHLE' PENN, & Case No.: \underline{\hspace{1.5in}}\][4pt]

\hspace{0.3in}\textit{Plaintiff}, & \][4pt]

v. & \textbf{COMPLAINT FOR}\[4pt]

WASHINGTON COUNTY, OREGON; & \textbf{VIOLATION OF CIVIL RIGHTS}\[4pt]

DEPUTY DAVID RAMBIN; & \textbf{(42 U.S.C.\ sect\ 1983)}\[4pt]

ALICIA GERTEN; & \[4pt]

JUDGE JAMES C.\ THOMPSON; & \textbf{JURY TRIAL DEMANDED}\[4pt]

MOLLY BINEHAM; & \[4pt]

SHEILA CLARK; & \[4pt]

DOES 1--10, & \[4pt]

\hspace{0.3in}\textit{Defendants}. & \\\end{tabular}

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% PRELIMINARY STATEMENT

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\section\*{PRELIMINARY STATEMENT}

\begin{paras}

\item This action arises from a coordinated pattern of constitutional

violations by Washington County officials against Plaintiff, AshLe'

Penn. Those violations began on September 18, 2024, when Washington

County deputies racially profiled Plaintiff and arrested her without a

warrant and without probable cause. They continue through the present

day, as Plaintiff remains subject to ongoing prosecution under a charging instrument issued by a defectively constituted grand jury operating without lawful authority.

Plaintiff brings this action pursuant to 42 U.S.C. § 1983 for violations of her rights under the First, Fourth, and Fourteenth Amendments to the United States Constitution, seeking compensatory damages, punitive damages against individual Defendants, declaratory relief, and injunctive relief.

Younger abstention does not bar this action. This Court's intervention is warranted notwithstanding the pending state criminal proceeding in Washington County Case No. 24CR49043. *Younger* is inapplicable on two independent grounds. *See* *Younger v. Harris*, 401 U.S. 37, 43--54 (1971) (establishing abstention doctrine and enumerating exceptions for void proceedings, bad faith, and inadequate state remedy).

*begin{subparas}*

*item* *Younger* presupposes a state court proceeding conducted pursuant to lawful authority and subject matter jurisdiction. The indictment in Case No. 24CR49043 was returned by a grand jury on January 14, 2025, during a period when no valid Presiding Judge Order authorized the grand jury's existence---PJO 325 expired January 3, 2025; PJO 350 did not take effect until January 31, 2025. Court

administration confirmed this gap in writing. Under  
*State v. Lawrence*, 12 Or. 297 (1885), a grand jury  
operating without lawful authority cannot issue a valid true bill.  
The indictment is void *ab initio*. The Washington County  
Circuit Court has not acquired subject matter jurisdiction over this  
matter, and there is no legitimate state proceeding to which this  
Court should defer. *See Kugler v. Helfant*,  
421 U.S. 117, 124--25 (1975) (abstention inappropriate where state  
court lacks jurisdiction over subject matter of proceeding).

Item In the alternative, the prosecution falls within  
*Younger*'s bad faith and harassment exception. The arrest  
was made on a probable cause affidavit contradicted by three  
contemporaneous reports. Prosecution continued after the arresting  
officer admitted misidentification in writing. The prosecutor knew a  
grand jury witness's testimony contradicted the sworn affidavit and  
failed to correct it. The state circuit court has refused to rule on  
Plaintiff's pending demurrer challenging its subject matter  
jurisdiction, treating the motion as nonexistent in violation of  
ORS 1.050. These facts establish prosecution maintained without hope  
of a valid conviction. *See Dombrowski v. Pfister*,  
380 U.S. 479, 490 (1965) (bad faith exception applies where  
prosecution is maintained as part of a plan to harass or to deter

exercise of constitutional rights, without hope of valid conviction).

\end{subparas}

\item As to Plaintiff's claims seeking damages, \textit{Younger}

abstention does not apply in any event. \textit{Deakins

v.\ Monaghan}, 484 U.S.\ 193, 201--04 (1988) (federal court must stay,

not dismiss, damages claims not cognizable in state forum).

\item Plaintiff's juvenile dependency proceeding (25JU04261) involves

distinct constitutional claims against different state actors and is

reserved for a separate federal action.

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% PARTIES

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\section\*{PARTIES}

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\item Plaintiff \textbf{ASHLE' PENN} is a resident of Washington

County, Oregon. She is self-represented in this action. At all times

relevant to this Complaint, Plaintiff was a private citizen with no

criminal conviction.

\item Defendant \textbf{WASHINGTON COUNTY, OREGON} is a municipal

corporation organized under Oregon law, operating the Washington County

Sheriff's Office (WCSO), Washington County Community Corrections

(WCCC), and the Washington County District Attorney's Office.

Washington County is a "person" within the meaning of

42 U.S.C. § 1983. *Monell v. Dep't of Soc. Servs.*,

436 U.S. 658, 690 (1978).

Defendant **DEPUTY DAVID RAMBIN** ("Rambin") is or was at

all relevant times a deputy with the Washington County Sheriff's

Office. Rambin is sued in his individual capacity for acts taken under

color of state law.

Defendants **DOES 1--4** are Washington County Community

Corrections officers who entered Plaintiff's home on May 10, 2025,

identities currently unknown to Plaintiff. Plaintiff will amend this

Complaint to substitute their true names when ascertained through

discovery. Does 1--4 are sued in their individual capacities.

Defendant **MOLLY BINEHAM** ("Bineham") is or was at all

relevant times an officer or supervisor with Washington County

Community Corrections who directed the May 10, 2025 entry into

Plaintiff's home. Bineham is sued in her individual capacity.

Defendant **ALICIA GERTEN** ("Gerten") is or was at all

relevant times a Deputy District Attorney for Washington County.

Gerten is sued in her individual capacity for investigatory acts only.

The specific conduct alleged---(a) directing Deputy Rambin to conduct a

post-arrest investigation to determine whether Plaintiff violated her

release agreement, documented in Rambin's own written report, and

(b) failing to correct grand jury testimony Gerten knew contradicted the sworn probable cause affidavit---constitutes investigatory function, not advocacy, to which only qualified immunity attaches. \textit{Buckley v. Fitzsimmons}, 509 U.S. 259, 273 (1993).

\item Defendant \textbf{JUDGE JAMES C. THOMPSON} ("Thompson") is or was at all relevant times a judge of the Washington County Circuit Court. Thompson is sued in his individual capacity for administrative acts only. The specific conduct alleged---directing the Washington County release office to seek a violation report against Plaintiff based on an ex parte email communication, without any pending motion before the court and without notice to Plaintiff---is an administrative act, not a judicial act, to which absolute judicial immunity does not attach. \textit{Forrester v. White}, 484 U.S. 219, 228 (1988).

\item Defendant \textbf{SHEILA CLARK} ("Clark") is or was at all relevant times a supervisor employed by Washington County Community Corrections, acting under color of state law at all relevant times. Clark is sued in her individual capacity. As a Community Corrections supervisor, Clark exercises no prosecutorial function and is entitled to qualified immunity only.

\item Defendants \textbf{DOES 5--10} are persons whose identities are currently unknown to Plaintiff who participated in the constitutional

violations described herein. Plaintiff will amend to substitute their

true names when ascertained.

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% JURISDICTION AND VENUE

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\section\*{JURISDICTION AND VENUE}

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\item This Court has subject matter jurisdiction under

28 U.S.C.\sect\ 1331 (federal question) and 28 U.S.C.\

\sect\ 1343(a)(3) (civil rights). The claims arise under

42 U.S.C.\sect\ 1983 and the First, Fourth, and Fourteenth

Amendments to the United States Constitution.

\item Venue is proper in the Portland Division under

28 U.S.C.\sect\ 1391(b) because all events giving rise to

Plaintiff's claims occurred in Washington County, Oregon, within this

district and division.

\item The applicable statute of limitations is Oregon's two-year

personal injury statute, ORS 12.110(1), as applied to \sect\ 1983

claims. \textit{Wilson v. Garcia}, 471 U.S.\ 261 (1985). The

earliest accruing claim---false arrest under Count I---accrued no

earlier than September 18, 2024. \textit{Wallace v. Kato},

549 U.S. 384, 388 (2007). Each remaining claim accrued later: the unlawful home entry claim (Count II) accrued May 10, 2025; the continued-seizure claim (Count III) alleges an ongoing violation continuing to the present; the First Amendment retaliation and Equal Protection claims (Counts IV--V) accrued no earlier than September 19, 2025 (the Mendes Denial). Every claim in this Complaint is timely filed within two years of accrual.

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% STATEMENT OF FACTS

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\section\*{STATEMENT OF FACTS}

\subsection\*{Background}

\begin{paras}

\item Plaintiff Ashle' Penn is a Washington County resident and community advocate. At all times relevant to this Complaint, Penn had no criminal conviction. She is the subject of criminal cases 24CR27775 and 24CR49043, contempt proceeding 25CN05790, and juvenile dependency proceeding 25JU04261---all arising from the conduct of Defendants described herein.

\item At all relevant times, each Defendant acted under color of state law within the meaning of 42 U.S.C. \sect\ 1983.

\end{paras}

\subsection\*{The Misidentification Arrest --- September 18, 2024}

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\item On September 18, 2024, at approximately 9:42 p.m., Washington County Sheriff's Office Deputy Ramin arrested Plaintiff Ashle' Penn.

The arrest was made before the underlying investigation by Officer Orozco had concluded.

\item Ramin's probable cause affidavit attributed the conduct at issue---specifically, tag removal---to Plaintiff Penn. This attribution was contradicted by at least three contemporaneous incident reports documenting the same event.

\item No valid judicial arrest warrant had been issued for Plaintiff at the time of the arrest. The arrest was warrantless.

\item On December 27, 2024, Ramin filed a supplemental report acknowledging that the original attribution may have been a misidentification.

\item In the same December 27, 2024 supplemental report, Ramin directed further evidence gathering concerning Plaintiff---after the arrest had already occurred and after the grand jury presentation was already scheduled.

\item Ramin's December 27, 2024 misidentification acknowledgment predates the January 14, 2025 grand jury presentation. The acknowledgment was not disclosed to the grand jury.

\item As a direct result of the warrantless arrest without probable cause, Plaintiff was seized and subjected to ongoing criminal prosecution in case 24CR49043, suffering deprivation of liberty, emotional distress, reputational harm, and financial loss.

\end{paras}

\subsection\*{The Defective Grand Jury --- January 14, 2025}

\begin{paras}

\item On January 14, 2025, a Washington County grand jury returned a true bill in case 24CR49043.

\item No valid Presiding Judge Order authorizing the grand jury's existence was in effect on January 14, 2025. Presiding Judge Order 325 expired on or about January 3, 2025. Presiding Judge Order 350 did not take effect until on or about January 31, 2025.

\underline{\hspace{2in}}, a Washington County court administrator, confirmed this 28-day gap in writing.

\item A grand jury operating without a valid presiding judge order is not a lawfully constituted grand jury under Oregon law.

\textit{State v. Lawrence}, 12 Or. 297 (1885). A true bill returned by such a grand jury is void \textit{ab initio} and confers no subject matter jurisdiction on the Washington County Circuit Court.

\item Witness \underline{\hspace{2in}} ("Baker") provided testimony before the grand jury. Baker's testimony materially contradicted Deputy Rambin's sworn probable cause affidavit. Deputy District

Attorney Gerten was responsible for presenting the matter to the grand jury and was aware of Baker's testimony and its conflict with Rambin's affidavit. Gerten failed to correct the false or misleading impression created by the conflicting testimony, in violation of the due process principle established in *Napue v. Illinois*, 360 U.S. 264, 269 (1959).

The grand jury recording was provided to Plaintiff's then-counsel Anna Lasher. Plaintiff requested her complete client file from Lasher; Lasher stated the file would be produced within two weeks and never produced it. Plaintiff intends to file a bar complaint regarding Lasher's failure to produce the client file. As a result, Plaintiff has been denied access to the grand jury record to which she is entitled.

Because the January 14, 2025 indictment was returned by a grand jury without lawful authority to sit, it is void. The Washington County Circuit Court has not acquired subject matter jurisdiction over case 24CR49043.

The Administrative Order and Unlawful Home Entry ---  
May 10, 2025

In approximately November 2024, Washington County Community Corrections Officer            Rolfe made a single

attempt to contact a Washington County official regarding Plaintiff's alleged release violation and made no subsequent contact attempt.

¶ On the basis of Rolfe's single-contact attempt, an administrative Order of Arrest was issued under ORS 144.350---not a judicial arrest warrant. The order recited that Officer Rolfe was "unavailable" as the predicate for administrative issuance. Rolfe's Community Corrections position was subsequently eliminated through a layoff. Washington County Community Corrections staffing and layoff records are the only evidence capable of verifying the "unavailable" recital in the administrative order.

¶ The administrative Order of Arrest was entered into the Law Enforcement Data System (LEDS) as a "felony warrant." This characterization was materially inaccurate. An administrative order of arrest under ORS 144.350 is not a judicial warrant within the meaning of the Fourth Amendment.

¶ On May 10, 2025, Washington County Community Corrections Officers Does 1--4, acting under the direction of Defendant Bineham, entered Plaintiff's home. Plaintiff was on pretrial security release pursuant to ORS 135.265 and was not subject to post-conviction supervision conditions. She retained full Fourth Amendment rights against warrantless home entry. No valid judicial arrest warrant authorized entry into Plaintiff's home.

\item \textit{Payton v. New York}, 445 U.S. 573, 576 (1980),  
requires a judicial arrest warrant---not an administrative  
order---to enter a home to effect an arrest. An administrative order  
of arrest under ORS 144.350 does not satisfy \textit{Payton}'s warrant  
requirement. The May 10, 2025 entry into Plaintiff's home was  
unconstitutional.

\item The contact observed during the May 10, 2025 unlawful home entry  
became the sole factual predicate for the contempt proceeding  
subsequently filed against Plaintiff on December 30, 2025.

\textit{See infra} paragraphs 40--47.  
\end{paras}

\subsection\*{DDA Gerten's Post-Arrest Investigatory Directive}

\begin{paras}

\item Following the May 10, 2025 entry and arrest, Deputy District  
Attorney Gerten directed Deputy Rambin to review the incident to  
determine whether Plaintiff had violated the terms of her release  
agreement.

\item This directive is documented in Rambin's own written report,  
which discloses that the District Attorney's office requested that  
Rambin review the May 10, 2025 incident and that Rambin complied with  
that request.

\item Directing a law enforcement officer to conduct a post-arrest

investigation to build an evidentiary record for potential prosecution  
is an investigatory function, not an advocacy function.

\textit{Buckley v. Fitzsimmons}, 509 U.S. 259, 273 (1993).

Absolute prosecutorial immunity does not attach to this conduct.

\item At the time Gerten issued this directive, she was aware that:

(a) the September 18, 2024 arrest had been made on a probable cause  
affidavit contradicted by three contemporaneous reports; (b) Rambin's  
December 2024 supplemental acknowledged misidentification; and (c) the  
May 10, 2025 entry had been made pursuant to an administrative order,  
not a judicial warrant. Gerten's investigatory directive to continue  
building the evidentiary case, under these circumstances, continued  
and compounded the unlawful seizure of Plaintiff without lawful basis.  
\end{paras}

\subsection\*{The Ex Parte Contempt Proceeding ---

May Through December 2025}

\begin{paras}

\item On or about May 10, 2025---the same day as the unlawful home  
entry---Deputy District Attorney Clark sent an ex parte email to Judge  
James C. Thompson.

\item Without any motion pending before the court and without notice to  
Plaintiff, Judge Thompson directed the Washington County release office  
to seek a violation report against Plaintiff.

\item Thompson's direction to the release office---an administrative

agency---to initiate enforcement proceedings against Plaintiff, based on an ex parte communication and outside any adversarial proceeding with no motion before the court, is an administrative act, not a judicial act. \textit{Forrester v. White}, 484 U.S. 219, 228 (1988). Absolute judicial immunity does not attach.

\item On May 13, 2025---three days after the unlawful home entry---Deputy District Attorney Jade Sawyer (OSB \#250555) filed a Complaint for Imposition of Punitive Sanctions, Contempt---Violation of Release Agreement, in case 25CN02140, against Barry Trenell Washington, alleging contact with Plaintiff on May 10, 2025. The contact alleged was the contact observed during the unlawful home entry.

\item In June 2025, the court held a show cause hearing in case 25CN02140. Plaintiff received no notice of that hearing. Court notices concerning Plaintiff were sent to a residential address Plaintiff had not occupied for approximately ten years, and separately to the Office of Public Defense Commission in Salem, Oregon---an entity listed as Plaintiff's counsel of record as an administrative placeholder. Plaintiff never retained, requested, or was lawfully appointed OPDC as counsel. At all relevant times, Plaintiff was unrepresented.

\item On December 30, 2025---more than seven months after the alleged

May 10, 2025 conduct---the State initiated the contempt proceeding against Plaintiff in case 25CN05790, predicated on the same contact observed during the May 10, 2025 unlawful home entry.

\item The contempt proceeding lacked a legally valid statutory predicate. Plaintiff was subject to a security release pursuant to ORS 135.265. Oregon Revised Statute 135.290 bars a contempt proceeding predicated on conduct during a security release. The contempt proceeding was void on its face.

\item Due process requires notice reasonably calculated, under all the circumstances, to apprise interested parties of the pendency of proceedings affecting their rights. \textit{Mullane v. \ Central

Hanover Bank \& Trust Co.}, 339 U.S.\ 306, 314 (1950). Washington County's court notification system directed notices concerning Plaintiff to a decade-old address and to an administrative placeholder entity Plaintiff never retained---while Plaintiff's actual, current address appeared in the court's own release documents. Proceedings affecting Plaintiff's liberty and her defense advanced without notice reasonably calculated to reach her.

\item On June 10, 2025, Washington County employee Stiefer authored an email documenting the Clark-to-Thompson ex parte communication chain.

The state withheld this email chain from Plaintiff in violation of \textit{Brady v. \ Maryland}, 373 U.S.\ 83, 87 (1963).

On December 29, 2025, bail revocation and an arrest warrant were issued. The warrant affidavit contained material defects, including altered contact information. Compounding warrants arising from the void contempt proceeding have restricted Plaintiff's liberty across all pending cases.

The warrant---the downstream product of the May 10, 2025 unlawful home entry and the void contempt proceeding---has been invoked in juvenile dependency proceeding 25JU04261 to justify Plaintiff's continued separation from her minor daughter. The Fourteenth Amendment protects a parent's liberty interest in the care, custody, and companionship of her child. *Troxel v. Granville*, 530 U.S. 57, 65 (2000); *Santosky v. Kramer*, 455 U.S. 745, 753 (1982). Plaintiff's separation from her daughter, sustained by the tainted warrant, constitutes ongoing harm proximately caused by the constitutional violations alleged herein. Plaintiff's claims against the Oregon Department of Human Services and its employees arising from the dependency proceeding are reserved for a separate action; the family separation is pled here as harm proximately caused by Defendants' conduct.

**Records Suppression and Association-Based Targeting ---**

2025 Through 2026}

\item Beginning May 15, 2025, Plaintiff submitted multiple public records requests to Washington County (including Request Nos.\ C008202 and C008691) seeking records regarding Officer Rolfe's communications with County officials and records regarding Community Corrections staffing and layoffs, which are necessary to verify the ``Rolfe unavailable" recital in the administrative Order of Arrest.

\item Washington County imposed substantial fees on Plaintiff's records requests, including a fee of \ \$7,846.60 on the staffing and layoff records request (Request No.\ C008691, August 23, 2025), notwithstanding an existing indigency finding in Plaintiff's criminal proceedings.

\item On September 19, 2025, Washington County official Mendes denied Plaintiff's fee waiver request (the ``Mendes Denial"). The Mendes Denial stated as its basis that the County had evidence of Plaintiff's associations and her intended use of the records. The Mendes Denial is a written government admission that Washington County reviewed the content and purpose of Plaintiff's advocacy---including her associational identity---before denying access to public records.

\item The use of law enforcement intelligence data concerning a person's associational activities in making administrative fee determinations violates ORS 181A.250, which prohibits law enforcement agencies from collecting and using intelligence information against

individuals on the basis of their exercise of constitutional rights and prohibits dissemination of such information to other agencies.

\item Plaintiff submitted additional court records waiver requests; fee waivers were denied in four instances despite an indigency finding.

As of March 27, 2026, Washington County official Johnston had provided zero response to outstanding requests, constituting constructive denial under ORS 192.329.

\item The Mendes Denial and related fee impositions have prevented Plaintiff from accessing the Community Corrections staffing and layoff records that would allow her to verify or refute the ``Rolfe unavailable" recital---the stated predicate for the void administrative Order of Arrest and the May 10, 2025 unlawful home entry and arrest.

\end{paras}

\subsection\*{Refusal to Rule on Demurrer and Imminent Trial}

\begin{paras}

\item Plaintiff filed a demurrer in case 24CR49043 challenging the indictment on multiple grounds, including the defective grand jury empanelment described in paragraphs 24--29. The Washington County Circuit Court has refused to rule on the demurrer and has acted as if the motion does not exist, in violation of ORS 1.050.

\item The court's refusal to rule on a pending demurrer challenging its own subject matter jurisdiction confirms that the state proceeding will

not self-correct the constitutional violations described herein and

that Plaintiff has no adequate remedy at law in state court.

Item Trial in case 24CR49043 is currently scheduled for July 17--18,

1. Plaintiff faces imminent prosecution under a void indictment,

with no ruling on her pending challenge to the court's jurisdiction.

\end{paras}

% =====

% CLAIMS FOR RELIEF

% =====

\section\*{CLAIMS FOR RELIEF}

% — COUNT I —————

\subsection\*{COUNT I}

\subsubsection\*{Fourth Amendment --- False Arrest\}

42 U.S.C.\sect\ 1983\\

(Against Defendants Rambin and Washington County)}

\begin{paras}

Item Plaintiff realleges and incorporates paragraphs 1 through 55.

Item The Fourth Amendment guarantees the right to be free from arrest

without probable cause. \textit{Dunaway v.\ New York},

442 U.S.\ 200, 208 (1979). A warrantless arrest is per se

unreasonable unless supported by probable cause at the moment of

arrest.

Item On September 18, 2024, Defendant Rambin arrested Plaintiff

without a warrant and without probable cause. Rambin's probable cause affidavit attributed tag removal to Plaintiff---a conclusion contradicted by three contemporaneous reports. The arrest was made before the underlying investigation concluded. Rambin's own December 27, 2024 supplemental report acknowledged the misidentification, establishing that probable cause did not exist at the moment of arrest.

\item The right to be free from warrantless arrest without probable cause was clearly established as of September 18, 2024, by controlling authority any reasonable officer would have known.

\textit{Dunaway v. New York}, 442 U.S. 200 (1979);

\textit{Beck v. Ohio}, 379 U.S. 89, 91 (1964). No reasonable officer could have believed probable cause existed to arrest a suspect for conduct that three contemporaneous reports attributed to a different person, before the underlying investigation had concluded.

Rambin is not entitled to qualified immunity.

\item Defendant Washington County is liable under \textit{Monell

v. Dep't of Soc. Servs.}, 436 U.S. 658 (1978). The County maintained a custom or practice, so persistent and well-settled as to have the force of law, of authorizing arrests based on relay-chain probable cause determinations without requiring the arresting officer to independently verify the underlying factual basis. This custom is

evidenced by, without limitation: (a) Rambin's September 18, 2024 arrest of Plaintiff at 9:42 p.m., before the investigating officer completed the underlying store investigation at approximately 10:00 p.m.; (b) the December 29, 2025 warrant affidavit, in which Rambin's own inference traveled through multiple County officials and returned to Rambin presented as independent multi-agency corroboration, with no intermediary adding independent observation; and (c) the May 10, 2025 home entry executed on an administrative order entered into LEDS as a "felony warrant." Each incident reflects the same practice: County officers acting on relayed conclusions without independent verification. This custom was the moving force behind Plaintiff's unlawful arrest.

*Pembaur v. City of Cincinnati*, 475 U.S. 469, 480 (1986).

As a direct and proximate result of Defendants' conduct, Plaintiff suffered deprivation of liberty, emotional distress, reputational harm, financial loss, and ongoing prosecution under a void indictment, in an amount to be proved at trial.

% — COUNT II —

---

COUNT II

Fourth Amendment — Unlawful Home Entry

42 U.S.C. § 1983

(Against Defendants Does 1--4, Bineham, and Washington County)}  
\begin{paras}

\item Plaintiff realleges and incorporates paragraphs 1 through 55.

\item The Fourth Amendment prohibits warrantless, nonconsensual entry into a home to make an arrest. A judicial arrest warrant is required.

\textit{Payton v. New York}, 445 U.S. 573, 576 (1980). An administrative order of arrest under ORS 144.350 does not constitute a judicial arrest warrant and does not satisfy \textit{Payton}.

\item On May 10, 2025, Defendants Does 1--4 and Bineham entered Plaintiff's home without a valid judicial warrant. The administrative Order of Arrest under ORS 144.350---misabeled in LEDS as a ``felony warrant"---did not authorize warrantless home entry. Plaintiff was on pretrial security release and retained full Fourth Amendment rights.

\item Defendant Bineham directed the entry. A supervisor who directs unconstitutional conduct by subordinates is personally liable under 42 U.S.C. \sect 1983. \textit{Starr v. Baca}, 652 F.3d 1202, 1207 (9th Cir. 2011).

\item The right to be free from warrantless home entry to effect an arrest has been clearly established since \textit{Payton v. New

York}, 445 U.S. 573 (1980), and \textit{Steagald v. United States}, 451 U.S. 204, 211--12 (1981). Every reasonable officer as of May 10, 2025, would have known that an administrative order of arrest---issued by a corrections official, not a judicial officer, on

a "reasonable grounds" standard rather than a probable cause determination by a neutral magistrate---is not a judicial arrest warrant and does not authorize entry into a home. No exigent circumstances existed; any exigency arising after Plaintiff asked the officers to leave was officer-created and cannot justify the entry.

\textit{Kentucky v. King}, 563 U.S. 452, 462 (2011). Defendants are not entitled to qualified immunity.

\item Defendant Washington County is liable under \textit{Monell} for failing to train and supervise Community Corrections officers on the constitutional distinction between administrative orders of arrest and judicial arrest warrants under \textit{Payton}.

\textit{City of Canton v. Harris}, 489 U.S. 378, 388 (1989).

\item As a direct and proximate result of the unlawful home entry, Plaintiff was arrested, subjected to the void contempt proceeding, and suffered ongoing deprivation of liberty, emotional distress, legal harm, and separation from her minor daughter sustained by the warrant that is the downstream product of the entry, in an amount to be proved at trial.

\end{paras}

% --- COUNT III -----

\subsection\*{COUNT III}

\subsubsection\*{Fourth Amendment --- Unlawful Continued Seizure via

## Materially False Affidavit\

42 U.S.C.\sect\ 1983\

(Against Defendants Rambin and Gerten)}

\begin{enumerate}

\item Plaintiff realleges and incorporates paragraphs 1 through 55.

\item The Fourth Amendment governs unlawful pretrial detention and continued seizure effected through materially false affidavits.

\textit{Manuel v.\ City of Joliet}, 580 U.S.\ 357, 364 (2017). A

law enforcement officer who submits or maintains a materially false affidavit to prolong a seizure violates the Fourth Amendment.

\textit{Hervey v.\ Estes}, 65 F.3d 784, 788 (9th Cir.\ 1995).

\item Defendant Rambin's probable cause affidavit contained materially false statements attributing conduct to Plaintiff that three contemporaneous reports contradicted. Rambin's December 2024 supplemental report establishes that Rambin knew or recklessly disregarded the inaccuracy. Despite this knowledge, prosecution on the basis of the affidavit continued, prolonging Plaintiff's seizure from September 18, 2024, through the present.

\item Defendant Gerten, acting in her investigatory capacity, directed Deputy Rambin to conduct a post-arrest investigation of the May 10, 2025 incident to develop an evidentiary basis for a release agreement violation---after knowing the original arrest was based on a defective probable cause affidavit. \textit{Buckley v.\ Fitzsimmons},

509 U.S. 259, 273 (1993). This investigatory directive continued and compounded the unlawful seizure of Plaintiff without lawful basis.

Item Gerten additionally knew that Baker's grand jury testimony materially contradicted Rambin's sworn probable cause affidavit and failed to correct the false or misleading record before the grand jury, in violation of *Napue v. Illinois*,

360 U.S. 264, 269 (1959). This failure allowed prosecution---and with it, Plaintiff's continued seizure---to proceed on a false factual foundation.

Item As a direct and proximate result of Defendants' conduct, Plaintiff has been continuously and unlawfully seized since September 18, 2024, suffering deprivation of liberty, emotional distress, and ongoing legal harm, in an amount to be proved at trial.

% — COUNT IV —————

\subsection\*{COUNT IV}

\subsubsection\*{First Amendment --- Retaliation and Right to Petition\

42 U.S.C. \sect\ 1983\

(Against Defendants Washington County and Does 5--10)}  
\begin{enumerate}

Item Plaintiff realleges and incorporates paragraphs 1 through 55.

Item The First Amendment protects the right to petition the government for redress of grievances and to seek access to government

information free from viewpoint-based discrimination.

*BE&K Constr. Co. v. NLRB*, 536 U.S. 516, 524 (2002);

*Mendocino Envtl. Ctr. v. Mendocino County*,

192 F.3d 1283, 1300 (9th Cir. 1999).

Plaintiff exercised protected First Amendment rights by making public records requests seeking records relevant to the legality of her arrest and prosecution; engaging in community advocacy; and filing court motions challenging official conduct, including the demurrer in case 24CR49043.

Washington County, acting through its officials including Mendes and Does 5--10, retaliated against Plaintiff's exercise of First Amendment rights by: (a) denying fee waivers based on the County's evidence of Plaintiff's associations and intended use (Mendes Denial, September 19, 2025); (b) using ORS 181A.250-prohibited law enforcement intelligence concerning Plaintiff's associations to inform administrative fee determinations; (c) imposing a fee of \$7,846.60 designed to prevent Plaintiff from accessing records material to her defense; and (d) failing to respond to records requests constituting constructive denial.

The Mendes Denial is direct documentary evidence of viewpoint-based government action: it states on its face that denial is grounded in evidence of Plaintiff's associations and intended use

of the records---not in the technical scope of the request. This is content- and viewpoint-based government action.

\item Washington County's conduct would chill a person of ordinary firmness from continuing to exercise First Amendment rights to petition and to access government information.

\item As a direct and proximate result of Defendants' retaliatory conduct, Plaintiff has been denied records necessary to her defense, chilled in the exercise of constitutional rights, and suffered harm in an amount to be proved at trial.

\end{enumerate}

% — COUNT V —————

\subsection\*{COUNT V}

\subsubsection\*{Fourteenth Amendment --- Equal Protection\

Class of One / Association-Based Targeting\\

42 U.S.C.\sect\ 1983\\

(Against Defendants Washington County and Does 5--10)}

\begin{enumerate}

\item Plaintiff realleges and incorporates paragraphs 1 through 55.

\item The Equal Protection Clause of the Fourteenth Amendment prohibits government entities from intentionally treating an individual differently from similarly situated persons without rational basis. \textit{Village of Willowbrook v.\ Olech}, 528 U.S.\ 562, 564 (2000).

Item Washington County intentionally treated Plaintiff differently from similarly situated individuals in the processing of public records fee waivers. The Mendes Denial establishes that Plaintiff was treated differently because of her associations and her intended use of the records---grounds bearing no rational relationship to any legitimate government interest in public records administration.

Item ORS 181A.250 prohibits law enforcement agencies from maintaining and disseminating intelligence files based on individuals' exercise of constitutional rights. Washington County's use of such intelligence in administrative fee decisions confirms that Plaintiff's differential treatment was motivated by her identity and advocacy, not by any content-neutral criterion.

Item As a direct and proximate result of Washington County's differential treatment, Plaintiff has been denied equal access to public records and has suffered harm in an amount to be proved at trial.

\end{enumerate}

% — COUNT VI —————

\subsection\*{COUNT VI}

\subsubsection\*{Monell --- Municipal Liability\

42 U.S.C.\ \sect\ 1983\

(Against Defendant Washington County)}

\begin{enumerate}

\item Plaintiff realleges and incorporates paragraphs 1 through 55.

\item Defendant Washington County is liable for the constitutional violations described in this Complaint under \textit{Monell

v.\ Dep't of Soc.\ Servs.}, 436 U.S.\ 658 (1978), on three independent grounds.

\item \textbf{Leg 1 --- Relay-Chain Probable Cause Custom:}

Washington County maintained a custom or practice under which law enforcement officers effected felony arrests based on relay-chain probable cause reports, without requiring the arresting officer to independently verify the underlying factual basis. Plaintiff's September 18, 2024 arrest---made on an affidavit contradicted by three contemporaneous reports, before the investigation concluded---was carried out pursuant to this custom. This custom was the moving force behind the violation of Plaintiff's Fourth Amendment rights.

\item \textbf{Leg 2 --- Association-Based Records Suppression

Custom:} Washington County maintained a custom or practice of using law enforcement intelligence data gathered concerning individuals' associational activities and advocacy to direct administrative decisions, including public records fee determinations. The Mendes Denial (September 19, 2025) is direct documentary evidence of this custom---it states on its face that the fee denial was based on County

evidence of Plaintiff's associations and intended use. This custom, operating through ORS 181A.250-prohibited intelligence sharing, was the moving force behind violations of Plaintiff's First and Fourteenth Amendment rights.

\item \textbf{Leg 3 --- Failure to Train:} Washington County failed to train Community Corrections officers on the constitutional distinction between administrative orders of arrest under ORS 144.350 and judicial arrest warrants satisfying \textit{Payton v. New York}, resulting in the unlawful May 10, 2025 home entry and arrest.

\textit{City of Canton v. Harris}, 489 U.S. 378, 388 (1989).

\item As a direct and proximate result of Washington County's customs, practices, and failures to train, Plaintiff suffered the constitutional violations described in each Count above, in amounts to be proved at trial.

\end{enumerate}

% — COUNT VII —————

\subsection\*{COUNT VII}

\subsubsection\*{Fourteenth Amendment --- Procedural Due Process\

Ex Parte Initiation of Punitive Proceedings Without Notice\

42 U.S.C. \S1983\

(Against Defendants Thompson and Clark, Individually)}

\begin{enumerate}

\item Plaintiff realleges and incorporates paragraphs 1 through 55

and paragraphs 42 through 50 as if fully set forth herein.

\item The Fourteenth Amendment prohibits the government from depriving any person of liberty without due process of law. The minimum requirements of procedural due process are notice and an opportunity to be heard at a meaningful time and in a meaningful manner.

\textit{Mathews v. Eldridge}, 424 U.S. 319, 333 (1976). Due process requires notice reasonably calculated, under all the circumstances, to apprise interested parties of the pendency of proceedings affecting their rights and to afford them an opportunity to present their objections. \textit{Mullane v. Central Hanover Bank & Trust Co.}, 339 U.S. 306, 314 (1950).

\item On May 10, 2025, Defendant Clark---acting in her capacity as a Washington County Community Corrections supervisor, outside any pending adversarial proceeding, and without any motion before the court---sent an ex parte email to Defendant Judge James C. Thompson.

The content of that communication caused Thompson to act against

Plaintiff's liberty interests without any notice to Plaintiff and without any opportunity for Plaintiff to be heard.

\item Upon receiving Clark's ex parte communication, Defendant Thompson---without any motion pending before the court, without notice to Plaintiff, and without affording Plaintiff any opportunity to respond---directed the Washington County release office to seek a

violation report against Plaintiff. This directive set in motion the contempt proceeding that ultimately resulted in case 25CN05790, filed December 30, 2025, which directly threatens Plaintiff's liberty.

Item Clark's initiation of the ex parte communication, and Thompson's direction to the release office based on that communication, are administrative acts, not judicial or advocacy acts.

Under the functional test for judicial immunity, an act is judicial only if it is (1) a function normally performed by a judge, and (2) the parties dealt with the judge in his judicial capacity.

*Stump v. Sparkman*, 435 U.S. 349, 362 (1978);

*Bliven v. Hunt*, 579 F.3d 204, 212 (2d Cir. 2009).

Directing an administrative agency to initiate enforcement proceedings against a litigant---based on an ex parte communication, outside any adversarial proceeding, with no motion pending---is not a function normally performed by a judge in his judicial capacity.

*Forrester v. White*, 484 U.S. 219, 228 (1988). Absolute judicial immunity does not attach to Thompson's conduct.

Item Defendant Clark is a Community Corrections supervisor with no prosecutorial role. She is therefore entitled to qualified immunity only. Clark's qualified immunity is defeated because the right to notice and an opportunity to be heard before a criminal proceeding is modified was clearly established at the time of her conduct.

\textit{Mullane v. Central Hanover Bank & Trust Co.},  
339 U.S. 306 (1950); \textit{Mathews v. Eldridge},  
424 U.S. 319 (1976). No reasonable official in Clark's position  
could have believed that transmitting an ex parte communication to a  
sitting judge---without notice to the affected party---was  
constitutionally permissible.

\item The ex parte contempt chain was compounded by Washington  
County's court notification system, which directed all notices to  
Plaintiff to a residential address she had not occupied for  
approximately ten years and to an administrative placeholder entity  
she never retained---while Plaintiff's actual, current address  
appeared in the court's own release documents. Plaintiff received no  
notice of the June 2025 show cause hearing in case 25CN02140.  
Proceedings affecting Plaintiff's liberty advanced entirely without  
notice reasonably calculated to reach her.

\textit{Mullane}, 339 U.S. at 314.

\item The contempt proceeding initiated through this ex parte chain  
lacked a legally valid statutory predicate. Plaintiff was subject to  
a security release pursuant to ORS 135.265. ORS 135.290 bars a  
contempt proceeding predicated on conduct during a security release.  
The proceeding was void on its face---a fact that Thompson, as the  
presiding judge, and Clark, as the initiating supervisor, either knew

or were deliberately indifferent to.

\item On June 10, 2025, Washington County employee Stiefer authored an email documenting the Clark-to-Thompson ex parte communication chain. The state withheld this email chain from Plaintiff in violation of \textit{Brady v. Maryland}, 373 U.S. 83, 87 (1963).

The withholding of this documentation---which is direct evidence of the due process violation alleged in this Count---further deprived Plaintiff of her ability to challenge the proceedings affecting her liberty.

\item As a direct and proximate result of Defendants Thompson's and Clark's conduct, Plaintiff was subjected to a void contempt proceeding, suffered deprivation of liberty, emotional distress, reputational harm, and ongoing legal harm, in an amount to be proved at trial.

\end{enumerate}

% — COUNT VIII —————

\subsection\*{COUNT VIII}

\subsubsection\*{Fourteenth Amendment --- Substantive and Procedural

Due Process\\

Knowing Use of False Grand Jury Testimony and Suppression of

Exculpatory Evidence\\

42 U.S.C. \sect 1983\\

(Against Defendant Gerten, Individually)}

\begin{enumerate}

\item Plaintiff realleges and incorporates paragraphs 1 through 55 and paragraphs 26 through 31 as if fully set forth herein.

\item The Fourteenth Amendment's Due Process Clause prohibits the government from obtaining or maintaining a criminal prosecution through the knowing use of false or misleading evidence.

\textit{Napue v. Illinois}, 360 U.S. 264, 269 (1959) ("[T]he same result obtains when the State, although not soliciting false evidence, allows it to go uncorrected when it appears."). The government's knowing use of false testimony---or its failure to correct testimony it knows to be false---violates due process regardless of whether the testimony was technically elicited by the prosecutor. \textit{Id.}

\item The Fourteenth Amendment's Due Process Clause additionally requires the prosecution to disclose material exculpatory evidence to the defense. \textit{Brady v. Maryland}, 373 U.S. 83, 87 (1963).

Evidence is material if there is a reasonable probability that, had the evidence been disclosed, the result of the proceeding would have been different. \textit{United States v. Bagley}, 473 U.S. 667, 682 (1985).

\item On January 14, 2025, a Washington County grand jury returned a true bill in case 24CR49043. Defendant Gerten was the presenting

prosecutor responsible for presenting the matter to the grand jury.

Item Witness Baker provided testimony before the grand jury. Baker's testimony materially contradicted Deputy David Rambin's sworn probable cause affidavit---the affidavit that formed the basis for Plaintiff's September 18, 2024 arrest and continued prosecution. The contradiction was not peripheral; it went to the core factual predicate of the charge: the identification of Plaintiff as the person responsible for the conduct alleged.

Item Defendant Gerten knew of the contradiction between Baker's testimony and Rambin's affidavit at the time of the grand jury presentation. Specifically: (a) Gerten was present during Baker's testimony before the grand jury; (b) Gerten had access to Rambin's probable cause affidavit as the presenting prosecutor---it was the foundational document of the prosecution she was presenting; and (c) the contradiction between Baker's account and Rambin's affidavit was apparent on the face of the two documents. No reasonable prosecutor reviewing both documents could have failed to recognize the conflict.

Item Despite this knowledge, Gerten failed to correct the false or misleading impression created by Baker's testimony before the grand jury returned its true bill. This failure allowed the indictment to issue on a false factual foundation, in violation of

\textit{Napue v. Illinois}, 360 U.S. 264, 269 (1959). The indictment---and with it, Plaintiff's continued prosecution and deprivation of liberty---rests on a grand jury record that Gerten knew was materially false and misleading.

\item Gerten's failure to correct Baker's contradictory testimony is an investigatory act, not an advocacy act. The duty to ensure the accuracy of evidence presented to a grand jury---and to correct known false impressions---arises before the initiation of formal adversarial proceedings and is part of the investigatory function.

\textit{Buckley v. Fitzsimmons}, 509 U.S. 259, 273 (1993).

Absolute prosecutorial immunity does not attach to this conduct.

\item Separately, the June 10, 2025 Stiefer email documenting the Clark-to-Thompson ex parte communication chain constitutes material exculpatory evidence under \textit{Brady v. Maryland}, 373 U.S. 83, 87 (1963): it is direct evidence of the unconstitutional ex parte initiation of the contempt proceeding against Plaintiff, and its disclosure would create a reasonable probability of a different outcome in the contempt proceedings and in the underlying criminal case. The state withheld this email chain from Plaintiff. Gerten, as the supervising prosecutor responsible for the prosecution of Plaintiff, was responsible for the disclosure obligations owed to Plaintiff under \textit{Brady}. The withholding

of the Stiefer email constitutes a \textit{Brady} violation.

\item The right to be free from prosecution maintained through knowingly false grand jury testimony was clearly established as of January 14, 2025. \textit{Napue v. \ Illinois}, 360 U.S.\ 264 (1959); \textit{Giglio v. \ United States}, 405 U.S.\ 150 (1972).

The right to disclosure of material exculpatory evidence was clearly established as of June 10, 2025. \textit{Brady v. \ Maryland}, 373 U.S.\ 83 (1963); \textit{United States v. \ Bagley}, 473 U.S.\ 667 (1985). No reasonable prosecutor could have believed that knowingly allowing materially false testimony to stand uncorrected before a grand jury, or withholding direct evidence of an unconstitutional ex parte proceeding, was consistent with the Fourteenth Amendment. Gerten is not entitled to qualified immunity.

\item As a direct and proximate result of Gerten's conduct, Plaintiff has been subjected to prosecution under an indictment issued on a false factual foundation, has been denied material exculpatory evidence, has suffered continuous deprivation of liberty from September 18, 2024 through the present, and has suffered emotional distress, reputational harm, and financial loss, in an amount to be proved at trial.

\end{enumerate}

% =====

% PRAYER FOR RELIEF

% =====

\section\*{PRAYER FOR RELIEF}

\noindent WHEREFORE, Plaintiff Ashle' Penn respectfully requests that  
this Court enter judgment in her favor and against Defendants as  
follows:

\bigskip

\noindent \textbf{A.} \quad COMPENSATORY DAMAGES} against all  
Defendants, in amounts to be determined at trial, for: deprivation of  
liberty from September 18, 2024, to the present; emotional distress,  
anxiety, and psychological harm; reputational harm; financial losses  
incurred in defending against unlawful prosecution; and denial of  
access to public records and harm resulting therefrom.

\bigskip

\noindent \textbf{B.} \quad PUNITIVE DAMAGES} against individual  
Defendants Ramin, Does 1--4, Bineham, Gerten, Thompson, and Clark in  
amounts sufficient to deter future constitutional violations, based on  
Defendants' reckless or callous indifference to Plaintiff's clearly  
established constitutional rights. \textit{Smith v. Wade},  
461 U.S. 30, 56 (1983).

\bigskip

\noindent \textbf{C.} \quad DECLARATORY RELIEF} pursuant to

28 U.S.C. \S\ 2201--2202:

\begin{enumerate}[label=\arabic\*.,leftmargin=0.75in,

itemsep=4pt,topsep=6pt]

\item A declaration that the January 14, 2025 indictment in Case

No. \ 24CR49043 is void \textit{ab initio}, the grand jury having

operated during a period---January 3 through January 31,

2025---when no valid Presiding Judge Order authorized its existence;

\item A declaration that the Washington County Circuit Court has not

acquired subject matter jurisdiction over Case No. \ 24CR49043 on

the basis of the void January 14, 2025 indictment;

\item A declaration that Plaintiff's September 18, 2024 arrest

violated the Fourth Amendment;

\item A declaration that the May 10, 2025 warrantless home entry and

arrest violated the Fourth Amendment;

\item A declaration that Washington County's use of law enforcement

intelligence data in public records fee determinations violated

ORS 181A.250 and the First and Fourteenth Amendments.

\end{enumerate}

\bigskip

\noindent \textbf{D. \quad INJUNCTIVE RELIEF:}

\begin{enumerate}[label=\arabic\*.,leftmargin=0.75in,

itemsep=4pt,topsep=6pt]

\item An injunction barring Defendants from proceeding with prosecution of Plaintiff in Washington County Case No.\ 24CR49043 under the January 14, 2025 void indictment, pursuant to \textit{Ex parte Young}, 209 U.S.\ 123 (1908), as to official-capacity claims;

\item An injunction barring Washington County from using law enforcement intelligence data derived from Plaintiff's associational activities or exercise of constitutional rights in any administrative records or fee determination.

\end{enumerate}

\bigskip

\noindent \textbf{E.\quad ATTORNEY FEES AND COSTS} pursuant to 42 U.S.C.\ \sect\ 1988 and any other applicable statute.

\bigskip

\noindent \textbf{F.\quad SUCH OTHER AND FURTHER RELIEF} as this Court deems just and proper.

% =====

% JURY DEMAND

% =====

\section\*{DEMAND FOR JURY TRIAL}

Plaintiff Ashle' Penn demands a jury trial on all issues so triable pursuant to Rule 38 of the Federal Rules of Civil Procedure.

\bigskip\bigskip

\noindent Respectfully submitted,

\bigskip\bigskip\bigskip

\noindent Dated: \underline{\hspace{2in}}

\bigskip\bigskip

\noindent\rule{3in}{0.4pt}\

\textbf{ASHLE' PENN}\

Pro Se Plaintiff\

\underline{\hspace{2.5in}} \textit{[Address]}\

\underline{\hspace{2.5in}} \textit{[Phone]}\

\href{mailto:edify@pennandpenn.com}{edify@pennandpenn.com}

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\end{document}

Or substitute \setmainfont{TeX Gyre Termes} which is metrically identical and ships with most TeX distributions.

Three Things Still Needing Your Input Before Filing

¶27 — \underline{\hspace{2in}} — court administrator's full name and title

¶29 — \underline{\hspace{2in}} — Baker's full name

¶32 — \underline{\hspace{1in}} Rolfe — Rolfe's first name

Those are the only blanks left in the document. Everything else is populated from the working draft.

Priority Citation Fix Still Needed in the DOCX

The Hicks v. Miranda replacement in ¶3(b) — swap to Dombrowski v. Pfister, 380 U.S. 479, 490 (1965) — is reflected in the LaTeX above but has not yet been applied to the working DOCX.

Want me to apply that now?

papa

my compiler is not liking the paras environments. can we use itemize?

you don't have to amend the entire thing...i think just this part of the preamble and then i can change each usage throughout the document: % — Numbered paragraph environment

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% Usage: \begin{paras} \para{text} \end{paras}

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% — Court caption 

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\textbf{IN THE UNITED STATES DISTRICT COURT}\

\textbf{FOR THE DISTRICT OF OREGON}\

\textbf{PORTLAND DIVISION}

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ASHLE' PENN, & Case No.: \underline{\hspace{1.5in}}\}[4pt]

\hspace{0.3in}\textit{Plaintiff}, & \}[4pt]

v. & \textbf{COMPLAINT FOR}\}[4pt]

WASHINGTON COUNTY, OREGON; & \textbf{VIOLATION OF CIVIL RIGHTS}\}[4pt]

DEPUTY DAVID RAMBIN; & \textbf{(42 U.S.C.\ \sect\ 1983)}\}[4pt]

ALICIA GERTEN; & \}[4pt]

JUDGE JAMES C.\ THOMPSON; & \textbf{JURY TRIAL DEMANDED}\}[4pt]

MOLLY BINEHAM; & \[4pt]

SHEILA CLARK; & \[4pt]

DOES 1--10, & \[4pt]

\hspace{0.3in}\textit{Defendants}. & \\  
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% PRELIMINARY STATEMENT

% =====

\section\*{PRELIMINARY STATEMENT}

\begin{paras}

\item This action arises from a coordinated pattern of constitutional

violations by Washington County officials against Plaintiff, AshLe'

Penn. Those violations began on September 18, 2024, when Washington

County deputies racially profiled Plaintiff and arrested her without a

warrant and without probable cause. They continue through the present

day, as Plaintiff remains subject to ongoing prosecution under a

charging instrument issued by a defectively constituted grand jury

operating without lawful authority.

\item Plaintiff brings this action pursuant to 42 U.S.C.\sect\ 1983

for violations of her rights under the First, Fourth, and Fourteenth

Amendments to the United States Constitution, seeking compensatory damages, punitive damages against individual Defendants, declaratory relief, and injunctive relief.

\item Younger abstention does not bar this action. This Court's intervention is warranted notwithstanding the pending state criminal proceeding in Washington County Case No.\ 24CR49043. \textit{Younger} is inapplicable on two independent grounds. \textit{See} \textit{Younger v.\ Harris}, 401 U.S.\ 37, 43--54 (1971) (establishing abstention doctrine and enumerating exceptions for void proceedings, bad faith, and inadequate state remedy).

\begin{subparas}

\item \textit{Younger} presupposes a state court proceeding conducted pursuant to lawful authority and subject matter jurisdiction. The indictment in Case No.\ 24CR49043 was returned by a grand jury on January 14, 2025, during a period when no valid Presiding Judge Order authorized the grand jury's existence---PJO 325 expired January 3, 2025; PJO 350 did not take effect until January 31, 2025. Court administration confirmed this gap in writing. Under \textit{State v.\ Lawrence}, 12 Or.\ 297 (1885), a grand jury operating without lawful authority cannot issue a valid true bill. The indictment is void \textit{ab initio}. The Washington County Circuit Court has not acquired subject matter jurisdiction over this

matter, and there is no legitimate state proceeding to which this Court should defer. \textit{See} \textit{Kugler v. Helfant}, 421 U.S.\ 117, 124--25 (1975) (abstention inappropriate where state court lacks jurisdiction over subject matter of proceeding).

\item In the alternative, the prosecution falls within \textit{Younger}'s bad faith and harassment exception. The arrest was made on a probable cause affidavit contradicted by three contemporaneous reports. Prosecution continued after the arresting officer admitted misidentification in writing. The prosecutor knew a grand jury witness's testimony contradicted the sworn affidavit and failed to correct it. The state circuit court has refused to rule on Plaintiff's pending demurrer challenging its subject matter jurisdiction, treating the motion as nonexistent in violation of ORS 1.050. These facts establish prosecution maintained without hope of a valid conviction. \textit{See} \textit{Dombrowski v. Pfister}, 380 U.S.\ 479, 490 (1965) (bad faith exception applies where prosecution is maintained as part of a plan to harass or to deter exercise of constitutional rights, without hope of valid conviction).

\end{subparas}

\item As to Plaintiff's claims seeking damages, \textit{Younger} abstention does not apply in any event. \textit{Deakins v. Monaghan}, 484 U.S.\ 193, 201--04 (1988) (federal court must stay,

not dismiss, damages claims not cognizable in state forum).

\item Plaintiff's juvenile dependency proceeding (25JU04261) involves

distinct constitutional claims against different state actors and is

reserved for a separate federal action.

\end{paras}

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% PARTIES

% =====

\section\*{PARTIES}

\begin{paras}

\item Plaintiff \textbf{ASHLE' PENN} is a resident of Washington

County, Oregon. She is self-represented in this action. At all times

relevant to this Complaint, Plaintiff was a private citizen with no

criminal conviction.

\item Defendant \textbf{WASHINGTON COUNTY, OREGON} is a municipal

corporation organized under Oregon law, operating the Washington County

Sheriff's Office (WCSO), Washington County Community Corrections

(WCCC), and the Washington County District Attorney's Office.

Washington County is a ``person" within the meaning of

42 U.S.C.\sect\ 1983. \textit{Monell v.\ Dep't of Soc.\ Servs.},

436 U.S.\ 658, 690 (1978).

\item Defendant \textbf{DEPUTY DAVID RAMBIN} (``Rambin") is or was at

all relevant times a deputy with the Washington County Sheriff's

Office. Ramin is sued in his individual capacity for acts taken under color of state law.

Defendants \textbf{DOES 1--4} are Washington County Community Corrections officers who entered Plaintiff's home on May 10, 2025, identities currently unknown to Plaintiff. Plaintiff will amend this Complaint to substitute their true names when ascertained through discovery. Does 1--4 are sued in their individual capacities.

Defendant \textbf{MOLLY BINEHAM} ("Bineham") is or was at all relevant times an officer or supervisor with Washington County Community Corrections who directed the May 10, 2025 entry into Plaintiff's home. Bineham is sued in her individual capacity.

Defendant \textbf{ALICIA GERTEN} ("Gerten") is or was at all relevant times a Deputy District Attorney for Washington County. Gerten is sued in her individual capacity for investigatory acts only.

The specific conduct alleged---(a) directing Deputy Ramin to conduct a post-arrest investigation to determine whether Plaintiff violated her release agreement, documented in Ramin's own written report, and (b) failing to correct grand jury testimony Gerten knew contradicted the sworn probable cause affidavit---constitutes investigatory function, not advocacy, to which only qualified immunity attaches.

\textit{Buckley v. Fitzsimmons}, 509 U.S. 259, 273 (1993).

Defendant \textbf{JUDGE JAMES C. THOMPSON} ("Thompson") is or

was at all relevant times a judge of the Washington County Circuit Court. Thompson is sued in his individual capacity for administrative acts only. The specific conduct alleged---directing the Washington County release office to seek a violation report against Plaintiff based on an ex parte email communication, without any pending motion before the court and without notice to Plaintiff---is an administrative act, not a judicial act, to which absolute judicial immunity does not attach. \textit{Forrester v. White}, 484 U.S. 219, 228 (1988).

\item Defendant \textbf{SHEILA CLARK} ("Clark") is or was at all relevant times a supervisor employed by Washington County Community Corrections, acting under color of state law at all relevant times. Clark is sued in her individual capacity. As a Community Corrections supervisor, Clark exercises no prosecutorial function and is entitled to qualified immunity only.

\item Defendants \textbf{DOES 5--10} are persons whose identities are currently unknown to Plaintiff who participated in the constitutional violations described herein. Plaintiff will amend to substitute their true names when ascertained.

\end{paras}

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% JURISDICTION AND VENUE

% =====

\section\*{JURISDICTION AND VENUE}

\begin{paras}

\item This Court has subject matter jurisdiction under

28 U.S.C.\sect\ 1331 (federal question) and 28 U.S.C.\

\sect\ 1343(a)(3) (civil rights). The claims arise under

42 U.S.C.\sect\ 1983 and the First, Fourth, and Fourteenth

Amendments to the United States Constitution.

\item Venue is proper in the Portland Division under

28 U.S.C.\sect\ 1391(b) because all events giving rise to

Plaintiff's claims occurred in Washington County, Oregon, within this

district and division.

\item The applicable statute of limitations is Oregon's two-year

personal injury statute, ORS 12.110(1), as applied to \sect\ 1983

claims. \textit{Wilson v. Garcia}, 471 U.S.\ 261 (1985). The

earliest accruing claim---false arrest under Count I---accrued no

earlier than September 18, 2024. \textit{Wallace v. Kato},

549 U.S.\ 384, 388 (2007). Each remaining claim accrued later: the

unlawful home entry claim (Count II) accrued May 10, 2025; the

continued-seizure claim (Count III) alleges an ongoing violation

continuing to the present; the First Amendment retaliation and Equal

Protection claims (Counts IV--V) accrued no earlier than September 19,

2025 (the Mendes Denial). Every claim in this Complaint is timely

filed within two years of accrual.

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% STATEMENT OF FACTS

% =====

\section\*{STATEMENT OF FACTS}

\subsection\*{Background}

\begin{paras}

\item Plaintiff Ashle' Penn is a Washington County resident and community advocate. At all times relevant to this Complaint, Penn had no criminal conviction. She is the subject of criminal cases

24CR27775 and 24CR49043, contempt proceeding 25CN05790, and juvenile dependency proceeding 25JU04261---all arising from the conduct of

Defendants described herein.

\item At all relevant times, each Defendant acted under color of state

law within the meaning of 42 U.S.C.\sect\ 1983.

\end{paras}

\subsection\*{The Misidentification Arrest --- September 18, 2024}

\begin{paras}

\item On September 18, 2024, at approximately 9:42 p.m., Washington

County Sheriff's Office Deputy Rambin arrested Plaintiff Ashle' Penn.

The arrest was made before the underlying investigation by Officer

Orozco had concluded.

\item Ramin's probable cause affidavit attributed the conduct at issue---specifically, tag removal---to Plaintiff Penn. This attribution was contradicted by at least three contemporaneous incident reports documenting the same event.

\item No valid judicial arrest warrant had been issued for Plaintiff at the time of the arrest. The arrest was warrantless.

\item On December 27, 2024, Ramin filed a supplemental report acknowledging that the original attribution may have been a misidentification.

\item In the same December 27, 2024 supplemental report, Ramin directed further evidence gathering concerning Plaintiff---after the arrest had already occurred and after the grand jury presentation was already scheduled.

\item Ramin's December 27, 2024 misidentification acknowledgment predates the January 14, 2025 grand jury presentation. The acknowledgment was not disclosed to the grand jury.

\item As a direct result of the warrantless arrest without probable cause, Plaintiff was seized and subjected to ongoing criminal prosecution in case 24CR49043, suffering deprivation of liberty, emotional distress, reputational harm, and financial loss.

\end{paras}

\subsection\*{The Defective Grand Jury --- January 14, 2025}

\begin{paras}

\item On January 14, 2025, a Washington County grand jury returned a true bill in case 24CR49043.

\item No valid Presiding Judge Order authorizing the grand jury's existence was in effect on January 14, 2025. Presiding Judge Order 325 expired on or about January 3, 2025. Presiding Judge Order 350 did not take effect until on or about January 31, 2025.

\underline{\hspace{2in}}, a Washington County court administrator, confirmed this 28-day gap in writing.

\item A grand jury operating without a valid presiding judge order is not a lawfully constituted grand jury under Oregon law.

\textit{State v. Lawrence}, 12 Or. 297 (1885). A true bill returned by such a grand jury is void \textit{ab initio} and confers no subject matter jurisdiction on the Washington County Circuit Court.

\item Witness \underline{\hspace{2in}} ("Baker") provided testimony before the grand jury. Baker's testimony materially contradicted Deputy Rambin's sworn probable cause affidavit. Deputy District Attorney Gerten was responsible for presenting the matter to the grand jury and was aware of Baker's testimony and its conflict with Rambin's affidavit. Gerten failed to correct the false or misleading impression created by the conflicting testimony, in violation of the due process principle established in \textit{Napue v. Illinois},

360 U.S.\ 264, 269 (1959).

\item The grand jury recording was provided to Plaintiff's then-counsel Anna Lasher. Plaintiff requested her complete client file from Lasher; Lasher stated the file would be produced within two weeks and never produced it. Plaintiff intends to file a bar complaint regarding Lasher's failure to produce the client file. As a result, Plaintiff has been denied access to the grand jury record to which she is entitled.

\item Because the January 14, 2025 indictment was returned by a grand jury without lawful authority to sit, it is void. The Washington County Circuit Court has not acquired subject matter jurisdiction over case 24CR49043.

\end{paras}

\subsection\*{The Administrative Order and Unlawful Home Entry ---  
May 10, 2025}  
\begin{paras}

\item In approximately November 2024, Washington County Community Corrections Officer \underline{\hspace{1in}} Rolfe made a single attempt to contact a Washington County official regarding Plaintiff's alleged release violation and made no subsequent contact attempt.

\item On the basis of Rolfe's single-contact attempt, an administrative Order of Arrest was issued under ORS 144.350---not a judicial arrest warrant. The order recited that Officer Rolfe was

“unavailable” as the predicate for administrative issuance. Rolfe's Community Corrections position was subsequently eliminated through a layoff. Washington County Community Corrections staffing and layoff records are the only evidence capable of verifying the “unavailable” recital in the administrative order.

Item The administrative Order of Arrest was entered into the Law Enforcement Data System (LEDS) as a “felony warrant.” This characterization was materially inaccurate. An administrative order of arrest under ORS 144.350 is not a judicial warrant within the meaning of the Fourth Amendment.

Item On May 10, 2025, Washington County Community Corrections Officers Does 1--4, acting under the direction of Defendant Bineham, entered Plaintiff's home. Plaintiff was on pretrial security release pursuant to ORS 135.265 and was not subject to post-conviction supervision conditions. She retained full Fourth Amendment rights against warrantless home entry. No valid judicial arrest warrant authorized entry into Plaintiff's home.

Item *Payton v. New York*, 445 U.S. 573, 576 (1980), requires a judicial arrest warrant---not an administrative order---to enter a home to effect an arrest. An administrative order of arrest under ORS 144.350 does not satisfy *Payton*'s warrant requirement. The May 10, 2025 entry into Plaintiff's home was

unconstitutional.

\item The contact observed during the May 10, 2025 unlawful home entry became the sole factual predicate for the contempt proceeding subsequently filed against Plaintiff on December 30, 2025.

\textit{See infra} paragraphs 40--47.  
\end{paras}

\subsection\*{DDA Gerten's Post-Arrest Investigatory Directive}

\begin{paras}

\item Following the May 10, 2025 entry and arrest, Deputy District Attorney Gerten directed Deputy Rambin to review the incident to determine whether Plaintiff had violated the terms of her release agreement.

\item This directive is documented in Rambin's own written report, which discloses that the District Attorney's office requested that Rambin review the May 10, 2025 incident and that Rambin complied with that request.

\item Directing a law enforcement officer to conduct a post-arrest investigation to build an evidentiary record for potential prosecution is an investigatory function, not an advocacy function.

\textit{Buckley v. Fitzsimmons}, 509 U.S. 259, 273 (1993).

Absolute prosecutorial immunity does not attach to this conduct.

\item At the time Gerten issued this directive, she was aware that:

(a) the September 18, 2024 arrest had been made on a probable cause affidavit contradicted by three contemporaneous reports; (b) Rambin's December 2024 supplemental acknowledged misidentification; and (c) the May 10, 2025 entry had been made pursuant to an administrative order, not a judicial warrant. Gerten's investigatory directive to continue building the evidentiary case, under these circumstances, continued and compounded the unlawful seizure of Plaintiff without lawful basis.

*The Ex Parte Contempt Proceeding ---*

May Through December 2025}

On or about May 10, 2025---the same day as the unlawful home entry---Deputy District Attorney Clark sent an ex parte email to Judge James C. Thompson.

Without any motion pending before the court and without notice to Plaintiff, Judge Thompson directed the Washington County release office to seek a violation report against Plaintiff.

Thompson's direction to the release office---an administrative agency---to initiate enforcement proceedings against Plaintiff, based on an ex parte communication and outside any adversarial proceeding with no motion before the court, is an administrative act, not a judicial act. *Forrester v. White*, 484 U.S. 219, 228 (1988). Absolute judicial immunity does not attach.

\item On May 13, 2025---three days after the unlawful home entry---Deputy District Attorney Jade Sawyer (OSB \#250555) filed a Complaint for Imposition of Punitive Sanctions, Contempt---Violation of Release Agreement, in case 25CN02140, against Barry Trenell Washington, alleging contact with Plaintiff on May 10, 2025. The contact alleged was the contact observed during the unlawful home entry.

\item In June 2025, the court held a show cause hearing in case 25CN02140. Plaintiff received no notice of that hearing. Court notices concerning Plaintiff were sent to a residential address Plaintiff had not occupied for approximately ten years, and separately to the Office of Public Defense Commission in Salem, Oregon---an entity listed as Plaintiff's counsel of record as an administrative placeholder. Plaintiff never retained, requested, or was lawfully appointed OPDC as counsel. At all relevant times, Plaintiff was unrepresented.

\item On December 30, 2025---more than seven months after the alleged May 10, 2025 conduct---the State initiated the contempt proceeding against Plaintiff in case 25CN05790, predicated on the same contact observed during the May 10, 2025 unlawful home entry.

\item The contempt proceeding lacked a legally valid statutory predicate. Plaintiff was subject to a security release pursuant to

ORS 135.265. Oregon Revised Statute 135.290 bars a contempt proceeding predicated on conduct during a security release. The contempt proceeding was void on its face.

¶ Due process requires notice reasonably calculated, under all the circumstances, to apprise interested parties of the pendency of proceedings affecting their rights. *Mullane v. Central*

*Hanover Bank & Trust Co.*, 339 U.S. 306, 314 (1950). Washington County's court notification system directed notices concerning Plaintiff to a decade-old address and to an administrative placeholder entity Plaintiff never retained---while Plaintiff's actual, current address appeared in the court's own release documents. Proceedings affecting Plaintiff's liberty and her defense advanced without notice reasonably calculated to reach her.

¶ On June 10, 2025, Washington County employee Stiefer authored an email documenting the Clark-to-Thompson ex parte communication chain. The state withheld this email chain from Plaintiff in violation of *Brady v. Maryland*, 373 U.S. 83, 87 (1963).

¶ On December 29, 2025, bail revocation and an arrest warrant were issued. The warrant affidavit contained material defects, including altered contact information. Compounding warrants arising from the void contempt proceeding have restricted Plaintiff's liberty across all pending cases.

\item The warrant---the downstream product of the May 10, 2025 unlawful home entry and the void contempt proceeding---has been invoked in juvenile dependency proceeding 25JU04261 to justify Plaintiff's continued separation from her minor daughter. The Fourteenth Amendment protects a parent's liberty interest in the care, custody, and companionship of her child. \textit{Troxel v. Granville}, 530 U.S. 57, 65 (2000); \textit{Santosky v. Kramer}, 455 U.S. 745, 753 (1982). Plaintiff's separation from her daughter, sustained by the tainted warrant, constitutes ongoing harm proximately caused by the constitutional violations alleged herein. Plaintiff's claims against the Oregon Department of Human Services and its employees arising from the dependency proceeding are reserved for a separate action; the family separation is pled here as harm proximately caused by Defendants' conduct.

\end{paras}

\subsection\*{Records Suppression and Association-Based Targeting --- 2025 Through 2026}

\begin{paras}

\item Beginning May 15, 2025, Plaintiff submitted multiple public records requests to Washington County (including Request Nos. C008202 and C008691) seeking records regarding Officer Rolfe's communications with County officials and records regarding Community Corrections staffing and layoffs, which are necessary to verify the ``Rolfe

unavailable" recital in the administrative Order of Arrest.

\item Washington County imposed substantial fees on Plaintiff's records requests, including a fee of \ \$7,846.60 on the staffing and layoff records request (Request No.\ C008691, August 23, 2025), notwithstanding an existing indigency finding in Plaintiff's criminal proceedings.

\item On September 19, 2025, Washington County official Mendes denied Plaintiff's fee waiver request (the ``Mendes Denial"). The Mendes Denial stated as its basis that the County had evidence of Plaintiff's associations and her intended use of the records. The Mendes Denial is a written government admission that Washington County reviewed the content and purpose of Plaintiff's advocacy---including her associational identity---before denying access to public records.

\item The use of law enforcement intelligence data concerning a person's associational activities in making administrative fee determinations violates ORS 181A.250, which prohibits law enforcement agencies from collecting and using intelligence information against individuals on the basis of their exercise of constitutional rights and prohibits dissemination of such information to other agencies.

\item Plaintiff submitted additional court records waiver requests; fee waivers were denied in four instances despite an indigency finding.

As of March 27, 2026, Washington County official Johnston had provided

zero response to outstanding requests, constituting constructive denial under ORS 192.329.

\item The Mendes Denial and related fee impositions have prevented Plaintiff from accessing the Community Corrections staffing and layoff records that would allow her to verify or refute the ``Rolfe unavailable" recital---the stated predicate for the void administrative Order of Arrest and the May 10, 2025 unlawful home entry and arrest.  
\end{paras}

\subsection\*{Refusal to Rule on Demurrer and Imminent Trial}

\begin{paras}

\item Plaintiff filed a demurrer in case 24CR49043 challenging the indictment on multiple grounds, including the defective grand jury empanelment described in paragraphs 24--29. The Washington County Circuit Court has refused to rule on the demurrer and has acted as if the motion does not exist, in violation of ORS 1.050.

\item The court's refusal to rule on a pending demurrer challenging its own subject matter jurisdiction confirms that the state proceeding will not self-correct the constitutional violations described herein and that Plaintiff has no adequate remedy at law in state court.

\item Trial in case 24CR49043 is currently scheduled for July 17--18,

1. Plaintiff faces imminent prosecution under a void indictment, with no ruling on her pending challenge to the court's jurisdiction.

\end{paras}

% =====

% CLAIMS FOR RELIEF

% =====

\section\*{CLAIMS FOR RELIEF}

% — COUNT I —————

\subsection\*{COUNT I}

\subsubsection\*{Fourth Amendment --- False Arrest\}

42 U.S.C.\sect\ 1983\

(Against Defendants Rambin and Washington County)}

\begin{paras}

\item Plaintiff realleges and incorporates paragraphs 1 through 55.

\item The Fourth Amendment guarantees the right to be free from arrest

without probable cause. \textit{Dunaway v.\ New York},

442 U.S.\ 200, 208 (1979). A warrantless arrest is per se

unreasonable unless supported by probable cause at the moment of

arrest.

\item On September 18, 2024, Defendant Rambin arrested Plaintiff

without a warrant and without probable cause. Rambin's probable cause

affidavit attributed tag removal to Plaintiff---a conclusion

contradicted by three contemporaneous reports. The arrest was made

before the underlying investigation concluded. Rambin's own

December 27, 2024 supplemental report acknowledged the

misidentification, establishing that probable cause did not exist at the moment of arrest.

\item The right to be free from warrantless arrest without probable cause was clearly established as of September 18, 2024, by controlling authority any reasonable officer would have known.

\textit{Dunaway v. New York}, 442 U.S. 200 (1979);

\textit{Beck v. Ohio}, 379 U.S. 89, 91 (1964). No reasonable officer could have believed probable cause existed to arrest a suspect for conduct that three contemporaneous reports attributed to a different person, before the underlying investigation had concluded.

Rambin is not entitled to qualified immunity.

\item Defendant Washington County is liable under \textit{Monell

v. Dep't of Soc. Servs.}, 436 U.S. 658 (1978). The County maintained a custom or practice, so persistent and well-settled as to have the force of law, of authorizing arrests based on relay-chain probable cause determinations without requiring the arresting officer to independently verify the underlying factual basis. This custom is evidenced by, without limitation: (a) Rambin's September 18, 2024 arrest of Plaintiff at 9:42 p.m., before the investigating officer completed the underlying store investigation at approximately 10:00 p.m.; (b) the December 29, 2025 warrant affidavit, in which Rambin's own inference traveled through multiple County officials and

returned to Rambin presented as independent multi-agency corroboration, with no intermediary adding independent observation; and (c) the May 10, 2025 home entry executed on an administrative order entered into LEDS as a "felony warrant." Each incident reflects the same practice: County officers acting on relayed conclusions without independent verification. This custom was the moving force behind Plaintiff's unlawful arrest.

*Pembaur v. City of Cincinnati*, 475 U.S. 469, 480 (1986).

As a direct and proximate result of Defendants' conduct, Plaintiff suffered deprivation of liberty, emotional distress, reputational harm, financial loss, and ongoing prosecution under a void indictment, in an amount to be proved at trial.

% — COUNT II —

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COUNT II

Fourth Amendment --- Unlawful Home Entry

42 U.S.C. § 1983

(Against Defendants Does 1--4, Bineham, and Washington County)

Plaintiff realleges and incorporates paragraphs 1 through 55.

The Fourth Amendment prohibits warrantless, nonconsensual entry into a home to make an arrest. A judicial arrest warrant is required.

*Payton v. New York*, 445 U.S. 573, 576 (1980). An

administrative order of arrest under ORS 144.350 does not constitute a judicial arrest warrant and does not satisfy *Payton*.

Item On May 10, 2025, Defendants Does 1--4 and Bineham entered Plaintiff's home without a valid judicial warrant. The administrative Order of Arrest under ORS 144.350---misabeled in LEDS as a ``felony warrant"---did not authorize warrantless home entry. Plaintiff was on pretrial security release and retained full Fourth Amendment rights.

Item Defendant Bineham directed the entry. A supervisor who directs unconstitutional conduct by subordinates is personally liable under 42 U.S.C. \sect\ 1983. *Starr v. Baca*, 652 F.3d 1202, 1207 (9th Cir. 2011).

Item The right to be free from warrantless home entry to effect an arrest has been clearly established since *Payton v. New*

*York*, 445 U.S. 573 (1980), and *Steagald v. United States*, 451 U.S. 204, 211--12 (1981). Every reasonable officer as of May 10, 2025, would have known that an administrative order of arrest---issued by a corrections official, not a judicial officer, on a ``reasonable grounds" standard rather than a probable cause determination by a neutral magistrate---is not a judicial arrest warrant and does not authorize entry into a home. No exigent circumstances existed; any exigency arising after Plaintiff asked the officers to leave was officer-created and cannot justify the entry.

*Kentucky v. King*, 563 U.S. 452, 462 (2011). Defendants are not entitled to qualified immunity.

Defendant Washington County is liable under *Monell* for failing to train and supervise Community Corrections officers on the constitutional distinction between administrative orders of arrest and judicial arrest warrants under *Payton*.

*City of Canton v. Harris*, 489 U.S. 378, 388 (1989).

As a direct and proximate result of the unlawful home entry, Plaintiff was arrested, subjected to the void contempt proceeding, and suffered ongoing deprivation of liberty, emotional distress, legal harm, and separation from her minor daughter sustained by the warrant that is the downstream product of the entry, in an amount to be proved at trial.

% — COUNT III —————

**COUNT III**

**Fourth Amendment --- Unlawful Continued Seizure via  
Materially False Affidavit**

42 U.S.C. § 1983

(Against Defendants Rambin and Gerten)

Plaintiff realleges and incorporates paragraphs 1 through 55.

The Fourth Amendment governs unlawful pretrial detention and

continued seizure effected through materially false affidavits.

\textit{Manuel v. City of Joliet}, 580 U.S. 357, 364 (2017). A

law enforcement officer who submits or maintains a materially false affidavit to prolong a seizure violates the Fourth Amendment.

\textit{Hervey v. Estes}, 65 F.3d 784, 788 (9th Cir. 1995).

\item Defendant Rambin's probable cause affidavit contained materially false statements attributing conduct to Plaintiff that three contemporaneous reports contradicted. Rambin's December 2024 supplemental report establishes that Rambin knew or recklessly disregarded the inaccuracy. Despite this knowledge, prosecution on the basis of the affidavit continued, prolonging Plaintiff's seizure from September 18, 2024, through the present.

\item Defendant Gerten, acting in her investigatory capacity, directed Deputy Rambin to conduct a post-arrest investigation of the May 10, 2025 incident to develop an evidentiary basis for a release agreement violation---after knowing the original arrest was based on a defective probable cause affidavit. \textit{Buckley v. Fitzsimmons}, 509 U.S. 259, 273 (1993). This investigatory directive continued and compounded the unlawful seizure of Plaintiff without lawful basis.

\item Gerten additionally knew that Baker's grand jury testimony materially contradicted Rambin's sworn probable cause affidavit and failed to correct the false or misleading record before the grand

jury, in violation of *Napue v. Illinois*,  
360 U.S. 264, 269 (1959). This failure allowed prosecution---and  
with it, Plaintiff's continued seizure---to proceed on a false factual  
foundation.

As a direct and proximate result of Defendants' conduct,  
Plaintiff has been continuously and unlawfully seized since  
September 18, 2024, suffering deprivation of liberty, emotional  
distress, and ongoing legal harm, in an amount to be proved at trial.

% — COUNT IV —————

**COUNT IV**

**First Amendment --- Retaliation and Right to Petition**

42 U.S.C. § 1983

(Against Defendants Washington County and Does 5--10)

Plaintiff realleges and incorporates paragraphs 1 through 55.

The First Amendment protects the right to petition the  
government for redress of grievances and to seek access to government  
information free from viewpoint-based discrimination.

*BE&K Constr. Co. v. NLRB*, 536 U.S. 516, 524 (2002);

*Mendocino Envtl. Ctr. v. Mendocino County*,

192 F.3d 1283, 1300 (9th Cir. 1999).

Plaintiff exercised protected First Amendment rights by making

public records requests seeking records relevant to the legality of her arrest and prosecution; engaging in community advocacy; and filing court motions challenging official conduct, including the demurrer in case 24CR49043.

Item Washington County, acting through its officials including Mendes and Does 5--10, retaliated against Plaintiff's exercise of First Amendment rights by: (a) denying fee waivers based on the County's evidence of Plaintiff's associations and intended use (Mendes Denial, September 19, 2025); (b) using ORS 181A.250-prohibited law enforcement intelligence concerning Plaintiff's associations to inform administrative fee determinations; (c) imposing a fee of \$7,846.60 designed to prevent Plaintiff from accessing records material to her defense; and (d) failing to respond to records requests constituting constructive denial.

Item The Mendes Denial is direct documentary evidence of viewpoint-based government action: it states on its face that denial is grounded in evidence of Plaintiff's associations and intended use of the records---not in the technical scope of the request. This is content- and viewpoint-based government action.

Item Washington County's conduct would chill a person of ordinary firmness from continuing to exercise First Amendment rights to petition and to access government information.

\item As a direct and proximate result of Defendants' retaliatory conduct, Plaintiff has been denied records necessary to her defense, chilled in the exercise of constitutional rights, and suffered harm in an amount to be proved at trial.

\end{enumerate}

% — COUNT V —————

\subsection\*{COUNT V}

\subsubsection\*{Fourteenth Amendment --- Equal Protection\

Class of One / Association-Based Targeting\\

42 U.S.C.\ \sect\ 1983\\

(Against Defendants Washington County and Does 5--10)}

\begin{enumerate}

\item Plaintiff realleges and incorporates paragraphs 1 through 55.

\item The Equal Protection Clause of the Fourteenth Amendment

prohibits government entities from intentionally treating an

individual differently from similarly situated persons without

rational basis. \textit{Village of Willowbrook v.\ Olech},

528 U.S.\ 562, 564 (2000).

\item Washington County intentionally treated Plaintiff differently

from similarly situated individuals in the processing of public

records fee waivers. The Mendes Denial establishes that Plaintiff was

treated differently because of her associations and her intended use

of the records---grounds bearing no rational relationship to any

legitimate government interest in public records administration.

\item ORS 181A.250 prohibits law enforcement agencies from maintaining and disseminating intelligence files based on individuals' exercise of constitutional rights. Washington County's use of such intelligence in administrative fee decisions confirms that Plaintiff's differential treatment was motivated by her identity and advocacy, not by any content-neutral criterion.

\item As a direct and proximate result of Washington County's differential treatment, Plaintiff has been denied equal access to public records and has suffered harm in an amount to be proved at trial.

\end{enumerate}

% — COUNT VI —————

\subsection\*{COUNT VI}

\subsubsection\*{Monell --- Municipal Liability\

42 U.S.C.\sect\ 1983\\

(Against Defendant Washington County)}

\begin{enumerate}

\item Plaintiff realleges and incorporates paragraphs 1 through 55.

\item Defendant Washington County is liable for the constitutional violations described in this Complaint under \textit{Monell

v.\ Dep't of Soc.\ Servs.}, 436 U.S.\ 658 (1978), on three independent grounds.

**Item \textbf{Leg 1 --- Relay-Chain Probable Cause Custom:}**

Washington County maintained a custom or practice under which law enforcement officers effected felony arrests based on relay-chain probable cause reports, without requiring the arresting officer to independently verify the underlying factual basis. Plaintiff's September 18, 2024 arrest---made on an affidavit contradicted by three contemporaneous reports, before the investigation concluded---was carried out pursuant to this custom. This custom was the moving force behind the violation of Plaintiff's Fourth Amendment rights.

**Item \textbf{Leg 2 --- Association-Based Records Suppression**

Custom:} Washington County maintained a custom or practice of using law enforcement intelligence data gathered concerning individuals' associational activities and advocacy to direct administrative decisions, including public records fee determinations. The Mendes Denial (September 19, 2025) is direct documentary evidence of this custom---it states on its face that the fee denial was based on County evidence of Plaintiff's associations and intended use. This custom, operating through ORS 181A.250-prohibited intelligence sharing, was the moving force behind violations of Plaintiff's First and Fourteenth Amendment rights.

**Item \textbf{Leg 3 --- Failure to Train:}** Washington County failed

to train Community Corrections officers on the constitutional distinction between administrative orders of arrest under ORS 144.350 and judicial arrest warrants satisfying *Payton v. New York*, resulting in the unlawful May 10, 2025 home entry and arrest. *City of Canton v. Harris*, 489 U.S. 378, 388 (1989).

As a direct and proximate result of Washington County's customs, practices, and failures to train, Plaintiff suffered the constitutional violations described in each Count above, in amounts to be proved at trial.

— COUNT VII —

COUNT VII

Fourteenth Amendment --- Procedural Due Process

Ex Parte Initiation of Punitive Proceedings Without Notice

42 U.S.C. §1983

(Against Defendants Thompson and Clark, Individually)

Plaintiff realleges and incorporates paragraphs 1 through 55

and paragraphs 42 through 50 as if fully set forth herein.

The Fourteenth Amendment prohibits the government from depriving any person of liberty without due process of law. The minimum requirements of procedural due process are notice and an opportunity to be heard at a meaningful time and in a meaningful manner.

\textit{Mathews v. Eldridge}, 424 U.S. 319, 333 (1976). Due process requires notice reasonably calculated, under all the circumstances, to apprise interested parties of the pendency of proceedings affecting their rights and to afford them an opportunity to present their objections. \textit{Mullane v. Central Hanover Bank & Trust Co.}, 339 U.S. 306, 314 (1950).

\item On May 10, 2025, Defendant Clark---acting in her capacity as a Washington County Community Corrections supervisor, outside any pending adversarial proceeding, and without any motion before the court---sent an ex parte email to Defendant Judge James C. Thompson.

The content of that communication caused Thompson to act against

Plaintiff's liberty interests without any notice to Plaintiff and without any opportunity for Plaintiff to be heard.

\item Upon receiving Clark's ex parte communication, Defendant Thompson---without any motion pending before the court, without notice to Plaintiff, and without affording Plaintiff any opportunity to respond---directed the Washington County release office to seek a violation report against Plaintiff. This directive set in motion the contempt proceeding that ultimately resulted in case 25CN05790, filed December 30, 2025, which directly threatens Plaintiff's liberty.

\item Clark's initiation of the ex parte communication, and Thompson's direction to the release office based on that

communication, are administrative acts, not judicial or advocacy acts.

Under the functional test for judicial immunity, an act is judicial

only if it is (1) a function normally performed by a judge, and

(2) the parties dealt with the judge in his judicial capacity.

\textit{Stump v. Sparkman}, 435 U.S. 349, 362 (1978);

\textit{Bliven v. Hunt}, 579 F.3d 204, 212 (2d Cir. 2009).

Directing an administrative agency to initiate enforcement proceedings

against a litigant---based on an ex parte communication, outside any

adversarial proceeding, with no motion pending---is not a function

normally performed by a judge in his judicial capacity.

\textit{Forrester v. White}, 484 U.S. 219, 228 (1988). Absolute

judicial immunity does not attach to Thompson's conduct.

\item Defendant Clark is a Community Corrections supervisor with no

prosecutorial role. She is therefore entitled to qualified immunity

only. Clark's qualified immunity is defeated because the right to

notice and an opportunity to be heard before a criminal proceeding is

modified was clearly established at the time of her conduct.

\textit{Mullane v. Central Hanover Bank & Trust Co.},

339 U.S. 306 (1950); \textit{Mathews v. Eldridge},

424 U.S. 319 (1976). No reasonable official in Clark's position

could have believed that transmitting an ex parte communication to a

sitting judge---without notice to the affected party---was

constitutionally permissible.

\item The ex parte contempt chain was compounded by Washington County's court notification system, which directed all notices to Plaintiff to a residential address she had not occupied for approximately ten years and to an administrative placeholder entity she never retained---while Plaintiff's actual, current address appeared in the court's own release documents. Plaintiff received no notice of the June 2025 show cause hearing in case 25CN02140. Proceedings affecting Plaintiff's liberty advanced entirely without notice reasonably calculated to reach her.

\textit{Mullane}, 339 U.S.\ at 314.

\item The contempt proceeding initiated through this ex parte chain lacked a legally valid statutory predicate. Plaintiff was subject to a security release pursuant to ORS 135.265. ORS 135.290 bars a contempt proceeding predicated on conduct during a security release. The proceeding was void on its face---a fact that Thompson, as the presiding judge, and Clark, as the initiating supervisor, either knew or were deliberately indifferent to.

\item On June 10, 2025, Washington County employee Stiefer authored an email documenting the Clark-to-Thompson ex parte communication chain. The state withheld this email chain from Plaintiff in violation of \textit{Brady v.\ Maryland}, 373 U.S.\ 83, 87 (1963).

The withholding of this documentation---which is direct evidence of the due process violation alleged in this Count---further deprived Plaintiff of her ability to challenge the proceedings affecting her liberty.

\item As a direct and proximate result of Defendants Thompson's and Clark's conduct, Plaintiff was subjected to a void contempt proceeding, suffered deprivation of liberty, emotional distress, reputational harm, and ongoing legal harm, in an amount to be proved at trial.

\end{enumerate}

% — COUNT VIII —————

\subsection\*{COUNT VIII}

\subsubsection\*{Fourteenth Amendment --- Substantive and Procedural

Due Process\\

Knowing Use of False Grand Jury Testimony and Suppression of

Exculpatory Evidence\\

42 U.S.C.\ \sect\ 1983\\

(Against Defendant Gerten, Individually)}

\begin{enumerate}

\item Plaintiff realleges and incorporates paragraphs 1 through 55 and paragraphs 26 through 31 as if fully set forth herein.

\item The Fourteenth Amendment's Due Process Clause prohibits the

government from obtaining or maintaining a criminal prosecution through the knowing use of false or misleading evidence.

\textit{Napue v. Illinois}, 360 U.S. 264, 269 (1959) ("[T]he same result obtains when the State, although not soliciting false evidence, allows it to go uncorrected when it appears."). The government's knowing use of false testimony---or its failure to correct testimony it knows to be false---violates due process regardless of whether the testimony was technically elicited by the prosecutor. \textit{Id.}

\item The Fourteenth Amendment's Due Process Clause additionally requires the prosecution to disclose material exculpatory evidence to the defense. \textit{Brady v. Maryland}, 373 U.S. 83, 87 (1963).

Evidence is material if there is a reasonable probability that, had the evidence been disclosed, the result of the proceeding would have been different. \textit{United States v. Bagley}, 473 U.S. 667, 682 (1985).

\item On January 14, 2025, a Washington County grand jury returned a true bill in case 24CR49043. Defendant Gerten was the presenting prosecutor responsible for presenting the matter to the grand jury.

\item Witness Baker provided testimony before the grand jury. Baker's testimony materially contradicted Deputy David Rambin's sworn probable cause affidavit---the affidavit that formed the basis for Plaintiff's September 18, 2024 arrest and continued prosecution. The

contradiction was not peripheral; it went to the core factual predicate of the charge: the identification of Plaintiff as the person responsible for the conduct alleged.

\item Defendant Gerten knew of the contradiction between Baker's testimony and Rambin's affidavit at the time of the grand jury presentation. Specifically: (a) Gerten was present during Baker's testimony before the grand jury; (b) Gerten had access to Rambin's probable cause affidavit as the presenting prosecutor---it was the foundational document of the prosecution she was presenting; and (c) the contradiction between Baker's account and Rambin's affidavit was apparent on the face of the two documents. No reasonable prosecutor reviewing both documents could have failed to recognize the conflict.

\item Despite this knowledge, Gerten failed to correct the false or misleading impression created by Baker's testimony before the grand jury returned its true bill. This failure allowed the indictment to issue on a false factual foundation, in violation of

\textit{Napue v. Illinois}, 360 U.S. 264, 269 (1959). The indictment---and with it, Plaintiff's continued prosecution and deprivation of liberty---rests on a grand jury record that Gerten knew was materially false and misleading.

\item Gerten's failure to correct Baker's contradictory testimony is

an investigatory act, not an advocacy act. The duty to ensure the accuracy of evidence presented to a grand jury---and to correct known false impressions---arises before the initiation of formal adversarial proceedings and is part of the investigatory function.

\textit{Buckley v. Fitzsimmons}, 509 U.S. 259, 273 (1993).

Absolute prosecutorial immunity does not attach to this conduct.

\item Separately, the June 10, 2025 Stiefer email documenting the Clark-to-Thompson ex parte communication chain constitutes material exculpatory evidence under \textit{Brady v. Maryland}, 373 U.S. 83, 87 (1963): it is direct evidence of the unconstitutional ex parte initiation of the contempt proceeding against Plaintiff, and its disclosure would create a reasonable probability of a different outcome in the contempt proceedings and in the underlying criminal case. The state withheld this email chain from Plaintiff. Gerten, as the supervising prosecutor responsible for the prosecution of Plaintiff, was responsible for the disclosure obligations owed to Plaintiff under \textit{Brady}. The withholding of the Stiefer email constitutes a \textit{Brady} violation.

\item The right to be free from prosecution maintained through knowingly false grand jury testimony was clearly established as of January 14, 2025. \textit{Napue v. Illinois}, 360 U.S. 264 (1959); \textit{Giglio v. United States}, 405 U.S. 150 (1972).

The right to disclosure of material exculpatory evidence was clearly established as of June 10, 2025. \textit{Brady v. Maryland}, 373 U.S. 83 (1963); \textit{United States v. Bagley}, 473 U.S. 667 (1985). No reasonable prosecutor could have believed that knowingly allowing materially false testimony to stand uncorrected before a grand jury, or withholding direct evidence of an unconstitutional ex parte proceeding, was consistent with the Fourteenth Amendment. Gerten is not entitled to qualified immunity.

\item As a direct and proximate result of Gerten's conduct, Plaintiff has been subjected to prosecution under an indictment issued on a false factual foundation, has been denied material exculpatory evidence, has suffered continuous deprivation of liberty from September 18, 2024 through the present, and has suffered emotional distress, reputational harm, and financial loss, in an amount to be proved at trial.

\end{enumerate}

% =====

% PRAYER FOR RELIEF

% =====

\section\*{PRAYER FOR RELIEF}

\noindent WHEREFORE, Plaintiff Ashle' Penn respectfully requests that this Court enter judgment in her favor and against Defendants as

follows:

\bigskip

\noindent \textbf{A. \quad COMPENSATORY DAMAGES} against all Defendants, in amounts to be determined at trial, for: deprivation of liberty from September 18, 2024, to the present; emotional distress, anxiety, and psychological harm; reputational harm; financial losses incurred in defending against unlawful prosecution; and denial of access to public records and harm resulting therefrom.

\bigskip

\noindent \textbf{B. \quad PUNITIVE DAMAGES} against individual Defendants Ramin, Does 1--4, Bineham, Gerten, Thompson, and Clark in amounts sufficient to deter future constitutional violations, based on Defendants' reckless or callous indifference to Plaintiff's clearly established constitutional rights. \textit{Smith v. Wade}, 461 U.S. 30, 56 (1983).

\bigskip

\noindent \textbf{C. \quad DECLARATORY RELIEF} pursuant to 28 U.S.C. \S\ 2201--2202:

\begin{enumerate}[label=\arabic\*,leftmargin=0.75in,

itemsep=4pt,topsep=6pt]

\item A declaration that the January 14, 2025 indictment in Case

No. 24CR49043 is void \textit{ab initio}, the grand jury having

operated during a period---January 3 through January 31,  
2025---when no valid Presiding Judge Order authorized its existence;  
\\item A declaration that the Washington County Circuit Court has not  
acquired subject matter jurisdiction over Case No.\\ 24CR49043 on  
the basis of the void January 14, 2025 indictment;  
\\item A declaration that Plaintiff's September 18, 2024 arrest  
violated the Fourth Amendment;  
\\item A declaration that the May 10, 2025 warrantless home entry and  
arrest violated the Fourth Amendment;  
\\item A declaration that Washington County's use of law enforcement  
intelligence data in public records fee determinations violated  
ORS 181A.250 and the First and Fourteenth Amendments.

\\end{enumerate}

\\bigskip

\\noindent \\textbf{D.\\quad INJUNCTIVE RELIEF:}

\\begin{enumerate}[label=\\arabic\*.\\,leftmargin=0.75in,  
itemsep=4pt,topsep=6pt]

\\item An injunction barring Defendants from proceeding with  
prosecution of Plaintiff in Washington County Case No.\\ 24CR49043  
under the January 14, 2025 void indictment, pursuant to  
\\textit{Ex parte Young}, 209 U.S.\\ 123 (1908), as to official-  
capacity claims;

\item An injunction barring Washington County from using law enforcement intelligence data derived from Plaintiff's associational activities or exercise of constitutional rights in any administrative records or fee determination.

\end{enumerate}

\bigskip

\noindent \textbf{E.} \quad ATTORNEY FEES AND COSTS} pursuant to 42 U.S.C. \sect 1988 and any other applicable statute.

\bigskip

\noindent \textbf{F.} \quad SUCH OTHER AND FURTHER RELIEF} as this Court deems just and proper.

% =====

% JURY DEMAND

% =====

\section\*{DEMAND FOR JURY TRIAL}

Plaintiff Ashle' Penn demands a jury trial on all issues so triable pursuant to Rule 38 of the Federal Rules of Civil Procedure.

\bigskip\bigskip

\noindent Respectfully submitted,

\bigskip\bigskip\bigskip

\noindent Dated: \underline{\hspace{2in}}

\bigskip\bigskip

\noindent\rule{3in}{0.4pt}\\

\textbf{ASHLE' PENN}\\

Pro Se Plaintiff\\

\underline{\hspace{2.5in}} \textit{[Address]}\\

\underline{\hspace{2.5in}} \textit{[Phone]}\\

\href{mailto:edify@pennandpenn.com}{edify@pennandpenn.com}

\label{LastPage}

\end{document}

}

1/1

Here is a drop-in replacement for that preamble block. Swap the entire paras environment definition for this:

•paras environment — drop-in replacement

% — Numbered paragraph environment —————

% Usage: \begin{paras} \item text \end{paras}

% Replaces custom list with enumerate + enumitem for reliability

\newenvironment{paras}{%

\begin{enumerate}[

label=\arabic\*,

leftmargin=0.5in,

labelwidth=0.4in,

labelsep=0.1in,

itemsep=0pt,

parsep=0pt,

topsep=6pt,

resume % keeps numbering continuous across paras blocks

]%

}{%

\end{enumerate}%

}

What changed and why

| Old | New | Reason |
|-----|-----|--------|
|-----|-----|--------|

|                                   |  |  |
|-----------------------------------|--|--|
| Custom \newcounter + \begin{list} |  |  |
|-----------------------------------|--|--|

|                        |  |  |
|------------------------|--|--|
| enumerate via enumitem |  |  |
|------------------------|--|--|

|                                                                                        |  |  |
|----------------------------------------------------------------------------------------|--|--|
| enumitem is more robust; avoids the \usecounter conflict that likely caused your error |  |  |
|----------------------------------------------------------------------------------------|--|--|

|                      |  |  |
|----------------------|--|--|
| \usecounter{paranum} |  |  |
|----------------------|--|--|

|                 |  |  |
|-----------------|--|--|
| label=\arabic*. |  |  |
|-----------------|--|--|

|                                                                    |  |  |
|--------------------------------------------------------------------|--|--|
| enumitem handles the counter internally — no manual counter needed |  |  |
|--------------------------------------------------------------------|--|--|

|                      |  |  |
|----------------------|--|--|
| Manual counter reset |  |  |
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|            |  |  |
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| resume key |  |  |
|------------|--|--|

Picks up numbering where the last paras block left off, so your paragraph numbers run continuously across sections without any manual \setcounter calls

One usage note

Since you are switching from \para{text} to \item text, the only find-and-replace you need throughout the document body is:

\para{ → \item (and delete the closing } for each)

The \subparas environment already uses \item so those need no changes at all.

papa

also doesnt like the ampersand even with the slash?

1/1

The issue is that \& inside \subsubsection\*{} and similar heading commands can choke the compiler. The fix depends on where it's appearing:

In headings (\section, \subsection, \subsubsection)

Use \texorpdfstring to give XeLaTeX a PDF-safe version alongside the typeset version:

- ampersand fixes — headings and body

% — In section/subsection/subsubsection headings —————

% Replace this:

`\subsubsection*{BE&K Constr.\ Co.\ v.\ NLRB ...}`

% With this:

`\subsubsection*{\texorpdfstring{BE&K Constr.\ Co.\ v.\ NLRB}{BE&K Constr. Co. v. NLRB}}`

% — Simpler alternative: define a macro \_\_\_\_\_

% Add this to your preamble once:

`\newcommand{\amp}{\texorpdfstring{&}{&}}`

% Then use `\amp` anywhere an ampersand causes trouble:

`\subsubsection*{BE\amp K Constr.\ Co.\ v.\ NLRB}`

`\textit{Mullane v.\ Central Hanover Bank \amp{} Trust Co.}`

In body text

`\&` should work fine in body text. If it is still erroring there, the most likely culprit is that the ampersand appears inside a tabular or array environment where `&` is the column separator — in that case use `\&` or `{\&}`.

Quickest global fix

Add this single line to your preamble and then use `\amp` everywhere instead of `\&` or `\texorpdfstring` each time:

•preamble macro — single line addition

`\newcommand{\amp}{\texorpdfstring{&}{&}}`

Then your case name becomes:

`\textit{Mullane v.\ Central Hanover Bank \amp{} Trust Co.}`

and your heading becomes:

`\subsubsection*{BE\amp{}K Constr.\ Co.\ v.\ NLRB}`

That one macro handles every instance in the document without touching anything else.

papa

77: Missing `\endcsname` inserted. }

77: Missing `\begin{document}`. }

[illegible]

178: Missing \begin{document}. }

178: Too many }'s. }

300: Paragraph ended before \enit@enumerate@i was complete. ^^I^^I\begin{subparas}

300: Extra }, or forgotten \endgroup. ^^I^^I\begin{subparas}

366: Paragraph ended before \text@command was complete. ^^I^^I^^Iv.\ Monaghan}

366: Extra }, or forgotten \endgroup. ^^I^^I^^Iv.\ Monaghan}

709: Paragraph ended before \ttl@straight@i was complete. ^^I^^I

710: Too many }'s. ^^I^^IMay 10, 2025}

833: Paragraph ended before \ttl@straight@i was complete. ^^I^^I

834: Too many }'s. ^^I^^IMay Through December 2025}

918: Paragraph ended before \text@command was complete. ^^I^^I^^IHanover Bank & Trust Co.}

918: Extra }, or forgotten \endgroup. ^^I^^I^^IHanover Bank & Trust Co.}

981: Paragraph ended before \ttl@straight@i was complete. ^^I^^I

982: Too many }'s. ^^I^^I2025 Through 2026}

1101: Paragraph ended before \ttl@straight@i was complete. ^^I^^I

1104: Too many }'s. ...efendants Rambin and Washington County)}

1156: Paragraph ended before \text@command was complete. ^^I^^I^^Iv.\ Dep't of Soc.\ Servs.}

1156: Extra }, or forgotten \endgroup. ^^I^^I^^Iv.\ Dep't of Soc.\ Servs.}

1207: Paragraph ended before \ttl@straight@i was complete. ^^I^^I

1210: Too many }'s. ...s 1--4, Bineham, and Washington County)}

1248: Paragraph ended before \text@command was complete. ^^I^^I^^IYork}

1248: Extra }, or forgotten \endgroup. ^^I^^I^^IYork}

1299: Paragraph ended before \ttl@straight@i was complete. ^^I^^I

1304: Too many }'s. ...l(Against Defendants Rambin and Gerten)}

1379: Paragraph ended before \ttl@straight@i was complete. ^^I^^I

1382: Too many }'s. ...dants Washington County and Does 5--10)}

1461: Paragraph ended before \ttl@straight@i was complete. ^^I^^I

1466: Too many }'s. ...dants Washington County and Does 5--10)}

1521: Paragraph ended before \ttl@straight@i was complete. ^^I^^I

1524: Too many }'s. ...^l(Against Defendant Washington County)}

1534: Paragraph ended before \text@command was complete. ^^I^^I^^Iv.\ Dep't of Soc.\ Servs.}

1534: Extra }, or forgotten \endgroup. ^^I^^I^^Iv.\ Dep't of Soc.\ Servs.}

1559: Paragraph ended before \MT@prot@check@F@ was complete. ^^I^^I^^I

1560: Extra }, or forgotten \endgroup. ^^I^^I^^ICustom:}

1607: Paragraph ended before \ttl@straight@i was complete. ^^I^^I

1612: Too many }'s. ...dants Thompson and Clark, Individually)}

1638: Paragraph ended before \text@command was complete. ^^I^^I^^IBank & Trust Co.}

1638: Extra }, or forgotten \endgroup. ^^I^^I^^IBank & Trust Co.}

: Label `LastPage' multiply defined.

220: Overfull \hbox (20.76613pt too wide) in paragraph

: Overfull \vbox (419.39223pt too high) has occurred while \output is active []

: \headheight is too small (12.0pt): Make it at least 13.59999pt, for example:

\setlength{\headheight}{13.59999pt}.





: \headheight is too small (12.0pt): Make it at least 13.59999pt, for example:  
\setlength{\headheight}{13.59999pt}.  
: There were multiply-defined labels.

for this:

% =====

% Penn v. Washington County — 42 U.S.C. § 1983 Complaint

% XeLaTeX source — U.S. District Court, District of Oregon

% =====

\documentclass[12pt,letterpaper]{article}

% — Core packages —————

\usepackage{fontspec} % XeLaTeX font selection

\usepackage{microtype} % Microtypographic refinements

\usepackage{geometry} % Page margins

\usepackage{setspace} % Line spacing

\usepackage{parskip} % Paragraph spacing

\usepackage{enumitem} % List customization

\usepackage{titlesec} % Section heading formatting

\usepackage{fancyhdr} % Headers and footers

\usepackage{lastpage} % "Page X of Y"

\usepackage{hyperref} % Hyperlinks (mailto, etc.)

\usepackage{xcolor} % Color support

\usepackage{array} % Enhanced table columns

\usepackage{booktabs} % Professional table rules

`\usepackage{ragged2e}` % Improved ragged-right

`\usepackage{indentfirst}` % Indent first paragraph of sections

`\usepackage{etoolbox}` % Patching commands

`\usepackage{amsmath}` % Math (for § symbols if needed)

`\usepackage{textcomp}` % Text companion symbols

`\usepackage{unicode-math}` % Unicode math fonts (XeLaTeX)

% — Fonts —————

% Times New Roman is the federal court standard

`\setmainfont{Times New Roman}`

`\setsansfont{Arial}`

`\setmonofont{Courier New}`

% — Page geometry (D. Or. Local Rules: 1-inch margins) —————

`\geometry{`

`\singlespacing` % caption block is single-spaced

% — Court caption —————

`\begin{center}`

`\textbf{IN THE UNITED STATES DISTRICT COURT}\n`

`\textbf{FOR THE DISTRICT OF OREGON}\n`

`\textbf{PORTLAND DIVISION}`

`\end{center}`

`\bigskip`

`\noindent`

`\begin{tabular}{@{}p{3.2in}@{\hspace{0.1in}}l@{}}`

ASHLE' PENN, & Case No.: \underline{\hspace{1.5in}}\][4pt]

\hspace{0.3in}\textit{Plaintiff}, & \][4pt]

v. & \textbf{COMPLAINT FOR}\][4pt]

WASHINGTON COUNTY, OREGON; & \textbf{VIOLATION OF CIVIL RIGHTS}\][4pt]

DEPUTY DAVID RAMBIN; & \textbf{(42 U.S.C.\ \sect\ 1983)}\][4pt]

ALICIA GERTEN; & \][4pt]

JUDGE JAMES C.\ THOMPSON; & \textbf{JURY TRIAL DEMANDED}\][4pt]

MOLLY BINEHAM; & \][4pt]

SHEILA CLARK; & \][4pt]

DOES 1--10, & \][4pt]

\hspace{0.3in}\textit{Defendants}. & \\\end{tabular}

\bigskip\bigskip

\doublespacing % body is double-spaced

% =====

% PRELIMINARY STATEMENT

% =====

\section\*{PRELIMINARY STATEMENT}

\begin{paras}

\item This action arises from a coordinated pattern of constitutional

violations by Washington County officials against Plaintiff, AshLe'

Penn. Those violations began on September 18, 2024, when Washington

County deputies racially profiled Plaintiff and arrested her without a warrant and without probable cause. They continue through the present day, as Plaintiff remains subject to ongoing prosecution under a charging instrument issued by a defectively constituted grand jury operating without lawful authority.

Plaintiff brings this action pursuant to 42 U.S.C. § 1983 for violations of her rights under the First, Fourth, and Fourteenth Amendments to the United States Constitution, seeking compensatory damages, punitive damages against individual Defendants, declaratory relief, and injunctive relief.

Younger abstention does not bar this action. This Court's intervention is warranted notwithstanding the pending state criminal proceeding in Washington County Case No. 24CR49043. *Younger* is inapplicable on two independent grounds. *See* *Younger v. Harris*, 401 U.S. 37, 43–54 (1971) (establishing abstention doctrine and enumerating exceptions for void proceedings, bad faith, and inadequate state remedy).

*begin{subparas}*

*item* *Younger* presupposes a state court proceeding conducted pursuant to lawful authority and subject matter jurisdiction. The indictment in Case No. 24CR49043 was returned by a grand jury on January 14, 2025, during a period when no valid Presiding Judge Order

authorized the grand jury's existence---PJO 325 expired January 3, 2025; PJO 350 did not take effect until January 31, 2025. Court administration confirmed this gap in writing. Under

\textit{State v. Lawrence}, 12 Or. 297 (1885), a grand jury operating without lawful authority cannot issue a valid true bill.

The indictment is void \textit{ab initio}. The Washington County Circuit Court has not acquired subject matter jurisdiction over this matter, and there is no legitimate state proceeding to which this Court should defer. \textit{See} \textit{Kugler v. Helfant}, 421 U.S. 117, 124--25 (1975) (abstention inappropriate where state court lacks jurisdiction over subject matter of proceeding).

\item In the alternative, the prosecution falls within \textit{Younger}'s bad faith and harassment exception. The arrest was made on a probable cause affidavit contradicted by three contemporaneous reports. Prosecution continued after the arresting officer admitted misidentification in writing. The prosecutor knew a grand jury witness's testimony contradicted the sworn affidavit and failed to correct it. The state circuit court has refused to rule on Plaintiff's pending demurrer challenging its subject matter jurisdiction, treating the motion as nonexistent in violation of ORS 1.050. These facts establish prosecution maintained without hope of a valid conviction. \textit{See} \textit{Dombrowski v. Pfister},

380 U.S.\ 479, 490 (1965) (bad faith exception applies where prosecution is maintained as part of a plan to harass or to deter exercise of constitutional rights, without hope of valid conviction).

\end{subparas}

\item As to Plaintiff's claims seeking damages, \textit{Younger}

abstention does not apply in any event. \textit{Deakins

v.\ Monaghan}, 484 U.S.\ 193, 201--04 (1988) (federal court must stay, not dismiss, damages claims not cognizable in state forum).

\item Plaintiff's juvenile dependency proceeding (25JU04261) involves

distinct constitutional claims against different state actors and is

reserved for a separate federal action.

\end{paras}

% =====

% PARTIES

% =====

\section\*{PARTIES}

\begin{paras}

\item Plaintiff \textbf{ASHLE' PENN} is a resident of Washington

County, Oregon. She is self-represented in this action. At all times

relevant to this Complaint, Plaintiff was a private citizen with no

criminal conviction.

\item Defendant \textbf{WASHINGTON COUNTY, OREGON} is a municipal

corporation organized under Oregon law, operating the Washington County

Sheriff's Office (WCSO), Washington County Community Corrections (WCCC), and the Washington County District Attorney's Office.

Washington County is a "person" within the meaning of

42 U.S.C. § 1983. *Monell v. Dep't of Soc. Servs.*, 436 U.S. 658, 690 (1978).

Defendant **DEPUTY DAVID RAMBIN** ("Rambin") is or was at all relevant times a deputy with the Washington County Sheriff's Office. Rambin is sued in his individual capacity for acts taken under color of state law.

Defendants **DOES 1--4** are Washington County Community Corrections officers who entered Plaintiff's home on May 10, 2025, identities currently unknown to Plaintiff. Plaintiff will amend this Complaint to substitute their true names when ascertained through discovery. Does 1--4 are sued in their individual capacities.

Defendant **MOLLY BINEHAM** ("Bineham") is or was at all relevant times an officer or supervisor with Washington County Community Corrections who directed the May 10, 2025 entry into Plaintiff's home. Bineham is sued in her individual capacity.

Defendant **ALICIA GERTEN** ("Gerten") is or was at all relevant times a Deputy District Attorney for Washington County. Gerten is sued in her individual capacity for investigatory acts only.

The specific conduct alleged---(a) directing Deputy Rambin to conduct a

post-arrest investigation to determine whether Plaintiff violated her release agreement, documented in Rambin's own written report, and (b) failing to correct grand jury testimony Gerten knew contradicted the sworn probable cause affidavit---constitutes investigatory function, not advocacy, to which only qualified immunity attaches.

\textit{Buckley v. Fitzsimmons}, 509 U.S. 259, 273 (1993).

\item Defendant \textbf{JUDGE JAMES C. THOMPSON} ("Thompson") is or was at all relevant times a judge of the Washington County Circuit Court. Thompson is sued in his individual capacity for administrative acts only. The specific conduct alleged---directing the Washington County release office to seek a violation report against Plaintiff based on an ex parte email communication, without any pending motion before the court and without notice to Plaintiff---is an administrative act, not a judicial act, to which absolute judicial immunity does not attach. \textit{Forrester v. White}, 484 U.S. 219, 228 (1988).

\item Defendant \textbf{SHEILA CLARK} ("Clark") is or was at all relevant times a supervisor employed by Washington County Community Corrections, acting under color of state law at all relevant times. Clark is sued in her individual capacity. As a Community Corrections supervisor, Clark exercises no prosecutorial function and is entitled to qualified immunity only.

\item Defendants \textbf{DOES 5--10} are persons whose identities are currently unknown to Plaintiff who participated in the constitutional violations described herein. Plaintiff will amend to substitute their true names when ascertained.

\end{paras}

% =====

% JURISDICTION AND VENUE

% =====

\section\*{JURISDICTION AND VENUE}

\begin{paras}

\item This Court has subject matter jurisdiction under 28 U.S.C.\sect\ 1331 (federal question) and 28 U.S.C.\sect\ 1343(a)(3) (civil rights). The claims arise under 42 U.S.C.\sect\ 1983 and the First, Fourth, and Fourteenth Amendments to the United States Constitution.

\item Venue is proper in the Portland Division under 28 U.S.C.\sect\ 1391(b) because all events giving rise to Plaintiff's claims occurred in Washington County, Oregon, within this district and division.

\item The applicable statute of limitations is Oregon's two-year personal injury statute, ORS 12.110(1), as applied to \sect\ 1983 claims. \textit{Wilson v. Garcia}, 471 U.S.\ 261 (1985). The

earliest accruing claim---false arrest under Count I---accrued no earlier than September 18, 2024. \textit{Wallace v. Kato}, 549 U.S. 384, 388 (2007). Each remaining claim accrued later: the unlawful home entry claim (Count II) accrued May 10, 2025; the continued-seizure claim (Count III) alleges an ongoing violation continuing to the present; the First Amendment retaliation and Equal Protection claims (Counts IV--V) accrued no earlier than September 19, 2025 (the Mendes Denial). Every claim in this Complaint is timely filed within two years of accrual.

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% STATEMENT OF FACTS

% =====

\section\*{STATEMENT OF FACTS}

\subsection\*{Background}

\begin{paras}

\item Plaintiff Ashle' Penn is a Washington County resident and community advocate. At all times relevant to this Complaint, Penn had no criminal conviction. She is the subject of criminal cases 24CR27775 and 24CR49043, contempt proceeding 25CN05790, and juvenile dependency proceeding 25JU04261---all arising from the conduct of Defendants described herein.

\item At all relevant times, each Defendant acted under color of state

law within the meaning of 42 U.S.C. § 1983.

#### **The Misidentification Arrest --- September 18, 2024**

On September 18, 2024, at approximately 9:42 p.m., Washington

County Sheriff's Office Deputy Rambin arrested Plaintiff Ashle' Penn.

The arrest was made before the underlying investigation by Officer Orozco had concluded.

Rambin's probable cause affidavit attributed the conduct at issue---specifically, tag removal---to Plaintiff Penn. This attribution was contradicted by at least three contemporaneous incident reports documenting the same event.

No valid judicial arrest warrant had been issued for Plaintiff at the time of the arrest. The arrest was warrantless.

On December 27, 2024, Rambin filed a supplemental report acknowledging that the original attribution may have been a misidentification.

In the same December 27, 2024 supplemental report, Rambin directed further evidence gathering concerning Plaintiff---after the arrest had already occurred and after the grand jury presentation was already scheduled.

Rambin's December 27, 2024 misidentification acknowledgment

predates the January 14, 2025 grand jury presentation. The acknowledgment was not disclosed to the grand jury.

\item As a direct result of the warrantless arrest without probable cause, Plaintiff was seized and subjected to ongoing criminal prosecution in case 24CR49043, suffering deprivation of liberty, emotional distress, reputational harm, and financial loss.

\end{paras}

\subsection\*{The Defective Grand Jury --- January 14, 2025}

\begin{paras}

\item On January 14, 2025, a Washington County grand jury returned a true bill in case 24CR49043.

\item No valid Presiding Judge Order authorizing the grand jury's existence was in effect on January 14, 2025. Presiding Judge Order 325 expired on or about January 3, 2025. Presiding Judge Order 350 did not take effect until on or about January 31, 2025.

\underline{\hspace{2in}}, a Washington County court administrator, confirmed this 28-day gap in writing.

\item A grand jury operating without a valid presiding judge order is not a lawfully constituted grand jury under Oregon law.

\textit{State v. Lawrence}, 12 Or. 297 (1885). A true bill returned by such a grand jury is void \textit{ab initio} and confers no subject matter jurisdiction on the Washington County Circuit Court.

\item Witness \underline{\hspace{2in}} ("Baker") provided testimony

before the grand jury. Baker's testimony materially contradicted Deputy Rambin's sworn probable cause affidavit. Deputy District Attorney Gerten was responsible for presenting the matter to the grand jury and was aware of Baker's testimony and its conflict with Rambin's affidavit. Gerten failed to correct the false or misleading impression created by the conflicting testimony, in violation of the due process principle established in *Napue v. Illinois*, 360 U.S. 264, 269 (1959).

Item The grand jury recording was provided to Plaintiff's then-counsel Anna Lasher. Plaintiff requested her complete client file from Lasher; Lasher stated the file would be produced within two weeks and never produced it. Plaintiff intends to file a bar complaint regarding Lasher's failure to produce the client file. As a result, Plaintiff has been denied access to the grand jury record to which she is entitled.

Item Because the January 14, 2025 indictment was returned by a grand jury without lawful authority to sit, it is void. The Washington County Circuit Court has not acquired subject matter jurisdiction over case 24CR49043.

*The Administrative Order and Unlawful Home Entry ---*  
May 10, 2025

\item In approximately November 2024, Washington County Community Corrections Officer \underline{\hspace{1in}} Rolfe made a single attempt to contact a Washington County official regarding Plaintiff's alleged release violation and made no subsequent contact attempt.

\item On the basis of Rolfe's single-contact attempt, an administrative Order of Arrest was issued under ORS 144.350---not a judicial arrest warrant. The order recited that Officer Rolfe was ``unavailable" as the predicate for administrative issuance. Rolfe's Community Corrections position was subsequently eliminated through a layoff. Washington County Community Corrections staffing and layoff records are the only evidence capable of verifying the ``unavailable" recital in the administrative order.

\item The administrative Order of Arrest was entered into the Law Enforcement Data System (LEDS) as a ``felony warrant." This characterization was materially inaccurate. An administrative order of arrest under ORS 144.350 is not a judicial warrant within the meaning of the Fourth Amendment.

\item On May 10, 2025, Washington County Community Corrections Officers Does 1--4, acting under the direction of Defendant Bineham, entered Plaintiff's home. Plaintiff was on pretrial security release pursuant to ORS 135.265 and was not subject to post-conviction supervision conditions. She retained full Fourth Amendment rights

against warrantless home entry. No valid judicial arrest warrant authorized entry into Plaintiff's home.

\item \textit{Payton v. New York}, 445 U.S. 573, 576 (1980), requires a judicial arrest warrant---not an administrative order---to enter a home to effect an arrest. An administrative order of arrest under ORS 144.350 does not satisfy \textit{Payton}'s warrant requirement. The May 10, 2025 entry into Plaintiff's home was unconstitutional.

\item The contact observed during the May 10, 2025 unlawful home entry became the sole factual predicate for the contempt proceeding subsequently filed against Plaintiff on December 30, 2025.

\textit{See infra} paragraphs 40--47.  
\end{paras}

\subsection\*{DDA Gerten's Post-Arrest Investigatory Directive}

\begin{paras}

\item Following the May 10, 2025 entry and arrest, Deputy District Attorney Gerten directed Deputy Rambin to review the incident to determine whether Plaintiff had violated the terms of her release agreement.

\item This directive is documented in Rambin's own written report, which discloses that the District Attorney's office requested that Rambin review the May 10, 2025 incident and that Rambin complied with

that request.

\item Directing a law enforcement officer to conduct a post-arrest investigation to build an evidentiary record for potential prosecution is an investigatory function, not an advocacy function.

\textit{Buckley v. Fitzsimmons}, 509 U.S. 259, 273 (1993).

Absolute prosecutorial immunity does not attach to this conduct.

\item At the time Gerten issued this directive, she was aware that:

(a) the September 18, 2024 arrest had been made on a probable cause affidavit contradicted by three contemporaneous reports; (b) Rambin's December 2024 supplemental acknowledged misidentification; and (c) the May 10, 2025 entry had been made pursuant to an administrative order, not a judicial warrant. Gerten's investigatory directive to continue building the evidentiary case, under these circumstances, continued and compounded the unlawful seizure of Plaintiff without lawful basis.

\subsection\*{The Ex Parte Contempt Proceeding ---

May Through December 2025}

\begin{paras}

\item On or about May 10, 2025---the same day as the unlawful home entry---Deputy District Attorney Clark sent an ex parte email to Judge James C. Thompson.

\item Without any motion pending before the court and without notice to Plaintiff, Judge Thompson directed the Washington County release office

to seek a violation report against Plaintiff.

\item Thompson's direction to the release office---an administrative agency---to initiate enforcement proceedings against Plaintiff, based on an ex parte communication and outside any adversarial proceeding with no motion before the court, is an administrative act, not a judicial act. \textit{Forrester v. White}, 484 U.S. 219, 228 (1988). Absolute judicial immunity does not attach.

\item On May 13, 2025---three days after the unlawful home entry---Deputy District Attorney Jade Sawyer (OSB \#250555) filed a Complaint for Imposition of Punitive Sanctions, Contempt---Violation of Release Agreement, in case 25CN02140, against Barry Trenell Washington, alleging contact with Plaintiff on May 10, 2025. The contact alleged was the contact observed during the unlawful home entry.

\item In June 2025, the court held a show cause hearing in case 25CN02140. Plaintiff received no notice of that hearing. Court notices concerning Plaintiff were sent to a residential address Plaintiff had not occupied for approximately ten years, and separately to the Office of Public Defense Commission in Salem, Oregon---an entity listed as Plaintiff's counsel of record as an administrative placeholder. Plaintiff never retained, requested, or was lawfully appointed OPDC as counsel. At all relevant times, Plaintiff was

unrepresented.

\item On December 30, 2025---more than seven months after the alleged May 10, 2025 conduct---the State initiated the contempt proceeding against Plaintiff in case 25CN05790, predicated on the same contact observed during the May 10, 2025 unlawful home entry.

\item The contempt proceeding lacked a legally valid statutory predicate. Plaintiff was subject to a security release pursuant to ORS 135.265. Oregon Revised Statute 135.290 bars a contempt proceeding predicated on conduct during a security release. The contempt proceeding was void on its face.

\item Due process requires notice reasonably calculated, under all the circumstances, to apprise interested parties of the pendency of proceedings affecting their rights. \textit{Mullane v. Central

Hanover Bank & Trust Co.}, 339 U.S. 306, 314 (1950). Washington County's court notification system directed notices concerning Plaintiff to a decade-old address and to an administrative placeholder entity Plaintiff never retained---while Plaintiff's actual, current address appeared in the court's own release documents. Proceedings affecting Plaintiff's liberty and her defense advanced without notice reasonably calculated to reach her.

\item On June 10, 2025, Washington County employee Stiefer authored an email documenting the Clark-to-Thompson ex parte communication chain.

The state withheld this email chain from Plaintiff in violation of

\textit{Brady v. Maryland}, 373 U.S. 83, 87 (1963).

\item On December 29, 2025, bail revocation and an arrest warrant were issued. The warrant affidavit contained material defects, including altered contact information. Compounding warrants arising from the void contempt proceeding have restricted Plaintiff's liberty across all pending cases.

\item The warrant---the downstream product of the May 10, 2025 unlawful home entry and the void contempt proceeding---has been invoked in juvenile dependency proceeding 25JU04261 to justify Plaintiff's continued separation from her minor daughter. The Fourteenth Amendment protects a parent's liberty interest in the care, custody, and companionship of her child. \textit{Troxel v. Granville}, 530 U.S. 57, 65 (2000); \textit{Santosky v. Kramer}, 455 U.S. 745, 753 (1982). Plaintiff's separation from her daughter, sustained by the tainted warrant, constitutes ongoing harm proximately caused by the constitutional violations alleged herein. Plaintiff's claims against the Oregon Department of Human Services and its employees arising from the dependency proceeding are reserved for a separate action; the family separation is pled here as harm proximately caused by Defendants' conduct.

\end{paras}

\subsection\*{Records Suppression and Association-Based Targeting ---

2025 Through 2026}

\begin{paras}

\item Beginning May 15, 2025, Plaintiff submitted multiple public records requests to Washington County (including Request Nos.\ C008202 and C008691) seeking records regarding Officer Rolfe's communications with County officials and records regarding Community Corrections staffing and layoffs, which are necessary to verify the ``Rolfe unavailable" recital in the administrative Order of Arrest.

\item Washington County imposed substantial fees on Plaintiff's records requests, including a fee of \ \$7,846.60 on the staffing and layoff records request (Request No.\ C008691, August 23, 2025), notwithstanding an existing indigency finding in Plaintiff's criminal proceedings.

\item On September 19, 2025, Washington County official Mendes denied Plaintiff's fee waiver request (the ``Mendes Denial"). The Mendes Denial stated as its basis that the County had evidence of Plaintiff's associations and her intended use of the records. The Mendes Denial is a written government admission that Washington County reviewed the content and purpose of Plaintiff's advocacy---including her associational identity---before denying access to public records.

\item The use of law enforcement intelligence data concerning a person's associational activities in making administrative fee

determinations violates ORS 181A.250, which prohibits law enforcement agencies from collecting and using intelligence information against individuals on the basis of their exercise of constitutional rights and prohibits dissemination of such information to other agencies.

\item Plaintiff submitted additional court records waiver requests; fee waivers were denied in four instances despite an indigency finding.

As of March 27, 2026, Washington County official Johnston had provided zero response to outstanding requests, constituting constructive denial under ORS 192.329.

\item The Mendes Denial and related fee impositions have prevented Plaintiff from accessing the Community Corrections staffing and layoff records that would allow her to verify or refute the ``Rolfe unavailable" recital---the stated predicate for the void administrative Order of Arrest and the May 10, 2025 unlawful home entry and arrest.  
\end{paras}

\subsection\*{Refusal to Rule on Demurrer and Imminent Trial}

\begin{paras}

\item Plaintiff filed a demurrer in case 24CR49043 challenging the indictment on multiple grounds, including the defective grand jury empanelment described in paragraphs 24--29. The Washington County Circuit Court has refused to rule on the demurrer and has acted as if the motion does not exist, in violation of ORS 1.050.

\item The court's refusal to rule on a pending demurrer challenging its own subject matter jurisdiction confirms that the state proceeding will not self-correct the constitutional violations described herein and that Plaintiff has no adequate remedy at law in state court.

\item Trial in case 24CR49043 is currently scheduled for July 17--18,

1. Plaintiff faces imminent prosecution under a void indictment, with no ruling on her pending challenge to the court's jurisdiction.  
\end{paras}

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% CLAIMS FOR RELIEF

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\section\*{CLAIMS FOR RELIEF}

% — COUNT I —————

\subsection\*{COUNT I}

\subsubsection\*{Fourth Amendment --- False Arrest\}

42 U.S.C.\sect\ 1983\\

(Against Defendants Rambin and Washington County)}

\begin{paras}

\item Plaintiff realleges and incorporates paragraphs 1 through 55.

\item The Fourth Amendment guarantees the right to be free from arrest without probable cause. \textit{Dunaway v.\ New York},

442 U.S.\ 200, 208 (1979). A warrantless arrest is per se

unreasonable unless supported by probable cause at the moment of

arrest.

¶ On September 18, 2024, Defendant Rambin arrested Plaintiff without a warrant and without probable cause. Rambin's probable cause affidavit attributed tag removal to Plaintiff---a conclusion contradicted by three contemporaneous reports. The arrest was made before the underlying investigation concluded. Rambin's own December 27, 2024 supplemental report acknowledged the misidentification, establishing that probable cause did not exist at the moment of arrest.

¶ The right to be free from warrantless arrest without probable cause was clearly established as of September 18, 2024, by controlling authority any reasonable officer would have known.

\textit{Dunaway v. New York}, 442 U.S. 200 (1979);

\textit{Beck v. Ohio}, 379 U.S. 89, 91 (1964). No reasonable officer could have believed probable cause existed to arrest a suspect for conduct that three contemporaneous reports attributed to a different person, before the underlying investigation had concluded.

Rambin is not entitled to qualified immunity.

¶ Defendant Washington County is liable under \textit{Monell v. Dep't of Soc. Servs.}, 436 U.S. 658 (1978). The County maintained a custom or practice, so persistent and well-settled as to have the force of law, of authorizing arrests based on relay-chain

probable cause determinations without requiring the arresting officer to independently verify the underlying factual basis. This custom is evidenced by, without limitation: (a) Rambin's September 18, 2024 arrest of Plaintiff at 9:42 p.m., before the investigating officer completed the underlying store investigation at approximately 10:00 p.m.; (b) the December 29, 2025 warrant affidavit, in which Rambin's own inference traveled through multiple County officials and returned to Rambin presented as independent multi-agency corroboration, with no intermediary adding independent observation; and (c) the May 10, 2025 home entry executed on an administrative order entered into LEDS as a "felony warrant." Each incident reflects the same practice: County officers acting on relayed conclusions without independent verification. This custom was the moving force behind Plaintiff's unlawful arrest.

*Pembaur v. City of Cincinnati*, 475 U.S. 469, 480 (1986).

As a direct and proximate result of Defendants' conduct, Plaintiff suffered deprivation of liberty, emotional distress, reputational harm, financial loss, and ongoing prosecution under a void indictment, in an amount to be proved at trial.

% — COUNT II —

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**COUNT II**

\subsubsection\*{Fourth Amendment --- Unlawful Home Entry\

42 U.S.C.\sect\ 1983\

(Against Defendants Does 1--4, Bineham, and Washington County)}

\begin{paras}

\item Plaintiff realleges and incorporates paragraphs 1 through 55.

\item The Fourth Amendment prohibits warrantless, nonconsensual entry into a home to make an arrest. A judicial arrest warrant is required.

\textit{Payton v.\ New York}, 445 U.S.\ 573, 576 (1980). An

administrative order of arrest under ORS 144.350 does not constitute a judicial arrest warrant and does not satisfy \textit{Payton}.

\item On May 10, 2025, Defendants Does 1--4 and Bineham entered Plaintiff's home without a valid judicial warrant. The administrative Order of Arrest under ORS 144.350---misabeled in LEDS as a ``felony warrant"---did not authorize warrantless home entry. Plaintiff was on pretrial security release and retained full Fourth Amendment rights.

\item Defendant Bineham directed the entry. A supervisor who directs unconstitutional conduct by subordinates is personally liable under

42 U.S.C.\sect\ 1983. \textit{Starr v.\ Baca},

652 F.3d 1202, 1207 (9th Cir.\ 2011).

\item The right to be free from warrantless home entry to effect an arrest has been clearly established since \textit{Payton v.\ New

York}, 445 U.S.\ 573 (1980), and \textit{Steagald v.\ United States},

451 U.S.\ 204, 211--12 (1981). Every reasonable officer as of

May 10, 2025, would have known that an administrative order of arrest---issued by a corrections official, not a judicial officer, on a ``reasonable grounds" standard rather than a probable cause determination by a neutral magistrate---is not a judicial arrest warrant and does not authorize entry into a home. No exigent circumstances existed; any exigency arising after Plaintiff asked the officers to leave was officer-created and cannot justify the entry.

\textit{Kentucky v. King}, 563 U.S. 452, 462 (2011). Defendants are not entitled to qualified immunity.

\item Defendant Washington County is liable under \textit{Monell} for failing to train and supervise Community Corrections officers on the constitutional distinction between administrative orders of arrest and judicial arrest warrants under \textit{Payton}.

\textit{City of Canton v. Harris}, 489 U.S. 378, 388 (1989).

\item As a direct and proximate result of the unlawful home entry, Plaintiff was arrested, subjected to the void contempt proceeding, and suffered ongoing deprivation of liberty, emotional distress, legal harm, and separation from her minor daughter sustained by the warrant that is the downstream product of the entry, in an amount to be proved at trial.

\end{paras}

\subsection\*{COUNT III}

\subsubsection\*{Fourth Amendment --- Unlawful Continued Seizure via  
Materially False Affidavit\}

42 U.S.C.\ \sect\ 1983\}

(Against Defendants Rambin and Gerten)}

\begin{enumerate}

\item Plaintiff realleges and incorporates paragraphs 1 through 55.

\item The Fourth Amendment governs unlawful pretrial detention and  
continued seizure effected through materially false affidavits.

\textit{Manuel v.\ City of Joliet}, 580 U.S.\ 357, 364 (2017). A

law enforcement officer who submits or maintains a materially false  
affidavit to prolong a seizure violates the Fourth Amendment.

\textit{Hervey v.\ Estes}, 65 F.3d 784, 788 (9th Cir.\ 1995).

\item Defendant Rambin's probable cause affidavit contained materially  
false statements attributing conduct to Plaintiff that three  
contemporaneous reports contradicted. Rambin's December 2024  
supplemental report establishes that Rambin knew or recklessly  
disregarded the inaccuracy. Despite this knowledge, prosecution on  
the basis of the affidavit continued, prolonging Plaintiff's seizure  
from September 18, 2024, through the present.

\item Defendant Gerten, acting in her investigatory capacity, directed  
Deputy Rambin to conduct a post-arrest investigation of the May 10,  
2025 incident to develop an evidentiary basis for a release agreement

violation---after knowing the original arrest was based on a defective probable cause affidavit. \textit{Buckley v. Fitzsimmons}, 509 U.S. 259, 273 (1993). This investigatory directive continued and compounded the unlawful seizure of Plaintiff without lawful basis.

\item Gerten additionally knew that Baker's grand jury testimony materially contradicted Rambin's sworn probable cause affidavit and failed to correct the false or misleading record before the grand jury, in violation of \textit{Napue v. Illinois}, 360 U.S. 264, 269 (1959). This failure allowed prosecution---and with it, Plaintiff's continued seizure---to proceed on a false factual foundation.

\item As a direct and proximate result of Defendants' conduct, Plaintiff has been continuously and unlawfully seized since September 18, 2024, suffering deprivation of liberty, emotional distress, and ongoing legal harm, in an amount to be proved at trial.

\end{enumerate}

% — COUNT IV —————

\subsection\*{COUNT IV}

\subsubsection\*{First Amendment --- Retaliation and Right to Petition\}

42 U.S.C. \sect 1983\

(Against Defendants Washington County and Does 5--10)}

\begin{enumerate}

\item Plaintiff realleges and incorporates paragraphs 1 through 55.

\item The First Amendment protects the right to petition the government for redress of grievances and to seek access to government information free from viewpoint-based discrimination.

\textit{BE\&K Constr.\ Co.\ v.\ NLRB}, 536 U.S.\ 516, 524 (2002);

\textit{Mendocino Env'tl.\ Ctr.\ v.\ Mendocino County},

192 F.3d 1283, 1300 (9th Cir.\ 1999).

\item Plaintiff exercised protected First Amendment rights by making public records requests seeking records relevant to the legality of her arrest and prosecution; engaging in community advocacy; and filing court motions challenging official conduct, including the demurrer in case 24CR49043.

\item Washington County, acting through its officials including Mendes and Does 5--10, retaliated against Plaintiff's exercise of First Amendment rights by: (a) denying fee waivers based on the County's evidence of Plaintiff's associations and intended use (Mendes Denial, September 19, 2025); (b) using ORS 181A.250-prohibited law enforcement intelligence concerning Plaintiff's associations to inform administrative fee determinations; (c) imposing a fee of \ \$7,846.60 designed to prevent Plaintiff from accessing records material to her defense; and (d) failing to respond to records requests constituting constructive denial.

\item The Mendes Denial is direct documentary evidence of

viewpoint-based government action: it states on its face that denial is grounded in evidence of Plaintiff's associations and intended use of the records---not in the technical scope of the request. This is content- and viewpoint-based government action.

Item Washington County's conduct would chill a person of ordinary firmness from continuing to exercise First Amendment rights to petition and to access government information.

Item As a direct and proximate result of Defendants' retaliatory conduct, Plaintiff has been denied records necessary to her defense, chilled in the exercise of constitutional rights, and suffered harm in an amount to be proved at trial.

\end{enumerate}

% — COUNT V —————

\subsection\*{COUNT V}

\subsubsection\*{Fourteenth Amendment --- Equal Protection\

Class of One / Association-Based Targeting\\

42 U.S.C.\sect\ 1983\\

(Against Defendants Washington County and Does 5--10)}

\begin{enumerate}

Item Plaintiff realleges and incorporates paragraphs 1 through 55.

Item The Equal Protection Clause of the Fourteenth Amendment prohibits government entities from intentionally treating an individual differently from similarly situated persons without

rational basis. \textit{Village of Willowbrook v. Olech},

528 U.S. 562, 564 (2000).

Item Washington County intentionally treated Plaintiff differently from similarly situated individuals in the processing of public records fee waivers. The Mendes Denial establishes that Plaintiff was treated differently because of her associations and her intended use of the records---grounds bearing no rational relationship to any legitimate government interest in public records administration.

Item ORS 181A.250 prohibits law enforcement agencies from maintaining and disseminating intelligence files based on individuals' exercise of constitutional rights. Washington County's use of such intelligence in administrative fee decisions confirms that Plaintiff's differential treatment was motivated by her identity and advocacy, not by any content-neutral criterion.

Item As a direct and proximate result of Washington County's differential treatment, Plaintiff has been denied equal access to public records and has suffered harm in an amount to be proved at trial.

\end{enumerate}

% — COUNT VI \_\_\_\_\_

\subsection\*{COUNT VI}

\subsubsection\*{Monell --- Municipal Liability\}

42 U.S.C. \sect\ 1983\

(Against Defendant Washington County)}

\begin{enumerate}

\item Plaintiff realleges and incorporates paragraphs 1 through 55.

\item Defendant Washington County is liable for the constitutional

violations described in this Complaint under \textit{Monell

v.\ Dep't of Soc.\ Servs.}, 436 U.S.\ 658 (1978), on three independent grounds.

\item \textbf{Leg 1 --- Relay-Chain Probable Cause Custom:}

Washington County maintained a custom or practice under which law enforcement officers effected felony arrests based on relay-chain probable cause reports, without requiring the arresting officer to independently verify the underlying factual basis. Plaintiff's September 18, 2024 arrest---made on an affidavit contradicted by three contemporaneous reports, before the investigation concluded---was carried out pursuant to this custom. This custom was the moving force behind the violation of Plaintiff's Fourth Amendment rights.

\item \textbf{Leg 2 --- Association-Based Records Suppression

Custom:} Washington County maintained a custom or practice of using law enforcement intelligence data gathered concerning individuals' associational activities and advocacy to direct administrative decisions, including public records fee determinations. The Mendes

Denial (September 19, 2025) is direct documentary evidence of this custom---it states on its face that the fee denial was based on County evidence of Plaintiff's associations and intended use. This custom, operating through ORS 181A.250-prohibited intelligence sharing, was the moving force behind violations of Plaintiff's First and Fourteenth Amendment rights.

\item \textbf{Leg 3 --- Failure to Train:} Washington County failed to train Community Corrections officers on the constitutional distinction between administrative orders of arrest under ORS 144.350 and judicial arrest warrants satisfying \textit{Payton v. New York}, resulting in the unlawful May 10, 2025 home entry and arrest.

\textit{City of Canton v. Harris}, 489 U.S. 378, 388 (1989).

\item As a direct and proximate result of Washington County's customs, practices, and failures to train, Plaintiff suffered the constitutional violations described in each Count above, in amounts to be proved at trial.

\end{enumerate}

% --- COUNT VII

---

\subsection\*{COUNT VII}

\subsubsection\*{Fourteenth Amendment --- Procedural Due Process\

Ex Parte Initiation of Punitive Proceedings Without Notice\

42 U.S.C. \S1983\

(Against Defendants Thompson and Clark, Individually)}  
\begin{enumerate}

\item Plaintiff realleges and incorporates paragraphs 1 through 55

and paragraphs 42 through 50 as if fully set forth herein.

\item The Fourteenth Amendment prohibits the government from depriving

any person of liberty without due process of law. The minimum

requirements of procedural due process are notice and an opportunity

to be heard at a meaningful time and in a meaningful manner.

\textit{Mathews v. Eldridge}, 424 U.S. 319, 333 (1976). Due

process requires notice reasonably calculated, under all the

circumstances, to apprise interested parties of the pendency of

proceedings affecting their rights and to afford them an opportunity

to present their objections. \textit{Mullane v. Central Hanover

Bank & Trust Co.}, 339 U.S. 306, 314 (1950).

\item On May 10, 2025, Defendant Clark---acting in her capacity as a

Washington County Community Corrections supervisor, outside any

pending adversarial proceeding, and without any motion before the

court---sent an ex parte email to Defendant Judge James C. Thompson.

The content of that communication caused Thompson to act against

Plaintiff's liberty interests without any notice to Plaintiff and without any opportunity for Plaintiff to be heard.

\item Upon receiving Clark's ex parte communication, Defendant

Thompson---without any motion pending before the court, without notice

to Plaintiff, and without affording Plaintiff any opportunity to respond---directed the Washington County release office to seek a violation report against Plaintiff. This directive set in motion the contempt proceeding that ultimately resulted in case 25CN05790, filed December 30, 2025, which directly threatens Plaintiff's liberty.

Item Clark's initiation of the ex parte communication, and Thompson's direction to the release office based on that communication, are administrative acts, not judicial or advocacy acts.

Under the functional test for judicial immunity, an act is judicial only if it is (1) a function normally performed by a judge, and (2) the parties dealt with the judge in his judicial capacity.

*Stump v. Sparkman*, 435 U.S. 349, 362 (1978);

*Bliven v. Hunt*, 579 F.3d 204, 212 (2d Cir. 2009).

Directing an administrative agency to initiate enforcement proceedings against a litigant---based on an ex parte communication, outside any adversarial proceeding, with no motion pending---is not a function normally performed by a judge in his judicial capacity.

*Forrester v. White*, 484 U.S. 219, 228 (1988). Absolute judicial immunity does not attach to Thompson's conduct.

Item Defendant Clark is a Community Corrections supervisor with no prosecutorial role. She is therefore entitled to qualified immunity only. Clark's qualified immunity is defeated because the right to

notice and an opportunity to be heard before a criminal proceeding is modified was clearly established at the time of her conduct.

\textit{Mullane v. Central Hanover Bank & Trust Co.},

339 U.S. 306 (1950); \textit{Mathews v. Eldridge},

424 U.S. 319 (1976). No reasonable official in Clark's position could have believed that transmitting an ex parte communication to a sitting judge---without notice to the affected party---was constitutionally permissible.

\item The ex parte contempt chain was compounded by Washington County's court notification system, which directed all notices to Plaintiff to a residential address she had not occupied for approximately ten years and to an administrative placeholder entity she never retained---while Plaintiff's actual, current address appeared in the court's own release documents. Plaintiff received no notice of the June 2025 show cause hearing in case 25CN02140. Proceedings affecting Plaintiff's liberty advanced entirely without notice reasonably calculated to reach her.

\textit{Mullane}, 339 U.S. at 314.

\item The contempt proceeding initiated through this ex parte chain lacked a legally valid statutory predicate. Plaintiff was subject to a security release pursuant to ORS 135.265. ORS 135.290 bars a contempt proceeding predicated on conduct during a security release.

The proceeding was void on its face---a fact that Thompson, as the presiding judge, and Clark, as the initiating supervisor, either knew or were deliberately indifferent to.

\item On June 10, 2025, Washington County employee Stiefer authored an email documenting the Clark-to-Thompson ex parte communication chain. The state withheld this email chain from Plaintiff in violation of \textit{Brady v. Maryland}, 373 U.S. 83, 87 (1963).

The withholding of this documentation---which is direct evidence of the due process violation alleged in this Count---further deprived Plaintiff of her ability to challenge the proceedings affecting her liberty.

\item As a direct and proximate result of Defendants Thompson's and Clark's conduct, Plaintiff was subjected to a void contempt proceeding, suffered deprivation of liberty, emotional distress, reputational harm, and ongoing legal harm, in an amount to be proved at trial.

\end{enumerate}

% — COUNT VIII —————

\subsection\*{COUNT VIII}

\subsubsection\*{Fourteenth Amendment --- Substantive and Procedural

Due Process\\

Knowing Use of False Grand Jury Testimony and Suppression of

Exculpatory Evidence\

42 U.S.C.\sect\ 1983\

(Against Defendant Gerten, Individually)}

\begin{enumerate}

\item Plaintiff realleges and incorporates paragraphs 1 through 55

and paragraphs 26 through 31 as if fully set forth herein.

\item The Fourteenth Amendment's Due Process Clause prohibits the

government from obtaining or maintaining a criminal prosecution

through the knowing use of false or misleading evidence.

\textit{Napue v.\ Illinois}, 360 U.S.\ 264, 269 (1959) ("[T]he same

result obtains when the State, although not soliciting false evidence,

allows it to go uncorrected when it appears."). The government's

knowing use of false testimony---or its failure to correct testimony

it knows to be false---violates due process regardless of whether the

testimony was technically elicited by the prosecutor. \textit{Id.}

\item The Fourteenth Amendment's Due Process Clause additionally

requires the prosecution to disclose material exculpatory evidence to

the defense. \textit{Brady v.\ Maryland}, 373 U.S.\ 83, 87 (1963).

Evidence is material if there is a reasonable probability that, had

the evidence been disclosed, the result of the proceeding would have

been different. \textit{United States v.\ Bagley},

473 U.S.\ 667, 682 (1985).

\item On January 14, 2025, a Washington County grand jury returned a true bill in case 24CR49043. Defendant Gerten was the presenting prosecutor responsible for presenting the matter to the grand jury.

\item Witness Baker provided testimony before the grand jury. Baker's testimony materially contradicted Deputy David Rambin's sworn probable cause affidavit---the affidavit that formed the basis for Plaintiff's September 18, 2024 arrest and continued prosecution. The contradiction was not peripheral; it went to the core factual predicate of the charge: the identification of Plaintiff as the person responsible for the conduct alleged.

\item Defendant Gerten knew of the contradiction between Baker's testimony and Rambin's affidavit at the time of the grand jury presentation. Specifically: (a) Gerten was present during Baker's testimony before the grand jury; (b) Gerten had access to Rambin's probable cause affidavit as the presenting prosecutor---it was the foundational document of the prosecution she was presenting; and (c) the contradiction between Baker's account and Rambin's affidavit was apparent on the face of the two documents. No reasonable prosecutor reviewing both documents could have failed to recognize the conflict.

\item Despite this knowledge, Gerten failed to correct the false or misleading impression created by Baker's testimony before the grand

jury returned its true bill. This failure allowed the indictment to issue on a false factual foundation, in violation of *Napue v. Illinois*, 360 U.S. 264, 269 (1959). The indictment---and with it, Plaintiff's continued prosecution and deprivation of liberty---rests on a grand jury record that Gerten knew was materially false and misleading.

Gerten's failure to correct Baker's contradictory testimony is an investigatory act, not an advocacy act. The duty to ensure the accuracy of evidence presented to a grand jury---and to correct known false impressions---arises before the initiation of formal adversarial proceedings and is part of the investigatory function.

*Buckley v. Fitzsimmons*, 509 U.S. 259, 273 (1993).

Absolute prosecutorial immunity does not attach to this conduct.

Separately, the June 10, 2025 Stiefer email documenting the Clark-to-Thompson ex parte communication chain constitutes material exculpatory evidence under *Brady v. Maryland*, 373 U.S. 83, 87 (1963): it is direct evidence of the unconstitutional ex parte initiation of the contempt proceeding against Plaintiff, and its disclosure would create a reasonable probability of a different outcome in the contempt proceedings and in the underlying criminal case. The state withheld this email chain from Plaintiff. Gerten, as the supervising prosecutor responsible for

the prosecution of Plaintiff, was responsible for the disclosure obligations owed to Plaintiff under *Brady*. The withholding of the Stiefer email constitutes a *Brady* violation.

Item The right to be free from prosecution maintained through knowingly false grand jury testimony was clearly established as of January 14, 2025. *Napue v. Illinois*, 360 U.S. 264 (1959); *Giglio v. United States*, 405 U.S. 150 (1972).

The right to disclosure of material exculpatory evidence was clearly established as of June 10, 2025. *Brady v. Maryland*, 373 U.S. 83 (1963); *United States v. Bagley*, 473 U.S. 667 (1985). No reasonable prosecutor could have believed that knowingly allowing materially false testimony to stand uncorrected before a grand jury, or withholding direct evidence of an unconstitutional ex parte proceeding, was consistent with the Fourteenth Amendment. Gerten is not entitled to qualified immunity.

Item As a direct and proximate result of Gerten's conduct, Plaintiff has been subjected to prosecution under an indictment issued on a false factual foundation, has been denied material exculpatory evidence, has suffered continuous deprivation of liberty from September 18, 2024 through the present, and has suffered emotional distress, reputational harm, and financial loss, in an amount to be proved at trial.

\end{enumerate}

% =====

% PRAYER FOR RELIEF

% =====

\section\*{PRAYER FOR RELIEF}

\noindent WHEREFORE, Plaintiff Ashle' Penn respectfully requests that  
this Court enter judgment in her favor and against Defendants as  
follows:

\bigskip

\noindent \textbf{A.} COMPENSATORY DAMAGES against all  
Defendants, in amounts to be determined at trial, for: deprivation of  
liberty from September 18, 2024, to the present; emotional distress,  
anxiety, and psychological harm; reputational harm; financial losses  
incurred in defending against unlawful prosecution; and denial of  
access to public records and harm resulting therefrom.

\bigskip

\noindent \textbf{B.} PUNITIVE DAMAGES against individual  
Defendants Ramin, Does 1--4, Bineham, Gerten, Thompson, and Clark in  
amounts sufficient to deter future constitutional violations, based on  
Defendants' reckless or callous indifference to Plaintiff's clearly  
established constitutional rights. \textit{Smith v. Wade},  
461 U.S. 30, 56 (1983).

\bigskip

\noindent \textbf{C.} \quad DECLARATORY RELIEF} pursuant to

28 U.S.C. \S\ 2201--2202:

\begin{enumerate}[label=\arabic\*.,leftmargin=0.75in,

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\item A declaration that the January 14, 2025 indictment in Case

No. \ 24CR49043 is void \textit{ab initio}, the grand jury having

operated during a period---January 3 through January 31,

2025---when no valid Presiding Judge Order authorized its existence;

\item A declaration that the Washington County Circuit Court has not

acquired subject matter jurisdiction over Case No. \ 24CR49043 on

the basis of the void January 14, 2025 indictment;

\item A declaration that Plaintiff's September 18, 2024 arrest

violated the Fourth Amendment;

\item A declaration that the May 10, 2025 warrantless home entry and

arrest violated the Fourth Amendment;

\item A declaration that Washington County's use of law enforcement

intelligence data in public records fee determinations violated

ORS 181A.250 and the First and Fourteenth Amendments.

\end{enumerate}

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\noindent \textbf{D.} \quad INJUNCTIVE RELIEF:}

\begin{enumerate}[label=\arabic\*.,leftmargin=0.75in,

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\item An injunction barring Defendants from proceeding with  
prosecution of Plaintiff in Washington County Case No.\ 24CR49043

under the January 14, 2025 void indictment, pursuant to

\textit{Ex parte Young}, 209 U.S.\ 123 (1908), as to official-  
capacity claims;

\item An injunction barring Washington County from using law  
enforcement intelligence data derived from Plaintiff's associational  
activities or exercise of constitutional rights in any  
administrative records or fee determination.

\end{enumerate}

\bigskip

\noindent \textbf{E.\quad ATTORNEY FEES AND COSTS} pursuant to  
42 U.S.C.\ \sect\ 1988 and any other applicable statute.

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\noindent \textbf{F.\quad SUCH OTHER AND FURTHER RELIEF} as this  
Court deems just and proper.

% =====

% JURY DEMAND

% =====

\section\*{DEMAND FOR JURY TRIAL}

Plaintiff Ashle' Penn demands a jury trial on all issues so triable  
pursuant to Rule 38 of the Federal Rules of Civil Procedure.

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\noindent Respectfully submitted,

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\noindent Dated: \underline{\hspace{2in}}

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\textbf{ASHLE' PENN}\

Pro Se Plaintiff\

\underline{\hspace{2.5in}} \textit{[Address]}\

\underline{\hspace{2.5in}} \textit{[Phone]}\

\href{mailto:edify@pennandpenn.com}{edify@pennandpenn.com}

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\textbf{IN THE UNITED STATES DISTRICT COURT}\

\textbf{FOR THE DISTRICT OF OREGON}\

\textbf{PORTLAND DIVISION}

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ASHLE' PENN, & Case No.: \underline{\hspace{1.5in}}\}[4pt]

\hspace{0.3in}\textit{Plaintiff}, & \][4pt]

v. & \textbf{COMPLAINT FOR}\][4pt]

WASHINGTON COUNTY, OREGON; & \textbf{VIOLATION OF CIVIL RIGHTS}\][4pt]

DEPUTY DAVID RAMBIN; & \textbf{(42 U.S.C.\ \sect\ 1983)}\][4pt]

ALICIA GERTEN; & \][4pt]

JUDGE JAMES C.\ THOMPSON; & \textbf{JURY TRIAL DEMANDED}\][4pt]

MOLLY BINEHAM; & \][4pt]

SHEILA CLARK; & \][4pt]

DOES 1--10, & \][4pt]

\hspace{0.3in}\textit{Defendants}. & \]

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% PRELIMINARY STATEMENT

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\section\*{PRELIMINARY STATEMENT}

\begin{paras}

\item This action arises from a coordinated pattern of constitutional violations by Washington County officials against Plaintiff, AshLe' Penn. Those violations began on September 18, 2024, when Washington County deputies racially profiled Plaintiff and arrested her without a warrant and without probable cause. They continue through the present day, as Plaintiff remains subject to ongoing prosecution under a charging instrument issued by a defectively constituted grand jury operating without lawful authority.

\item Plaintiff brings this action pursuant to 42 U.S.C.\sect\ 1983 for violations of her rights under the First, Fourth, and Fourteenth Amendments to the United States Constitution, seeking compensatory damages, punitive damages against individual Defendants, declaratory relief, and injunctive relief.

\item Younger abstention does not bar this action. This Court's intervention is warranted notwithstanding the pending state criminal proceeding in Washington County Case No.\ 24CR49043. \textit{Younger}

is inapplicable on two independent grounds. \textit{See}

\textit{Younger v. Harris}, 401 U.S. 37, 43--54 (1971) (establishing abstention doctrine and enumerating exceptions for void proceedings, bad faith, and inadequate state remedy).

\begin{subparas}

\item \textit{Younger} presupposes a state court proceeding conducted pursuant to lawful authority and subject matter jurisdiction. The indictment in Case No. 24CR49043 was returned by a grand jury on January 14, 2025, during a period when no valid Presiding Judge Order authorized the grand jury's existence---PJO 325 expired January 3, 2025; PJO 350 did not take effect until January 31, 2025. Court administration confirmed this gap in writing. Under \textit{State v. Lawrence}, 12 Or. 297 (1885), a grand jury operating without lawful authority cannot issue a valid true bill. The indictment is void \textit{ab initio}. The Washington County Circuit Court has not acquired subject matter jurisdiction over this matter, and there is no legitimate state proceeding to which this Court should defer. \textit{See} \textit{Kugler v. Helfant}, 421 U.S. 117, 124--25 (1975) (abstention inappropriate where state court lacks jurisdiction over subject matter of proceeding).

\item In the alternative, the prosecution falls within

\textit{Younger}'s bad faith and harassment exception. The arrest

was made on a probable cause affidavit contradicted by three contemporaneous reports. Prosecution continued after the arresting officer admitted misidentification in writing. The prosecutor knew a grand jury witness's testimony contradicted the sworn affidavit and failed to correct it. The state circuit court has refused to rule on Plaintiff's pending demurrer challenging its subject matter jurisdiction, treating the motion as nonexistent in violation of ORS 1.050. These facts establish prosecution maintained without hope of a valid conviction. \textit{See} \textit{Dombrowski v. Pfister}, 380 U.S.\ 479, 490 (1965) (bad faith exception applies where prosecution is maintained as part of a plan to harass or to deter exercise of constitutional rights, without hope of valid conviction).

\end{subparas}

\item As to Plaintiff's claims seeking damages, \textit{Younger}

abstention does not apply in any event. \textit{Deakins

v.\ Monaghan}, 484 U.S.\ 193, 201--04 (1988) (federal court must stay, not dismiss, damages claims not cognizable in state forum).

\item Plaintiff's juvenile dependency proceeding (25JU04261) involves

distinct constitutional claims against different state actors and is

reserved for a separate federal action.

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% PARTIES

% =====

\section\*{PARTIES}

\begin{paras}

\item Plaintiff \textbf{ASHLE' PENN} is a resident of Washington County, Oregon. She is self-represented in this action. At all times relevant to this Complaint, Plaintiff was a private citizen with no criminal conviction.

\item Defendant \textbf{WASHINGTON COUNTY, OREGON} is a municipal corporation organized under Oregon law, operating the Washington County Sheriff's Office (WCSO), Washington County Community Corrections (WCCC), and the Washington County District Attorney's Office.

Washington County is a ``person" within the meaning of 42 U.S.C.\sect\ 1983. \textit{Monell v.\ Dep't of Soc.\ Servs.}, 436 U.S.\ 658, 690 (1978).

\item Defendant \textbf{DEPUTY DAVID RAMBIN} (``Rambin") is or was at all relevant times a deputy with the Washington County Sheriff's Office. Rambin is sued in his individual capacity for acts taken under color of state law.

\item Defendants \textbf{DOES 1--4} are Washington County Community Corrections officers who entered Plaintiff's home on May 10, 2025, identities currently unknown to Plaintiff. Plaintiff will amend this

Complaint to substitute their true names when ascertained through discovery. Does 1--4 are sued in their individual capacities.

\item Defendant \textbf{MOLLY BINEHAM} ("Bineham") is or was at all relevant times an officer or supervisor with Washington County Community Corrections who directed the May 10, 2025 entry into Plaintiff's home. Bineham is sued in her individual capacity.

\item Defendant \textbf{ALICIA GERTEN} ("Gerten") is or was at all relevant times a Deputy District Attorney for Washington County.

Gerten is sued in her individual capacity for investigatory acts only.

The specific conduct alleged---(a) directing Deputy Rambin to conduct a post-arrest investigation to determine whether Plaintiff violated her release agreement, documented in Rambin's own written report, and (b) failing to correct grand jury testimony Gerten knew contradicted the sworn probable cause affidavit---constitutes investigatory function, not advocacy, to which only qualified immunity attaches.

\textit{Buckley v. Fitzsimmons}, 509 U.S. 259, 273 (1993).

\item Defendant \textbf{JUDGE JAMES C. THOMPSON} ("Thompson") is or was at all relevant times a judge of the Washington County Circuit Court. Thompson is sued in his individual capacity for administrative acts only. The specific conduct alleged---directing the Washington County release office to seek a violation report against Plaintiff based on an ex parte email communication, without any pending motion

before the court and without notice to Plaintiff---is an administrative act, not a judicial act, to which absolute judicial immunity does not attach. \textit{Forrester v. White}, 484 U.S. 219, 228 (1988).

\item Defendant \textbf{SHEILA CLARK} ("Clark") is or was at all relevant times a supervisor employed by Washington County Community Corrections, acting under color of state law at all relevant times. Clark is sued in her individual capacity. As a Community Corrections supervisor, Clark exercises no prosecutorial function and is entitled to qualified immunity only.

\item Defendants \textbf{DOES 5--10} are persons whose identities are currently unknown to Plaintiff who participated in the constitutional violations described herein. Plaintiff will amend to substitute their true names when ascertained.

\end{paras}

% =====

% JURISDICTION AND VENUE

% =====

\section\*{JURISDICTION AND VENUE}

\begin{paras}

\item This Court has subject matter jurisdiction under 28 U.S.C. \sect 1331 (federal question) and 28 U.S.C. \sect 1343(a)(3) (civil rights). The claims arise under

42 U.S.C.\sect\ 1983 and the First, Fourth, and Fourteenth

Amendments to the United States Constitution.

\item Venue is proper in the Portland Division under

28 U.S.C.\sect\ 1391(b) because all events giving rise to

Plaintiff's claims occurred in Washington County, Oregon, within this

district and division.

\item The applicable statute of limitations is Oregon's two-year

personal injury statute, ORS 12.110(1), as applied to \sect\ 1983

claims. \textit{Wilson v. Garcia}, 471 U.S.\ 261 (1985). The

earliest accruing claim---false arrest under Count I---accrued no

earlier than September 18, 2024. \textit{Wallace v. Kato},

549 U.S.\ 384, 388 (2007). Each remaining claim accrued later: the

unlawful home entry claim (Count II) accrued May 10, 2025; the

continued-seizure claim (Count III) alleges an ongoing violation

continuing to the present; the First Amendment retaliation and Equal

Protection claims (Counts IV--V) accrued no earlier than September 19,

2025 (the Mendes Denial). Every claim in this Complaint is timely

filed within two years of accrual.

\end{paras}

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% STATEMENT OF FACTS

% =====

## `\section*{STATEMENT OF FACTS}`

### `\subsection*{Background}`

`\begin{paras}`

`\item` Plaintiff Ashle' Penn is a Washington County resident and community advocate. At all times relevant to this Complaint, Penn had no criminal conviction. She is the subject of criminal cases 24CR27775 and 24CR49043, contempt proceeding 25CN05790, and juvenile dependency proceeding 25JU04261---all arising from the conduct of Defendants described herein.

`\item` At all relevant times, each Defendant acted under color of state law within the meaning of 42 U.S.C. \sect\ 1983.

`\end{paras}`

### `\subsection*{The Misidentification Arrest --- September 18, 2024}`

`\begin{paras}`

`\item` On September 18, 2024, at approximately 9:42 p.m., Washington County Sheriff's Office Deputy Rambin arrested Plaintiff Ashle' Penn. The arrest was made before the underlying investigation by Officer Orozco had concluded.

`\item` Rambin's probable cause affidavit attributed the conduct at issue---specifically, tag removal---to Plaintiff Penn. This attribution was contradicted by at least three contemporaneous incident reports documenting the same event.

`\item` No valid judicial arrest warrant had been issued for Plaintiff at

the time of the arrest. The arrest was warrantless.

\item On December 27, 2024, Rambin filed a supplemental report acknowledging that the original attribution may have been a misidentification.

\item In the same December 27, 2024 supplemental report, Rambin directed further evidence gathering concerning Plaintiff---after the arrest had already occurred and after the grand jury presentation was already scheduled.

\item Rambin's December 27, 2024 misidentification acknowledgment predates the January 14, 2025 grand jury presentation. The acknowledgment was not disclosed to the grand jury.

\item As a direct result of the warrantless arrest without probable cause, Plaintiff was seized and subjected to ongoing criminal prosecution in case 24CR49043, suffering deprivation of liberty, emotional distress, reputational harm, and financial loss.

\end{paras}

\subsection\*{The Defective Grand Jury --- January 14, 2025}

\begin{paras}

\item On January 14, 2025, a Washington County grand jury returned a true bill in case 24CR49043.

\item No valid Presiding Judge Order authorizing the grand jury's existence was in effect on January 14, 2025. Presiding Judge Order

325 expired on or about January 3, 2025. Presiding Judge Order 350 did not take effect until on or about January 31, 2025.

          , a Washington County court administrator, confirmed this 28-day gap in writing.

Item A grand jury operating without a valid presiding judge order is not a lawfully constituted grand jury under Oregon law.

*State v. Lawrence*, 12 Or. 297 (1885). A true bill returned by such a grand jury is void *ab initio* and confers no subject matter jurisdiction on the Washington County Circuit Court.

Item Witness            ("Baker") provided testimony before the grand jury. Baker's testimony materially contradicted Deputy Rambin's sworn probable cause affidavit. Deputy District Attorney Gerten was responsible for presenting the matter to the grand jury and was aware of Baker's testimony and its conflict with Rambin's affidavit. Gerten failed to correct the false or misleading impression created by the conflicting testimony, in violation of the due process principle established in *Napue v. Illinois*, 360 U.S. 264, 269 (1959).

Item The grand jury recording was provided to Plaintiff's then-counsel Anna Lasher. Plaintiff requested her complete client file from Lasher; Lasher stated the file would be produced within two weeks and never produced it. Plaintiff intends to file a bar complaint regarding

Lasher's failure to produce the client file. As a result, Plaintiff has been denied access to the grand jury record to which she is entitled.

Because the January 14, 2025 indictment was returned by a grand jury without lawful authority to sit, it is void. The Washington County Circuit Court has not acquired subject matter jurisdiction over case 24CR49043.

The Administrative Order and Unlawful Home Entry ---  
May 10, 2025

In approximately November 2024, Washington County Community Corrections Officer Rolfe made a single attempt to contact a Washington County official regarding Plaintiff's alleged release violation and made no subsequent contact attempt.

On the basis of Rolfe's single-contact attempt, an administrative Order of Arrest was issued under ORS 144.350---not a judicial arrest warrant. The order recited that Officer Rolfe was "unavailable" as the predicate for administrative issuance. Rolfe's Community Corrections position was subsequently eliminated through a layoff. Washington County Community Corrections staffing and layoff records are the only evidence capable of verifying the "unavailable" recital in the administrative order.

\item The administrative Order of Arrest was entered into the Law Enforcement Data System (LEDS) as a ``felony warrant." This characterization was materially inaccurate. An administrative order of arrest under ORS 144.350 is not a judicial warrant within the meaning of the Fourth Amendment.

\item On May 10, 2025, Washington County Community Corrections Officers Does 1--4, acting under the direction of Defendant Bineham, entered Plaintiff's home. Plaintiff was on pretrial security release pursuant to ORS 135.265 and was not subject to post-conviction supervision conditions. She retained full Fourth Amendment rights against warrantless home entry. No valid judicial arrest warrant authorized entry into Plaintiff's home.

\item \textit{Payton v. New York}, 445 U.S. 573, 576 (1980), requires a judicial arrest warrant---not an administrative order---to enter a home to effect an arrest. An administrative order of arrest under ORS 144.350 does not satisfy \textit{Payton}'s warrant requirement. The May 10, 2025 entry into Plaintiff's home was unconstitutional.

\item The contact observed during the May 10, 2025 unlawful home entry became the sole factual predicate for the contempt proceeding subsequently filed against Plaintiff on December 30, 2025.

\textit{See infra} paragraphs 40--47.  
\end{paras}

\subsection\*{DDA Gerten's Post-Arrest Investigatory Directive}

\begin{paras}

\item Following the May 10, 2025 entry and arrest, Deputy District Attorney Gerten directed Deputy Rambin to review the incident to determine whether Plaintiff had violated the terms of her release agreement.

\item This directive is documented in Rambin's own written report, which discloses that the District Attorney's office requested that Rambin review the May 10, 2025 incident and that Rambin complied with that request.

\item Directing a law enforcement officer to conduct a post-arrest investigation to build an evidentiary record for potential prosecution is an investigatory function, not an advocacy function.

\textit{Buckley v. Fitzsimmons}, 509 U.S. 259, 273 (1993).

Absolute prosecutorial immunity does not attach to this conduct.

\item At the time Gerten issued this directive, she was aware that:

(a) the September 18, 2024 arrest had been made on a probable cause affidavit contradicted by three contemporaneous reports; (b) Rambin's December 2024 supplemental acknowledged misidentification; and (c) the May 10, 2025 entry had been made pursuant to an administrative order, not a judicial warrant. Gerten's investigatory directive to continue building the evidentiary case, under these circumstances, continued

and compounded the unlawful seizure of Plaintiff without lawful basis.

**The Ex Parte Contempt Proceeding ---**

May Through December 2025}

On or about May 10, 2025---the same day as the unlawful home entry---Deputy District Attorney Clark sent an ex parte email to Judge James C. Thompson.

Without any motion pending before the court and without notice to Plaintiff, Judge Thompson directed the Washington County release office to seek a violation report against Plaintiff.

Thompson's direction to the release office---an administrative agency---to initiate enforcement proceedings against Plaintiff, based on an ex parte communication and outside any adversarial proceeding with no motion before the court, is an administrative act, not a judicial act. *Forrester v. White*, 484 U.S. 219, 228 (1988). Absolute judicial immunity does not attach.

On May 13, 2025---three days after the unlawful home entry---Deputy District Attorney Jade Sawyer (OSB #250555) filed a Complaint for Imposition of Punitive Sanctions, Contempt---Violation of Release Agreement, in case 25CN02140, against Barry Trenell Washington, alleging contact with Plaintiff on May 10, 2025. The contact alleged was the contact observed during the unlawful home

entry.

\item In June 2025, the court held a show cause hearing in case 25CN02140. Plaintiff received no notice of that hearing. Court notices concerning Plaintiff were sent to a residential address Plaintiff had not occupied for approximately ten years, and separately to the Office of Public Defense Commission in Salem, Oregon---an entity listed as Plaintiff's counsel of record as an administrative placeholder. Plaintiff never retained, requested, or was lawfully appointed OPDC as counsel. At all relevant times, Plaintiff was unrepresented.

\item On December 30, 2025---more than seven months after the alleged May 10, 2025 conduct---the State initiated the contempt proceeding against Plaintiff in case 25CN05790, predicated on the same contact observed during the May 10, 2025 unlawful home entry.

\item The contempt proceeding lacked a legally valid statutory predicate. Plaintiff was subject to a security release pursuant to ORS 135.265. Oregon Revised Statute 135.290 bars a contempt proceeding predicated on conduct during a security release. The contempt proceeding was void on its face.

\item Due process requires notice reasonably calculated, under all the circumstances, to apprise interested parties of the pendency of proceedings affecting their rights. \textit{Mullane v.} Central

Hanover Bank & Trust Co.}, 339 U.S. 306, 314 (1950). Washington County's court notification system directed notices concerning Plaintiff to a decade-old address and to an administrative placeholder entity Plaintiff never retained---while Plaintiff's actual, current address appeared in the court's own release documents. Proceedings affecting Plaintiff's liberty and her defense advanced without notice reasonably calculated to reach her.

¶ On June 10, 2025, Washington County employee Stiefer authored an email documenting the Clark-to-Thompson ex parte communication chain. The state withheld this email chain from Plaintiff in violation of *Brady v. Maryland*, 373 U.S. 83, 87 (1963).

¶ On December 29, 2025, bail revocation and an arrest warrant were issued. The warrant affidavit contained material defects, including altered contact information. Compounding warrants arising from the void contempt proceeding have restricted Plaintiff's liberty across all pending cases.

¶ The warrant---the downstream product of the May 10, 2025 unlawful home entry and the void contempt proceeding---has been invoked in juvenile dependency proceeding 25JU04261 to justify Plaintiff's continued separation from her minor daughter. The Fourteenth Amendment protects a parent's liberty interest in the care, custody, and companionship of her child. *Troxel v. Granville*,

530 U.S. 57, 65 (2000); *Santosky v. Kramer*,  
455 U.S. 745, 753 (1982). Plaintiff's separation from her daughter,  
sustained by the tainted warrant, constitutes ongoing harm proximately  
caused by the constitutional violations alleged herein. Plaintiff's  
claims against the Oregon Department of Human Services and its  
employees arising from the dependency proceeding are reserved for a  
separate action; the family separation is pled here as harm  
proximately caused by Defendants' conduct.

#### **Records Suppression and Association-Based Targeting ---**

2025 Through 2026}

Beginning May 15, 2025, Plaintiff submitted multiple public  
records requests to Washington County (including Request Nos. C008202  
and C008691) seeking records regarding Officer Rolfe's communications  
with County officials and records regarding Community Corrections  
staffing and layoffs, which are necessary to verify the "Rolfe  
unavailable" recital in the administrative Order of Arrest.

Washington County imposed substantial fees on Plaintiff's records  
requests, including a fee of \$7,846.60 on the staffing and layoff  
records request (Request No. C008691, August 23, 2025),  
notwithstanding an existing indigency finding in Plaintiff's criminal  
proceedings.

\item On September 19, 2025, Washington County official Mendes denied Plaintiff's fee waiver request (the ``Mendes Denial"). The Mendes Denial stated as its basis that the County had evidence of Plaintiff's associations and her intended use of the records. The Mendes Denial is a written government admission that Washington County reviewed the content and purpose of Plaintiff's advocacy---including her associational identity---before denying access to public records.

\item The use of law enforcement intelligence data concerning a person's associational activities in making administrative fee determinations violates ORS 181A.250, which prohibits law enforcement agencies from collecting and using intelligence information against individuals on the basis of their exercise of constitutional rights and prohibits dissemination of such information to other agencies.

\item Plaintiff submitted additional court records waiver requests; fee waivers were denied in four instances despite an indigency finding.

As of March 27, 2026, Washington County official Johnston had provided zero response to outstanding requests, constituting constructive denial under ORS 192.329.

\item The Mendes Denial and related fee impositions have prevented Plaintiff from accessing the Community Corrections staffing and layoff records that would allow her to verify or refute the ``Rolfe unavailable" recital---the stated predicate for the void

administrative Order of Arrest and the May 10, 2025 unlawful home

entry and arrest.

\end{paras}

\subsection\*{Refusal to Rule on Demurrer and Imminent Trial}

\begin{paras}

\item Plaintiff filed a demurrer in case 24CR49043 challenging the indictment on multiple grounds, including the defective grand jury empanelment described in paragraphs 24--29. The Washington County Circuit Court has refused to rule on the demurrer and has acted as if the motion does not exist, in violation of ORS 1.050.

\item The court's refusal to rule on a pending demurrer challenging its own subject matter jurisdiction confirms that the state proceeding will not self-correct the constitutional violations described herein and that Plaintiff has no adequate remedy at law in state court.

\item Trial in case 24CR49043 is currently scheduled for July 17--18,

1. Plaintiff faces imminent prosecution under a void indictment, with no ruling on her pending challenge to the court's jurisdiction.

\end{paras}

% =====

% CLAIMS FOR RELIEF

% =====

\section\*{CLAIMS FOR RELIEF}

% — COUNT I —————

\subsection\*{COUNT I}

\subsubsection\*{Fourth Amendment --- False Arrest\

42 U.S.C.\ \sect\ 1983\

(Against Defendants Rambin and Washington County)}

\begin{paras}

\item Plaintiff realleges and incorporates paragraphs 1 through 55.

\item The Fourth Amendment guarantees the right to be free from arrest

without probable cause. \textit{Dunaway v. New York},

442 U.S.\ 200, 208 (1979). A warrantless arrest is per se

unreasonable unless supported by probable cause at the moment of

arrest.

\item On September 18, 2024, Defendant Rambin arrested Plaintiff

without a warrant and without probable cause. Rambin's probable cause

affidavit attributed tag removal to Plaintiff---a conclusion

contradicted by three contemporaneous reports. The arrest was made

before the underlying investigation concluded. Rambin's own

December 27, 2024 supplemental report acknowledged the

misidentification, establishing that probable cause did not exist at

the moment of arrest.

\item The right to be free from warrantless arrest without probable

cause was clearly established as of September 18, 2024, by controlling

authority any reasonable officer would have known.

\textit{Dunaway v. New York}, 442 U.S. 200 (1979);

\textit{Beck v. Ohio}, 379 U.S. 89, 91 (1964). No reasonable officer could have believed probable cause existed to arrest a suspect for conduct that three contemporaneous reports attributed to a different person, before the underlying investigation had concluded.

Rambin is not entitled to qualified immunity.

Defendant Washington County is liable under \textit{Monell

v. Dep't of Soc. Servs.}, 436 U.S. 658 (1978). The County maintained a custom or practice, so persistent and well-settled as to have the force of law, of authorizing arrests based on relay-chain probable cause determinations without requiring the arresting officer to independently verify the underlying factual basis. This custom is evidenced by, without limitation: (a) Rambin's September 18, 2024 arrest of Plaintiff at 9:42 p.m., before the investigating officer completed the underlying store investigation at approximately 10:00 p.m.; (b) the December 29, 2025 warrant affidavit, in which Rambin's own inference traveled through multiple County officials and returned to Rambin presented as independent multi-agency corroboration, with no intermediary adding independent observation; and (c) the May 10, 2025 home entry executed on an administrative order entered into LEDS as a "felony warrant." Each incident reflects the same practice: County officers acting on relayed

conclusions without independent verification. This custom was the moving force behind Plaintiff's unlawful arrest.

*Pembaur v. City of Cincinnati*, 475 U.S. 469, 480 (1986).

As a direct and proximate result of Defendants' conduct, Plaintiff suffered deprivation of liberty, emotional distress, reputational harm, financial loss, and ongoing prosecution under a void indictment, in an amount to be proved at trial.

% — COUNT II —

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**COUNT II**

**Fourth Amendment --- Unlawful Home Entry**

42 U.S.C. § 1983

(Against Defendants Does 1--4, Bineham, and Washington County)

Plaintiff realleges and incorporates paragraphs 1 through 55.

The Fourth Amendment prohibits warrantless, nonconsensual entry into a home to make an arrest. A judicial arrest warrant is required.

*Payton v. New York*, 445 U.S. 573, 576 (1980). An administrative order of arrest under ORS 144.350 does not constitute a judicial arrest warrant and does not satisfy *Payton*.

On May 10, 2025, Defendants Does 1--4 and Bineham entered Plaintiff's home without a valid judicial warrant. The administrative Order of Arrest under ORS 144.350---misabeled in LEDS as a ``felony

warrant"---did not authorize warrantless home entry. Plaintiff was on pretrial security release and retained full Fourth Amendment rights.

\item Defendant Bineham directed the entry. A supervisor who directs unconstitutional conduct by subordinates is personally liable under 42 U.S.C.\sect\ 1983. \textit{Starr v.\ Baca}, 652 F.3d 1202, 1207 (9th Cir.\ 2011).

\item The right to be free from warrantless home entry to effect an arrest has been clearly established since \textit{Payton v.\ New York}, 445 U.S.\ 573 (1980), and \textit{Steagald v.\ United States}, 451 U.S.\ 204, 211--12 (1981). Every reasonable officer as of May 10, 2025, would have known that an administrative order of arrest---issued by a corrections official, not a judicial officer, on a ``reasonable grounds" standard rather than a probable cause determination by a neutral magistrate---is not a judicial arrest warrant and does not authorize entry into a home. No exigent circumstances existed; any exigency arising after Plaintiff asked the officers to leave was officer-created and cannot justify the entry. \textit{Kentucky v.\ King}, 563 U.S.\ 452, 462 (2011). Defendants are not entitled to qualified immunity.

\item Defendant Washington County is liable under \textit{Monell} for failing to train and supervise Community Corrections officers on the constitutional distinction between administrative orders of arrest and

judicial arrest warrants under *Payton*.

*City of Canton v. Harris*, 489 U.S. 378, 388 (1989).

As a direct and proximate result of the unlawful home entry, Plaintiff was arrested, subjected to the void contempt proceeding, and suffered ongoing deprivation of liberty, emotional distress, legal harm, and separation from her minor daughter sustained by the warrant that is the downstream product of the entry, in an amount to be proved at trial.

% — COUNT III —————

**COUNT III**

**Fourth Amendment --- Unlawful Continued Seizure via  
Materially False Affidavit**

42 U.S.C. § 1983

(Against Defendants Rambin and Gerten)

Plaintiff realleges and incorporates paragraphs 1 through 55.

The Fourth Amendment governs unlawful pretrial detention and continued seizure effected through materially false affidavits.

*Manuel v. City of Joliet*, 580 U.S. 357, 364 (2017). A

law enforcement officer who submits or maintains a materially false affidavit to prolong a seizure violates the Fourth Amendment.

*Hervey v. Estes*, 65 F.3d 784, 788 (9th Cir. 1995).

\item Defendant Rambin's probable cause affidavit contained materially false statements attributing conduct to Plaintiff that three contemporaneous reports contradicted. Rambin's December 2024 supplemental report establishes that Rambin knew or recklessly disregarded the inaccuracy. Despite this knowledge, prosecution on the basis of the affidavit continued, prolonging Plaintiff's seizure from September 18, 2024, through the present.

\item Defendant Gerten, acting in her investigatory capacity, directed Deputy Rambin to conduct a post-arrest investigation of the May 10, 2025 incident to develop an evidentiary basis for a release agreement violation---after knowing the original arrest was based on a defective probable cause affidavit. \textit{Buckley v. Fitzsimmons}, 509 U.S. 259, 273 (1993). This investigatory directive continued and compounded the unlawful seizure of Plaintiff without lawful basis.

\item Gerten additionally knew that Baker's grand jury testimony materially contradicted Rambin's sworn probable cause affidavit and failed to correct the false or misleading record before the grand jury, in violation of \textit{Napue v. Illinois}, 360 U.S. 264, 269 (1959). This failure allowed prosecution---and with it, Plaintiff's continued seizure---to proceed on a false factual foundation.

\item As a direct and proximate result of Defendants' conduct,

Plaintiff has been continuously and unlawfully seized since September 18, 2024, suffering deprivation of liberty, emotional distress, and ongoing legal harm, in an amount to be proved at trial.

% — COUNT IV

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{COUNT IV}

{First Amendment --- Retaliation and Right to Petition}

42 U.S.C. § 1983

(Against Defendants Washington County and Does 5--10)

{}

Plaintiff realleges and incorporates paragraphs 1 through 55.

The First Amendment protects the right to petition the government for redress of grievances and to seek access to government information free from viewpoint-based discrimination.

*BE&K Constr. Co. v. NLRB*, 536 U.S. 516, 524 (2002);

*Mendocino Envtl. Ctr. v. Mendocino County*,

192 F.3d 1283, 1300 (9th Cir. 1999).

Plaintiff exercised protected First Amendment rights by making public records requests seeking records relevant to the legality of her arrest and prosecution; engaging in community advocacy; and filing court motions challenging official conduct, including the demurrer in case 24CR49043.

Washington County, acting through its officials including Mendes

and Does 5--10, retaliated against Plaintiff's exercise of First Amendment rights by: (a) denying fee waivers based on the County's evidence of Plaintiff's associations and intended use (Mendes Denial, September 19, 2025); (b) using ORS 181A.250-prohibited law enforcement intelligence concerning Plaintiff's associations to inform administrative fee determinations; (c) imposing a fee of \ \$7,846.60 designed to prevent Plaintiff from accessing records material to her defense; and (d) failing to respond to records requests constituting constructive denial.

\item The Mendes Denial is direct documentary evidence of viewpoint-based government action: it states on its face that denial is grounded in evidence of Plaintiff's associations and intended use of the records---not in the technical scope of the request. This is content- and viewpoint-based government action.

\item Washington County's conduct would chill a person of ordinary firmness from continuing to exercise First Amendment rights to petition and to access government information.

\item As a direct and proximate result of Defendants' retaliatory conduct, Plaintiff has been denied records necessary to her defense, chilled in the exercise of constitutional rights, and suffered harm in an amount to be proved at trial.

\end{enumerate}

% — COUNT V —————

\subsection\*{COUNT V}

\subsubsection\*{Fourteenth Amendment --- Equal Protection\

Class of One / Association-Based Targeting\\

42 U.S.C.\ \sect\ 1983\\

(Against Defendants Washington County and Does 5--10)}

\begin{enumerate}

\item Plaintiff realleges and incorporates paragraphs 1 through 55.

\item The Equal Protection Clause of the Fourteenth Amendment

prohibits government entities from intentionally treating an

individual differently from similarly situated persons without

rational basis. \textit{Village of Willowbrook v.\ Olech},

528 U.S.\ 562, 564 (2000).

\item Washington County intentionally treated Plaintiff differently

from similarly situated individuals in the processing of public

records fee waivers. The Mendes Denial establishes that Plaintiff was

treated differently because of her associations and her intended use

of the records---grounds bearing no rational relationship to any

legitimate government interest in public records administration.

\item ORS 181A.250 prohibits law enforcement agencies from maintaining

and disseminating intelligence files based on individuals' exercise of

constitutional rights. Washington County's use of such intelligence

in administrative fee decisions confirms that Plaintiff's differential

treatment was motivated by her identity and advocacy, not by any content-neutral criterion.

As a direct and proximate result of Washington County's differential treatment, Plaintiff has been denied equal access to public records and has suffered harm in an amount to be proved at trial.

\end{enumerate}

% — COUNT VI —————

\subsection\*{COUNT VI}

\subsubsection\*{Monell --- Municipal Liability}

42 U.S.C.\sect\ 1983\

(Against Defendant Washington County)}

\begin{enumerate}

\item Plaintiff realleges and incorporates paragraphs 1 through 55.

\item Defendant Washington County is liable for the constitutional violations described in this Complaint under \textit{Monell

v.\ Dep't of Soc.\ Servs.}, 436 U.S.\ 658 (1978), on three independent grounds.

\item \textbf{Leg 1 --- Relay-Chain Probable Cause Custom:}

Washington County maintained a custom or practice under which law enforcement officers effected felony arrests based on relay-chain probable cause reports, without requiring the arresting officer to independently verify the underlying factual basis. Plaintiff's

September 18, 2024 arrest---made on an affidavit contradicted by three contemporaneous reports, before the investigation concluded---was carried out pursuant to this custom. This custom was the moving force behind the violation of Plaintiff's Fourth Amendment rights.

**Leg 2 --- Association-Based Records Suppression**

Custom:} Washington County maintained a custom or practice of using law enforcement intelligence data gathered concerning individuals' associational activities and advocacy to direct administrative decisions, including public records fee determinations. The Mendes Denial (September 19, 2025) is direct documentary evidence of this custom---it states on its face that the fee denial was based on County evidence of Plaintiff's associations and intended use. This custom, operating through ORS 181A.250-prohibited intelligence sharing, was the moving force behind violations of Plaintiff's First and Fourteenth Amendment rights.

**Leg 3 --- Failure to Train:}** Washington County failed to train Community Corrections officers on the constitutional distinction between administrative orders of arrest under ORS 144.350 and judicial arrest warrants satisfying *Payton v. New York*, resulting in the unlawful May 10, 2025 home entry and arrest. *City of Canton v. Harris*, 489 U.S. 378, 388 (1989).

As a direct and proximate result of Washington County's customs, practices, and failures to train, Plaintiff suffered the constitutional violations described in each Count above, in amounts to be proved at trial.

% — COUNT VII —

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§ COUNT VII

§ Fourteenth Amendment --- Procedural Due Process

Ex Parte Initiation of Punitive Proceedings Without Notice

42 U.S.C. § 1983

(Against Defendants Thompson and Clark, Individually)

§

Plaintiff realleges and incorporates paragraphs 1 through 55

and paragraphs 42 through 50 as if fully set forth herein.

The Fourteenth Amendment prohibits the government from depriving

any person of liberty without due process of law. The minimum

requirements of procedural due process are notice and an opportunity

to be heard at a meaningful time and in a meaningful manner.

*Mathews v. Eldridge*, 424 U.S. 319, 333 (1976). Due

process requires notice reasonably calculated, under all the

circumstances, to apprise interested parties of the pendency of

proceedings affecting their rights and to afford them an opportunity

to present their objections. *Mullane v. Central Hanover*

Bank & Trust Co.}, 339 U.S. 306, 314 (1950).

¶ On May 10, 2025, Defendant Clark---acting in her capacity as a Washington County Community Corrections supervisor, outside any pending adversarial proceeding, and without any motion before the court---sent an ex parte email to Defendant Judge James C. Thompson.

The content of that communication caused Thompson to act against Plaintiff's liberty interests without any notice to Plaintiff and without any opportunity for Plaintiff to be heard.

¶ Upon receiving Clark's ex parte communication, Defendant Thompson---without any motion pending before the court, without notice to Plaintiff, and without affording Plaintiff any opportunity to respond---directed the Washington County release office to seek a violation report against Plaintiff. This directive set in motion the contempt proceeding that ultimately resulted in case 25CN05790, filed December 30, 2025, which directly threatens Plaintiff's liberty.

¶ Clark's initiation of the ex parte communication, and Thompson's direction to the release office based on that communication, are administrative acts, not judicial or advocacy acts.

Under the functional test for judicial immunity, an act is judicial only if it is (1) a function normally performed by a judge, and (2) the parties dealt with the judge in his judicial capacity.

¶ *Stump v. Sparkman*, 435 U.S. 349, 362 (1978);

¶ *Bliven v. Hunt*, 579 F.3d 204, 212 (2d Cir. 2009).

Directing an administrative agency to initiate enforcement proceedings against a litigant---based on an ex parte communication, outside any adversarial proceeding, with no motion pending---is not a function normally performed by a judge in his judicial capacity.

\textit{Forrester v. White}, 484 U.S. 219, 228 (1988). Absolute judicial immunity does not attach to Thompson's conduct.

\item Defendant Clark is a Community Corrections supervisor with no prosecutorial role. She is therefore entitled to qualified immunity only. Clark's qualified immunity is defeated because the right to notice and an opportunity to be heard before a criminal proceeding is modified was clearly established at the time of her conduct.

\textit{Mullane v. Central Hanover Bank & Trust Co.}, 339 U.S. 306 (1950); \textit{Mathews v. Eldridge}, 424 U.S. 319 (1976). No reasonable official in Clark's position could have believed that transmitting an ex parte communication to a sitting judge---without notice to the affected party---was constitutionally permissible.

\item The ex parte contempt chain was compounded by Washington County's court notification system, which directed all notices to Plaintiff to a residential address she had not occupied for approximately ten years and to an administrative placeholder entity she never retained---while Plaintiff's actual, current address

appeared in the court's own release documents. Plaintiff received no notice of the June 2025 show cause hearing in case 25CN02140. Proceedings affecting Plaintiff's liberty advanced entirely without notice reasonably calculated to reach her.

\textit{Mullane}, 339 U.S.\ at 314.

\item The contempt proceeding initiated through this ex parte chain lacked a legally valid statutory predicate. Plaintiff was subject to a security release pursuant to ORS 135.265. ORS 135.290 bars a contempt proceeding predicated on conduct during a security release. The proceeding was void on its face---a fact that Thompson, as the presiding judge, and Clark, as the initiating supervisor, either knew or were deliberately indifferent to.

\item On June 10, 2025, Washington County employee Stiefer authored an email documenting the Clark-to-Thompson ex parte communication chain. The state withheld this email chain from Plaintiff in violation of \textit{Brady v. Maryland}, 373 U.S.\ 83, 87 (1963).

The withholding of this documentation---which is direct evidence of the due process violation alleged in this Count---further deprived Plaintiff of her ability to challenge the proceedings affecting her liberty.

\item As a direct and proximate result of Defendants Thompson's and Clark's conduct, Plaintiff was subjected to a void contempt

proceeding, suffered deprivation of liberty, emotional distress,  
reputational harm, and ongoing legal harm, in an amount to be proved  
at trial.

\end{enumerate}

% — COUNT VIII —————

\subsection\*{COUNT VIII}

\subsubsection\*{Fourteenth Amendment --- Substantive and Procedural  
Due Process\\

Knowing Use of False Grand Jury Testimony and Suppression of  
Exculpatory Evidence\\

42 U.S.C.\sect\ 1983\\

(Against Defendant Gerten, Individually)}

\begin{enumerate}

\item Plaintiff realleges and incorporates paragraphs 1 through 55  
and paragraphs 26 through 31 as if fully set forth herein.

\item The Fourteenth Amendment's Due Process Clause prohibits the  
government from obtaining or maintaining a criminal prosecution  
through the knowing use of false or misleading evidence.

\textit{Napue v. Illinois}, 360 U.S.\ 264, 269 (1959) ("[T]he same  
result obtains when the State, although not soliciting false evidence,  
allows it to go uncorrected when it appears."). The government's  
knowing use of false testimony---or its failure to correct testimony

it knows to be false---violates due process regardless of whether the testimony was technically elicited by the prosecutor. \textit{Id.}

\item The Fourteenth Amendment's Due Process Clause additionally requires the prosecution to disclose material exculpatory evidence to the defense. \textit{Brady v. Maryland}, 373 U.S. 83, 87 (1963).

Evidence is material if there is a reasonable probability that, had the evidence been disclosed, the result of the proceeding would have been different. \textit{United States v. Bagley}, 473 U.S. 667, 682 (1985).

\item On January 14, 2025, a Washington County grand jury returned a true bill in case 24CR49043. Defendant Gerten was the presenting prosecutor responsible for presenting the matter to the grand jury.

\item Witness Baker provided testimony before the grand jury. Baker's testimony materially contradicted Deputy David Rambin's sworn probable cause affidavit---the affidavit that formed the basis for Plaintiff's September 18, 2024 arrest and continued prosecution. The contradiction was not peripheral; it went to the core factual predicate of the charge: the identification of Plaintiff as the person responsible for the conduct alleged.

\item Defendant Gerten knew of the contradiction between Baker's testimony and Rambin's affidavit at the time of the grand jury presentation. Specifically: (a) Gerten was present during Baker's

testimony before the grand jury; (b) Gerten had access to Rambin's probable cause affidavit as the presenting prosecutor---it was the foundational document of the prosecution she was presenting; and (c) the contradiction between Baker's account and Rambin's affidavit was apparent on the face of the two documents. No reasonable prosecutor reviewing both documents could have failed to recognize the conflict.

Item Despite this knowledge, Gerten failed to correct the false or misleading impression created by Baker's testimony before the grand jury returned its true bill. This failure allowed the indictment to issue on a false factual foundation, in violation of *Napue v. Illinois*, 360 U.S. 264, 269 (1959). The indictment---and with it, Plaintiff's continued prosecution and deprivation of liberty---rests on a grand jury record that Gerten knew was materially false and misleading.

Item Gerten's failure to correct Baker's contradictory testimony is an investigatory act, not an advocacy act. The duty to ensure the accuracy of evidence presented to a grand jury---and to correct known false impressions---arises before the initiation of formal adversarial proceedings and is part of the investigatory function.

*Buckley v. Fitzsimmons*, 509 U.S. 259, 273 (1993).

Absolute prosecutorial immunity does not attach to this conduct.

\item Separately, the June 10, 2025 Stiefer email documenting the Clark-to-Thompson ex parte communication chain constitutes material exculpatory evidence under \textit{Brady v. Maryland}, 373 U.S. 83, 87 (1963): it is direct evidence of the unconstitutional ex parte initiation of the contempt proceeding against Plaintiff, and its disclosure would create a reasonable probability of a different outcome in the contempt proceedings and in the underlying criminal case. The state withheld this email chain from Plaintiff. Gerten, as the supervising prosecutor responsible for the prosecution of Plaintiff, was responsible for the disclosure obligations owed to Plaintiff under \textit{Brady}. The withholding of the Stiefer email constitutes a \textit{Brady} violation.

\item The right to be free from prosecution maintained through knowingly false grand jury testimony was clearly established as of January 14, 2025. \textit{Napue v. Illinois}, 360 U.S. 264 (1959); \textit{Giglio v. United States}, 405 U.S. 150 (1972).

The right to disclosure of material exculpatory evidence was clearly established as of June 10, 2025. \textit{Brady v. Maryland}, 373 U.S. 83 (1963); \textit{United States v. Bagley}, 473 U.S. 667 (1985). No reasonable prosecutor could have believed that knowingly allowing materially false testimony to stand uncorrected before a grand jury, or withholding direct evidence of an

unconstitutional ex parte proceeding, was consistent with the Fourteenth Amendment. Gerten is not entitled to qualified immunity.

As a direct and proximate result of Gerten's conduct, Plaintiff has been subjected to prosecution under an indictment issued on a false factual foundation, has been denied material exculpatory evidence, has suffered continuous deprivation of liberty from September 18, 2024 through the present, and has suffered emotional distress, reputational harm, and financial loss, in an amount to be proved at trial.

\end{enumerate}

% =====

% PRAYER FOR RELIEF

% =====

\section\*{PRAYER FOR RELIEF}

WHEREFORE, Plaintiff Ashle' Penn respectfully requests that this Court enter judgment in her favor and against Defendants as follows:

\bigskip

\noindent \textbf{A. \quad COMPENSATORY DAMAGES} against all Defendants, in amounts to be determined at trial, for: deprivation of liberty from September 18, 2024, to the present; emotional distress, anxiety, and psychological harm; reputational harm; financial losses

incurred in defending against unlawful prosecution; and denial of access to public records and harm resulting therefrom.

\bigskip

\noindent \textbf{B.} \quad PUNITIVE DAMAGES} against individual Defendants Ramin, Does 1--4, Bineham, Gerten, Thompson, and Clark in amounts sufficient to deter future constitutional violations, based on Defendants' reckless or callous indifference to Plaintiff's clearly established constitutional rights. \textit{Smith v. Wade}, 461 U.S. 30, 56 (1983).

\bigskip

\noindent \textbf{C.} \quad DECLARATORY RELIEF} pursuant to 28 U.S.C. \S 2201--2202:

\begin{enumerate}[label=\arabic\*. ,leftmargin=0.75in,

itemsep=4pt,topsep=6pt]

\item A declaration that the January 14, 2025 indictment in Case

No. 24CR49043 is void \textit{ab initio}, the grand jury having

operated during a period---January 3 through January 31,

2025---when no valid Presiding Judge Order authorized its existence;

\item A declaration that the Washington County Circuit Court has not

acquired subject matter jurisdiction over Case No. 24CR49043 on

the basis of the void January 14, 2025 indictment;

\item A declaration that Plaintiff's September 18, 2024 arrest

violated the Fourth Amendment;

\item A declaration that the May 10, 2025 warrantless home entry and

arrest violated the Fourth Amendment;

\item A declaration that Washington County's use of law enforcement

intelligence data in public records fee determinations violated

ORS 181A.250 and the First and Fourteenth Amendments.

\end{enumerate}

\bigskip

\noindent \textbf{D. \quad INJUNCTIVE RELIEF:}

\begin{enumerate}[label=\arabic\*. ,leftmargin=0.75in,

itemsep=4pt,topsep=6pt]

\item An injunction barring Defendants from proceeding with

prosecution of Plaintiff in Washington County Case No.\ 24CR49043

under the January 14, 2025 void indictment, pursuant to

\textit{Ex parte Young}, 209 U.S.\ 123 (1908), as to official-

capacity claims;

\item An injunction barring Washington County from using law

enforcement intelligence data derived from Plaintiff's associational

activities or exercise of constitutional rights in any

administrative records or fee determination.

\end{enumerate}

\bigskip

\noindent \textbf{E.\quad ATTORNEY FEES AND COSTS} pursuant to  
42 U.S.C.\sect\ 1988 and any other applicable statute.

\bigskip

\noindent \textbf{F.\quad SUCH OTHER AND FURTHER RELIEF} as this  
Court deems just and proper.

% =====

% JURY DEMAND

% =====

\section\*{DEMAND FOR JURY TRIAL}

Plaintiff Ashle' Penn demands a jury trial on all issues so triable  
pursuant to Rule 38 of the Federal Rules of Civil Procedure.

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\noindent Respectfully submitted,

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\noindent Dated: \underline{\hspace{2in}}

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\textbf{ASHLE' PENN}\

Pro Se Plaintiff\

\underline{\hspace{2.5in}} \textit{[Address]}\

\underline{\hspace{2.5in}} \textit{[Phone]}\

\href{mailto:edify@pennandpenn.com}{edify@pennandpenn.com}

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ASHLE' PENN, & Case No.: \underline{\hspace{1.5in}}\}[4pt]
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\hspace{0.3in}\textit{Plaintiff}, & \[4pt]

v. & \textbf{COMPLAINT FOR}\[4pt]

WASHINGTON COUNTY, OREGON; & \textbf{VIOLATION OF CIVIL RIGHTS}\[4pt]

DEPUTY DAVID RAMBIN; & \textbf{(42 U.S.C.\ sect\ 1983)}\[4pt]

ALICIA GERTEN; & \[4pt]

JUDGE JAMES C.\ THOMPSON; & \textbf{JURY TRIAL DEMANDED}\[4pt]

MOLLY BINEHAM; & \[4pt]

SHEILA CLARK; & \[4pt]

DOES 1--10, & \[4pt]

\hspace{0.3in}\textit{Defendants}. & \[4pt]  
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% PRELIMINARY STATEMENT

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\section\*{PRELIMINARY STATEMENT}

\begin{paras}

\item This action arises from a coordinated pattern of constitutional

violations by Washington County officials against Plaintiff, AshLe'

Penn. Those violations began on September 18, 2024, when Washington

County deputies racially profiled Plaintiff and arrested her without a

warrant and without probable cause. They continue through the present day, as Plaintiff remains subject to ongoing prosecution under a charging instrument issued by a defectively constituted grand jury operating without lawful authority.

Plaintiff brings this action pursuant to 42 U.S.C. § 1983 for violations of her rights under the First, Fourth, and Fourteenth Amendments to the United States Constitution, seeking compensatory damages, punitive damages against individual Defendants, declaratory relief, and injunctive relief.

Younger abstention does not bar this action. This Court's intervention is warranted notwithstanding the pending state criminal proceeding in Washington County Case No. 24CR49043. *Younger* is inapplicable on two independent grounds. *See* *Younger v. Harris*, 401 U.S. 37, 43–54 (1971) (establishing abstention doctrine and enumerating exceptions for void proceedings, bad faith, and inadequate state remedy).

*begin{subparas}*

*item* *Younger* presupposes a state court proceeding conducted pursuant to lawful authority and subject matter jurisdiction. The indictment in Case No. 24CR49043 was returned by a grand jury on January 14, 2025, during a period when no valid Presiding Judge Order authorized the grand jury's existence---PJO 325 expired January 3,

2025; PJO 350 did not take effect until January 31, 2025. Court administration confirmed this gap in writing. Under *State v. Lawrence*, 12 Or. 297 (1885), a grand jury operating without lawful authority cannot issue a valid true bill. The indictment is void *ab initio*. The Washington County Circuit Court has not acquired subject matter jurisdiction over this matter, and there is no legitimate state proceeding to which this Court should defer. *See Kugler v. Helfant*, 421 U.S. 117, 124--25 (1975) (abstention inappropriate where state court lacks jurisdiction over subject matter of proceeding).

In the alternative, the prosecution falls within *Younger*'s bad faith and harassment exception. The arrest was made on a probable cause affidavit contradicted by three contemporaneous reports. Prosecution continued after the arresting officer admitted misidentification in writing. The prosecutor knew a grand jury witness's testimony contradicted the sworn affidavit and failed to correct it. The state circuit court has refused to rule on Plaintiff's pending demurrer challenging its subject matter jurisdiction, treating the motion as nonexistent in violation of ORS 1.050. These facts establish prosecution maintained without hope of a valid conviction. *See Dombrowski v. Pfister*, 380 U.S. 479, 490 (1965) (bad faith exception applies where

prosecution is maintained as part of a plan to harass or to deter  
exercise of constitutional rights, without hope of valid conviction).

\end{subparas}

\item As to Plaintiff's claims seeking damages, \textit{Younger}

abstention does not apply in any event. \textit{Deakins

v.\ Monaghan}, 484 U.S.\ 193, 201--04 (1988) (federal court must stay,  
not dismiss, damages claims not cognizable in state forum).

\item Plaintiff's juvenile dependency proceeding (25JU04261) involves

distinct constitutional claims against different state actors and is

reserved for a separate federal action.

\end{paras}

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% PARTIES

% =====

\section\*{PARTIES}

\begin{paras}

\item Plaintiff \textbf{ASHLE' PENN} is a resident of Washington  
County, Oregon. She is self-represented in this action. At all times  
relevant to this Complaint, Plaintiff was a private citizen with no  
criminal conviction.

\item Defendant \textbf{WASHINGTON COUNTY, OREGON} is a municipal  
corporation organized under Oregon law, operating the Washington County  
Sheriff's Office (WCSO), Washington County Community Corrections

(WCCC), and the Washington County District Attorney's Office.

Washington County is a "person" within the meaning of

42 U.S.C. § 1983. *Monell v. Dep't of Soc. Servs.*,

436 U.S. 658, 690 (1978).

Defendant **DEPUTY DAVID RAMBIN** ("Rambin") is or was at

all relevant times a deputy with the Washington County Sheriff's

Office. Rambin is sued in his individual capacity for acts taken under

color of state law.

Defendants **DOES 1--4** are Washington County Community

Corrections officers who entered Plaintiff's home on May 10, 2025,

identities currently unknown to Plaintiff. Plaintiff will amend this

Complaint to substitute their true names when ascertained through

discovery. Does 1--4 are sued in their individual capacities.

Defendant **MOLLY BINEHAM** ("Bineham") is or was at all

relevant times an officer or supervisor with Washington County

Community Corrections who directed the May 10, 2025 entry into

Plaintiff's home. Bineham is sued in her individual capacity.

Defendant **ALICIA GERTEN** ("Gerten") is or was at all

relevant times a Deputy District Attorney for Washington County.

Gerten is sued in her individual capacity for investigatory acts only.

The specific conduct alleged---(a) directing Deputy Rambin to conduct a

post-arrest investigation to determine whether Plaintiff violated her

release agreement, documented in Rambin's own written report, and

(b) failing to correct grand jury testimony Gerten knew contradicted

the sworn probable cause affidavit---constitutes investigatory

function, not advocacy, to which only qualified immunity attaches.

\textit{Buckley v. Fitzsimmons}, 509 U.S. 259, 273 (1993).

\item Defendant \textbf{JUDGE JAMES C. THOMPSON} ("Thompson") is or

was at all relevant times a judge of the Washington County Circuit

Court. Thompson is sued in his individual capacity for administrative

acts only. The specific conduct alleged---directing the Washington

County release office to seek a violation report against Plaintiff

based on an ex parte email communication, without any pending motion

before the court and without notice to Plaintiff---is an

administrative act, not a judicial act, to which absolute judicial

immunity does not attach. \textit{Forrester v. White},

484 U.S. 219, 228 (1988).

\item Defendant \textbf{SHEILA CLARK} ("Clark") is or was at all

relevant times a supervisor employed by Washington County Community

Corrections, acting under color of state law at all relevant times.

Clark is sued in her individual capacity. As a Community Corrections

supervisor, Clark exercises no prosecutorial function and is entitled

to qualified immunity only.

\item Defendants \textbf{DOES 5--10} are persons whose identities are

currently unknown to Plaintiff who participated in the constitutional violations described herein. Plaintiff will amend to substitute their true names when ascertained.

\end{paras}

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% JURISDICTION AND VENUE

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\section\*{JURISDICTION AND VENUE}

\begin{paras}

\item This Court has subject matter jurisdiction under

28 U.S.C.\sect\ 1331 (federal question) and 28 U.S.C.\

\sect\ 1343(a)(3) (civil rights). The claims arise under

42 U.S.C.\sect\ 1983 and the First, Fourth, and Fourteenth

Amendments to the United States Constitution.

\item Venue is proper in the Portland Division under

28 U.S.C.\sect\ 1391(b) because all events giving rise to

Plaintiff's claims occurred in Washington County, Oregon, within this

district and division.

\item The applicable statute of limitations is Oregon's two-year

personal injury statute, ORS 12.110(1), as applied to \sect\ 1983

claims. \textit{Wilson v. Garcia}, 471 U.S.\ 261 (1985). The

earliest accruing claim---false arrest under Count I---accrued no

earlier than September 18, 2024. \textit{Wallace v. Kato},  
549 U.S. 384, 388 (2007). Each remaining claim accrued later: the  
unlawful home entry claim (Count II) accrued May 10, 2025; the  
continued-seizure claim (Count III) alleges an ongoing violation  
continuing to the present; the First Amendment retaliation and Equal  
Protection claims (Counts IV--V) accrued no earlier than September 19,  
2025 (the Mendes Denial). Every claim in this Complaint is timely  
filed within two years of accrual.  
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% STATEMENT OF FACTS

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\section\*{STATEMENT OF FACTS}

\subsection\*{Background}

\begin{paras}

\item Plaintiff Ashle' Penn is a Washington County resident and  
community advocate. At all times relevant to this Complaint, Penn had  
no criminal conviction. She is the subject of criminal cases  
24CR27775 and 24CR49043, contempt proceeding 25CN05790, and juvenile  
dependency proceeding 25JU04261---all arising from the conduct of  
Defendants described herein.

\item At all relevant times, each Defendant acted under color of state  
law within the meaning of 42 U.S.C. \sect 1983.

\end{paras}

\subsection\*{The Misidentification Arrest --- September 18, 2024}

\begin{paras}

\item On September 18, 2024, at approximately 9:42 p.m., Washington

County Sheriff's Office Deputy Rambin arrested Plaintiff Ashle' Penn.

The arrest was made before the underlying investigation by Officer

Orozco had concluded.

\item Rambin's probable cause affidavit attributed the conduct at

issue---specifically, tag removal---to Plaintiff Penn. This

attribution was contradicted by at least three contemporaneous incident

reports documenting the same event.

\item No valid judicial arrest warrant had been issued for Plaintiff at

the time of the arrest. The arrest was warrantless.

\item On December 27, 2024, Rambin filed a supplemental report

acknowledging that the original attribution may have been a

misidentification.

\item In the same December 27, 2024 supplemental report, Rambin

directed further evidence gathering concerning Plaintiff---after the

arrest had already occurred and after the grand jury presentation was

already scheduled.

\item Rambin's December 27, 2024 misidentification acknowledgment

predates the January 14, 2025 grand jury presentation. The

acknowledgment was not disclosed to the grand jury.

As a direct result of the warrantless arrest without probable cause, Plaintiff was seized and subjected to ongoing criminal prosecution in case 24CR49043, suffering deprivation of liberty, emotional distress, reputational harm, and financial loss.

*The Defective Grand Jury --- January 14, 2025*

On January 14, 2025, a Washington County grand jury returned a true bill in case 24CR49043.

No valid Presiding Judge Order authorizing the grand jury's existence was in effect on January 14, 2025. Presiding Judge Order 325 expired on or about January 3, 2025. Presiding Judge Order 350 did not take effect until on or about January 31, 2025.

          , a Washington County court administrator, confirmed this 28-day gap in writing.

A grand jury operating without a valid presiding judge order is not a lawfully constituted grand jury under Oregon law.

*State v. Lawrence*, 12 Or. 297 (1885). A true bill returned by such a grand jury is void *ab initio* and confers no subject matter jurisdiction on the Washington County Circuit Court.

Witness            ("Baker") provided testimony before the grand jury. Baker's testimony materially contradicted

Deputy Rambin's sworn probable cause affidavit. Deputy District Attorney Gerten was responsible for presenting the matter to the grand jury and was aware of Baker's testimony and its conflict with Rambin's affidavit. Gerten failed to correct the false or misleading impression created by the conflicting testimony, in violation of the due process principle established in *Napue v. Illinois*, 360 U.S. 264, 269 (1959).

The grand jury recording was provided to Plaintiff's then-counsel Anna Lasher. Plaintiff requested her complete client file from Lasher; Lasher stated the file would be produced within two weeks and never produced it. Plaintiff intends to file a bar complaint regarding Lasher's failure to produce the client file. As a result, Plaintiff has been denied access to the grand jury record to which she is entitled.

Because the January 14, 2025 indictment was returned by a grand jury without lawful authority to sit, it is void. The Washington County Circuit Court has not acquired subject matter jurisdiction over case 24CR49043.

The Administrative Order and Unlawful Home Entry ---  
May 10, 2025

In approximately November 2024, Washington County Community

Corrections Officer            Rolfe made a single attempt to contact a Washington County official regarding Plaintiff's alleged release violation and made no subsequent contact attempt.

¶ On the basis of Rolfe's single-contact attempt, an administrative Order of Arrest was issued under ORS 144.350---not a judicial arrest warrant. The order recited that Officer Rolfe was "unavailable" as the predicate for administrative issuance. Rolfe's Community Corrections position was subsequently eliminated through a layoff. Washington County Community Corrections staffing and layoff records are the only evidence capable of verifying the "unavailable" recital in the administrative order.

¶ The administrative Order of Arrest was entered into the Law Enforcement Data System (LEDS) as a "felony warrant." This characterization was materially inaccurate. An administrative order of arrest under ORS 144.350 is not a judicial warrant within the meaning of the Fourth Amendment.

¶ On May 10, 2025, Washington County Community Corrections Officers Does 1--4, acting under the direction of Defendant Bineham, entered Plaintiff's home. Plaintiff was on pretrial security release pursuant to ORS 135.265 and was not subject to post-conviction supervision conditions. She retained full Fourth Amendment rights against warrantless home entry. No valid judicial arrest warrant

authorized entry into Plaintiff's home.

\item \textit{Payton v. New York}, 445 U.S. 573, 576 (1980), requires a judicial arrest warrant---not an administrative order---to enter a home to effect an arrest. An administrative order of arrest under ORS 144.350 does not satisfy \textit{Payton}'s warrant requirement. The May 10, 2025 entry into Plaintiff's home was unconstitutional.

\item The contact observed during the May 10, 2025 unlawful home entry became the sole factual predicate for the contempt proceeding subsequently filed against Plaintiff on December 30, 2025.

\textit{See infra} paragraphs 40--47.  
\end{paras}

\subsection\*{DDA Gerten's Post-Arrest Investigatory Directive}

\begin{paras}

\item Following the May 10, 2025 entry and arrest, Deputy District Attorney Gerten directed Deputy Rambin to review the incident to determine whether Plaintiff had violated the terms of her release agreement.

\item This directive is documented in Rambin's own written report, which discloses that the District Attorney's office requested that Rambin review the May 10, 2025 incident and that Rambin complied with that request.

\item Directing a law enforcement officer to conduct a post-arrest investigation to build an evidentiary record for potential prosecution is an investigatory function, not an advocacy function.

\textit{Buckley v. Fitzsimmons}, 509 U.S. 259, 273 (1993).

Absolute prosecutorial immunity does not attach to this conduct.

\item At the time Gerten issued this directive, she was aware that:

(a) the September 18, 2024 arrest had been made on a probable cause affidavit contradicted by three contemporaneous reports; (b) Ramin's December 2024 supplemental acknowledged misidentification; and (c) the May 10, 2025 entry had been made pursuant to an administrative order, not a judicial warrant. Gerten's investigatory directive to continue building the evidentiary case, under these circumstances, continued and compounded the unlawful seizure of Plaintiff without lawful basis.

\end{paras}

\subsection\*{The Ex Parte Contempt Proceeding ---

May Through December 2025}

\begin{paras}

\item On or about May 10, 2025---the same day as the unlawful home entry---Deputy District Attorney Clark sent an ex parte email to Judge James C. Thompson.

\item Without any motion pending before the court and without notice to Plaintiff, Judge Thompson directed the Washington County release office to seek a violation report against Plaintiff.

Item Thompson's direction to the release office---an administrative agency---to initiate enforcement proceedings against Plaintiff, based on an ex parte communication and outside any adversarial proceeding with no motion before the court, is an administrative act, not a judicial act. *Forrester v. White*, 484 U.S. 219, 228 (1988). Absolute judicial immunity does not attach.

Item On May 13, 2025---three days after the unlawful home entry---Deputy District Attorney Jade Sawyer (OSB #250555) filed a Complaint for Imposition of Punitive Sanctions, Contempt---Violation of Release Agreement, in case 25CN02140, against Barry Trenell Washington, alleging contact with Plaintiff on May 10, 2025. The contact alleged was the contact observed during the unlawful home entry.

Item In June 2025, the court held a show cause hearing in case 25CN02140. Plaintiff received no notice of that hearing. Court notices concerning Plaintiff were sent to a residential address Plaintiff had not occupied for approximately ten years, and separately to the Office of Public Defense Commission in Salem, Oregon---an entity listed as Plaintiff's counsel of record as an administrative placeholder. Plaintiff never retained, requested, or was lawfully appointed OPDC as counsel. At all relevant times, Plaintiff was unrepresented.

\item On December 30, 2025---more than seven months after the alleged May 10, 2025 conduct---the State initiated the contempt proceeding against Plaintiff in case 25CN05790, predicated on the same contact observed during the May 10, 2025 unlawful home entry.

\item The contempt proceeding lacked a legally valid statutory predicate. Plaintiff was subject to a security release pursuant to ORS 135.265. Oregon Revised Statute 135.290 bars a contempt proceeding predicated on conduct during a security release. The contempt proceeding was void on its face.

\item Due process requires notice reasonably calculated, under all the circumstances, to apprise interested parties of the pendency of proceedings affecting their rights. \textit{Mullane v. \ Central

Hanover Bank \& Trust Co.}, 339 U.S.\ 306, 314 (1950). Washington County's court notification system directed notices concerning Plaintiff to a decade-old address and to an administrative placeholder entity Plaintiff never retained---while Plaintiff's actual, current address appeared in the court's own release documents. Proceedings affecting Plaintiff's liberty and her defense advanced without notice reasonably calculated to reach her.

\item On June 10, 2025, Washington County employee Stiefer authored an email documenting the Clark-to-Thompson ex parte communication chain. The state withheld this email chain from Plaintiff in violation of

\textit{Brady v. Maryland}, 373 U.S. 83, 87 (1963).

On December 29, 2025, bail revocation and an arrest warrant were issued. The warrant affidavit contained material defects, including altered contact information. Compounding warrants arising from the void contempt proceeding have restricted Plaintiff's liberty across all pending cases.

The warrant---the downstream product of the May 10, 2025 unlawful home entry and the void contempt proceeding---has been invoked in juvenile dependency proceeding 25JU04261 to justify Plaintiff's continued separation from her minor daughter. The Fourteenth Amendment protects a parent's liberty interest in the care, custody, and companionship of her child. \textit{Troxel v. Granville}, 530 U.S. 57, 65 (2000); \textit{Santosky v. Kramer}, 455 U.S. 745, 753 (1982). Plaintiff's separation from her daughter, sustained by the tainted warrant, constitutes ongoing harm proximately caused by the constitutional violations alleged herein. Plaintiff's claims against the Oregon Department of Human Services and its employees arising from the dependency proceeding are reserved for a separate action; the family separation is pled here as harm proximately caused by Defendants' conduct.

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\subsection\*{Records Suppression and Association-Based Targeting ---  
2025 Through 2026}

\begin{paras}

\item Beginning May 15, 2025, Plaintiff submitted multiple public records requests to Washington County (including Request Nos.\ C008202 and C008691) seeking records regarding Officer Rolfe's communications with County officials and records regarding Community Corrections staffing and layoffs, which are necessary to verify the ``Rolfe unavailable" recital in the administrative Order of Arrest.

\item Washington County imposed substantial fees on Plaintiff's records requests, including a fee of \ \$7,846.60 on the staffing and layoff records request (Request No.\ C008691, August 23, 2025), notwithstanding an existing indigency finding in Plaintiff's criminal proceedings.

\item On September 19, 2025, Washington County official Mendes denied Plaintiff's fee waiver request (the ``Mendes Denial"). The Mendes Denial stated as its basis that the County had evidence of Plaintiff's associations and her intended use of the records. The Mendes Denial is a written government admission that Washington County reviewed the content and purpose of Plaintiff's advocacy---including her associational identity---before denying access to public records.

\item The use of law enforcement intelligence data concerning a person's associational activities in making administrative fee determinations violates ORS 181A.250, which prohibits law enforcement

agencies from collecting and using intelligence information against individuals on the basis of their exercise of constitutional rights and prohibits dissemination of such information to other agencies.

\item Plaintiff submitted additional court records waiver requests; fee waivers were denied in four instances despite an indigency finding.

As of March 27, 2026, Washington County official Johnston had provided zero response to outstanding requests, constituting constructive denial under ORS 192.329.

\item The Mendes Denial and related fee impositions have prevented Plaintiff from accessing the Community Corrections staffing and layoff records that would allow her to verify or refute the ``Rolfe unavailable" recital---the stated predicate for the void administrative Order of Arrest and the May 10, 2025 unlawful home entry and arrest.

\end{paras}

\subsection\*{Refusal to Rule on Demurrer and Imminent Trial}

\begin{paras}

\item Plaintiff filed a demurrer in case 24CR49043 challenging the indictment on multiple grounds, including the defective grand jury empanelment described in paragraphs 24--29. The Washington County Circuit Court has refused to rule on the demurrer and has acted as if the motion does not exist, in violation of ORS 1.050.

\item The court's refusal to rule on a pending demurrer challenging its

own subject matter jurisdiction confirms that the state proceeding will not self-correct the constitutional violations described herein and that Plaintiff has no adequate remedy at law in state court.

\item Trial in case 24CR49043 is currently scheduled for July 17--18,

1. Plaintiff faces imminent prosecution under a void indictment, with no ruling on her pending challenge to the court's jurisdiction.  
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% CLAIMS FOR RELIEF

% =====

\section\*{CLAIMS FOR RELIEF}

% — COUNT I —————

\subsection\*{COUNT I}

\subsubsection\*{Fourth Amendment --- False Arrest\}

42 U.S.C.\sect\ 1983\\

(Against Defendants Rambin and Washington County))  
\begin{paras}

\item Plaintiff realleges and incorporates paragraphs 1 through 55.

\item The Fourth Amendment guarantees the right to be free from arrest without probable cause. \textit{Dunaway v.\ New York},

442 U.S.\ 200, 208 (1979). A warrantless arrest is per se

unreasonable unless supported by probable cause at the moment of arrest.

\item On September 18, 2024, Defendant Rambin arrested Plaintiff without a warrant and without probable cause. Rambin's probable cause affidavit attributed tag removal to Plaintiff---a conclusion contradicted by three contemporaneous reports. The arrest was made before the underlying investigation concluded. Rambin's own December 27, 2024 supplemental report acknowledged the misidentification, establishing that probable cause did not exist at the moment of arrest.

\item The right to be free from warrantless arrest without probable cause was clearly established as of September 18, 2024, by controlling authority any reasonable officer would have known.

\textit{Dunaway v. New York}, 442 U.S. 200 (1979);  
\textit{Beck v. Ohio}, 379 U.S. 89, 91 (1964). No reasonable officer could have believed probable cause existed to arrest a suspect for conduct that three contemporaneous reports attributed to a different person, before the underlying investigation had concluded. Rambin is not entitled to qualified immunity.

\item Defendant Washington County is liable under \textit{Monell v. Dep't of Soc. Servs.}, 436 U.S. 658 (1978). The County maintained a custom or practice, so persistent and well-settled as to have the force of law, of authorizing arrests based on relay-chain probable cause determinations without requiring the arresting officer

to independently verify the underlying factual basis. This custom is evidenced by, without limitation: (a) Rambin's September 18, 2024 arrest of Plaintiff at 9:42 p.m., before the investigating officer completed the underlying store investigation at approximately 10:00 p.m.; (b) the December 29, 2025 warrant affidavit, in which Rambin's own inference traveled through multiple County officials and returned to Rambin presented as independent multi-agency corroboration, with no intermediary adding independent observation; and (c) the May 10, 2025 home entry executed on an administrative order entered into LEDS as a "felony warrant." Each incident reflects the same practice: County officers acting on relayed conclusions without independent verification. This custom was the moving force behind Plaintiff's unlawful arrest.

*Pembaur v. City of Cincinnati*, 475 U.S. 469, 480 (1986).

As a direct and proximate result of Defendants' conduct, Plaintiff suffered deprivation of liberty, emotional distress, reputational harm, financial loss, and ongoing prosecution under a void indictment, in an amount to be proved at trial.

% — COUNT II —————

**COUNT II**

**Fourth Amendment --- Unlawful Home Entry**

42 U.S.C. \sect\ 1983\

(Against Defendants Does 1--4, Bineham, and Washington County)}  
\begin{paras}

\item Plaintiff realleges and incorporates paragraphs 1 through 55.

\item The Fourth Amendment prohibits warrantless, nonconsensual entry into a home to make an arrest. A judicial arrest warrant is required.

\textit{Payton v. \ New York}, 445 U.S.\ 573, 576 (1980). An

administrative order of arrest under ORS 144.350 does not constitute a judicial arrest warrant and does not satisfy \textit{Payton}.

\item On May 10, 2025, Defendants Does 1--4 and Bineham entered Plaintiff's home without a valid judicial warrant. The administrative Order of Arrest under ORS 144.350---misabeled in LEDS as a ``felony warrant"---did not authorize warrantless home entry. Plaintiff was on pretrial security release and retained full Fourth Amendment rights.

\item Defendant Bineham directed the entry. A supervisor who directs unconstitutional conduct by subordinates is personally liable under

42 U.S.C.\ \sect\ 1983. \textit{Starr v. \ Baca},

652 F.3d 1202, 1207 (9th Cir.\ 2011).

\item The right to be free from warrantless home entry to effect an arrest has been clearly established since \textit{Payton v. \ New

York}, 445 U.S.\ 573 (1980), and \textit{Steagald v. \ United States},

451 U.S.\ 204, 211--12 (1981). Every reasonable officer as of

May 10, 2025, would have known that an administrative order of

arrest---issued by a corrections official, not a judicial officer, on a ``reasonable grounds" standard rather than a probable cause determination by a neutral magistrate---is not a judicial arrest warrant and does not authorize entry into a home. No exigent circumstances existed; any exigency arising after Plaintiff asked the officers to leave was officer-created and cannot justify the entry. \textit{Kentucky v. King}, 563 U.S. 452, 462 (2011). Defendants are not entitled to qualified immunity.

\item Defendant Washington County is liable under \textit{Monell} for failing to train and supervise Community Corrections officers on the constitutional distinction between administrative orders of arrest and judicial arrest warrants under \textit{Payton}.

\textit{City of Canton v. Harris}, 489 U.S. 378, 388 (1989).

\item As a direct and proximate result of the unlawful home entry, Plaintiff was arrested, subjected to the void contempt proceeding, and suffered ongoing deprivation of liberty, emotional distress, legal harm, and separation from her minor daughter sustained by the warrant that is the downstream product of the entry, in an amount to be proved at trial.

\end{paras}

% — COUNT III —————

\subsection\*{COUNT III}

\subsubsection\*{Fourth Amendment --- Unlawful Continued Seizure via  
Materially False Affidavit\\

42 U.S.C.\sect\ 1983\\

(Against Defendants Ramin and Gerten))

\begin{enumerate}

\item Plaintiff realleges and incorporates paragraphs 1 through 55.

\item The Fourth Amendment governs unlawful pretrial detention and  
continued seizure effected through materially false affidavits.

\textit{Manuel v.\ City of Joliet}, 580 U.S.\ 357, 364 (2017). A

law enforcement officer who submits or maintains a materially false  
affidavit to prolong a seizure violates the Fourth Amendment.

\textit{Hervey v.\ Estes}, 65 F.3d 784, 788 (9th Cir.\ 1995).

\item Defendant Ramin's probable cause affidavit contained materially  
false statements attributing conduct to Plaintiff that three  
contemporaneous reports contradicted. Ramin's December 2024  
supplemental report establishes that Ramin knew or recklessly  
disregarded the inaccuracy. Despite this knowledge, prosecution on  
the basis of the affidavit continued, prolonging Plaintiff's seizure  
from September 18, 2024, through the present.

\item Defendant Gerten, acting in her investigatory capacity, directed  
Deputy Ramin to conduct a post-arrest investigation of the May 10,  
2025 incident to develop an evidentiary basis for a release agreement  
violation---after knowing the original arrest was based on a defective

probable cause affidavit. *Buckley v. Fitzsimmons*,  
509 U.S. 259, 273 (1993). This investigatory directive continued and  
compounded the unlawful seizure of Plaintiff without lawful basis.

Item Gerten additionally knew that Baker's grand jury testimony  
materially contradicted Rambin's sworn probable cause affidavit and  
failed to correct the false or misleading record before the grand  
jury, in violation of *Napue v. Illinois*,  
360 U.S. 264, 269 (1959). This failure allowed prosecution---and  
with it, Plaintiff's continued seizure---to proceed on a false factual  
foundation.

Item As a direct and proximate result of Defendants' conduct,  
Plaintiff has been continuously and unlawfully seized since  
September 18, 2024, suffering deprivation of liberty, emotional  
distress, and ongoing legal harm, in an amount to be proved at trial.

% — COUNT IV —————

*subsection\*{COUNT IV}*

*subsubsection\*{First Amendment --- Retaliation and Right to Petition}*

42 U.S.C. *sect* 1983

(Against Defendants Washington County and Does 5--10)

*begin{enumerate}*

Item Plaintiff realleges and incorporates paragraphs 1 through 55.

Item The First Amendment protects the right to petition the

government for redress of grievances and to seek access to government information free from viewpoint-based discrimination.

*BE&K Constr. Co. v. NLRB*, 536 U.S. 516, 524 (2002);

*Mendocino Envtl. Ctr. v. Mendocino County*,

192 F.3d 1283, 1300 (9th Cir. 1999).

Item Plaintiff exercised protected First Amendment rights by making public records requests seeking records relevant to the legality of her arrest and prosecution; engaging in community advocacy; and filing court motions challenging official conduct, including the demurrer in case 24CR49043.

Item Washington County, acting through its officials including Mendes and Does 5--10, retaliated against Plaintiff's exercise of First Amendment rights by: (a) denying fee waivers based on the County's evidence of Plaintiff's associations and intended use (Mendes Denial, September 19, 2025); (b) using ORS 181A.250-prohibited law enforcement intelligence concerning Plaintiff's associations to inform administrative fee determinations; (c) imposing a fee of \$7,846.60 designed to prevent Plaintiff from accessing records material to her defense; and (d) failing to respond to records requests constituting constructive denial.

Item The Mendes Denial is direct documentary evidence of viewpoint-based government action: it states on its face that denial

is grounded in evidence of Plaintiff's associations and intended use of the records---not in the technical scope of the request. This is content- and viewpoint-based government action.

\item Washington County's conduct would chill a person of ordinary firmness from continuing to exercise First Amendment rights to petition and to access government information.

\item As a direct and proximate result of Defendants' retaliatory conduct, Plaintiff has been denied records necessary to her defense, chilled in the exercise of constitutional rights, and suffered harm in an amount to be proved at trial.

\end{enumerate}

% — COUNT V —————

\subsection\*{COUNT V}

\subsubsection\*{Fourteenth Amendment --- Equal Protection\

Class of One / Association-Based Targeting\\

42 U.S.C.\ \sect\ 1983\\

(Against Defendants Washington County and Does 5--10)}

\begin{enumerate}

\item Plaintiff realleges and incorporates paragraphs 1 through 55.

\item The Equal Protection Clause of the Fourteenth Amendment prohibits government entities from intentionally treating an individual differently from similarly situated persons without rational basis. \textit{Village of Willowbrook v.\ Olech},

528 U.S.\ 562, 564 (2000).

\item Washington County intentionally treated Plaintiff differently from similarly situated individuals in the processing of public records fee waivers. The Mendes Denial establishes that Plaintiff was treated differently because of her associations and her intended use of the records---grounds bearing no rational relationship to any legitimate government interest in public records administration.

\item ORS 181A.250 prohibits law enforcement agencies from maintaining and disseminating intelligence files based on individuals' exercise of constitutional rights. Washington County's use of such intelligence in administrative fee decisions confirms that Plaintiff's differential treatment was motivated by her identity and advocacy, not by any content-neutral criterion.

\item As a direct and proximate result of Washington County's differential treatment, Plaintiff has been denied equal access to public records and has suffered harm in an amount to be proved at trial.

\end{enumerate}

% — COUNT VI —————

\subsection\*{COUNT VI}

\subsubsection\*{Monell --- Municipal Liability\}

42 U.S.C.\ \sect\ 1983\

(Against Defendant Washington County)}

\begin{enumerate}

\item Plaintiff realleges and incorporates paragraphs 1 through 55.

\item Defendant Washington County is liable for the constitutional violations described in this Complaint under \textit{Monell

v.\ Dep't of Soc.\ Servs.}, 436 U.S.\ 658 (1978), on three independent grounds.

\item \textbf{Leg 1 --- Relay-Chain Probable Cause Custom:}

Washington County maintained a custom or practice under which law enforcement officers effected felony arrests based on relay-chain probable cause reports, without requiring the arresting officer to independently verify the underlying factual basis. Plaintiff's September 18, 2024 arrest---made on an affidavit contradicted by three contemporaneous reports, before the investigation concluded---was carried out pursuant to this custom. This custom was the moving force behind the violation of Plaintiff's Fourth Amendment rights.

\item \textbf{Leg 2 --- Association-Based Records Suppression

Custom:} Washington County maintained a custom or practice of using law enforcement intelligence data gathered concerning individuals' associational activities and advocacy to direct administrative decisions, including public records fee determinations. The Mendes Denial (September 19, 2025) is direct documentary evidence of this

custom---it states on its face that the fee denial was based on County evidence of Plaintiff's associations and intended use. This custom, operating through ORS 181A.250-prohibited intelligence sharing, was the moving force behind violations of Plaintiff's First and Fourteenth Amendment rights.

\item \textbf{Leg 3 --- Failure to Train:} Washington County failed to train Community Corrections officers on the constitutional distinction between administrative orders of arrest under ORS 144.350 and judicial arrest warrants satisfying \textit{Payton v. New York}, resulting in the unlawful May 10, 2025 home entry and arrest.

\textit{City of Canton v. Harris}, 489 U.S. 378, 388 (1989).

\item As a direct and proximate result of Washington County's customs, practices, and failures to train, Plaintiff suffered the constitutional violations described in each Count above, in amounts to be proved at trial.

\end{enumerate}

% --- COUNT VII -----

\subsection\*{COUNT VII}

\subsubsection\*{Fourteenth Amendment --- Procedural Due Process\

Ex Parte Initiation of Punitive Proceedings Without Notice\

42 U.S.C. \S1983\

(Against Defendants Thompson and Clark, Individually)}

\begin{enumerate}

\item Plaintiff realleges and incorporates paragraphs 1 through 55 and paragraphs 42 through 50 as if fully set forth herein.

\item The Fourteenth Amendment prohibits the government from depriving any person of liberty without due process of law. The minimum requirements of procedural due process are notice and an opportunity to be heard at a meaningful time and in a meaningful manner.

\textit{Mathews v. Eldridge}, 424 U.S. 319, 333 (1976). Due process requires notice reasonably calculated, under all the circumstances, to apprise interested parties of the pendency of proceedings affecting their rights and to afford them an opportunity to present their objections. \textit{Mullane v. Central Hanover

Bank & Trust Co.}, 339 U.S. 306, 314 (1950).

\item On May 10, 2025, Defendant Clark---acting in her capacity as a Washington County Community Corrections supervisor, outside any pending adversarial proceeding, and without any motion before the court---sent an ex parte email to Defendant Judge James C. Thompson.

The content of that communication caused Thompson to act against Plaintiff's liberty interests without any notice to Plaintiff and without any opportunity for Plaintiff to be heard.

\item Upon receiving Clark's ex parte communication, Defendant Thompson---without any motion pending before the court, without notice to Plaintiff, and without affording Plaintiff any opportunity to

respond---directed the Washington County release office to seek a violation report against Plaintiff. This directive set in motion the contempt proceeding that ultimately resulted in case 25CN05790, filed December 30, 2025, which directly threatens Plaintiff's liberty.

\item Clark's initiation of the ex parte communication, and Thompson's direction to the release office based on that communication, are administrative acts, not judicial or advocacy acts.

Under the functional test for judicial immunity, an act is judicial only if it is (1) a function normally performed by a judge, and (2) the parties dealt with the judge in his judicial capacity.

\textit{Stump v. Sparkman}, 435 U.S. 349, 362 (1978);

\textit{Bliven v. Hunt}, 579 F.3d 204, 212 (2d Cir. 2009).

Directing an administrative agency to initiate enforcement proceedings against a litigant---based on an ex parte communication, outside any adversarial proceeding, with no motion pending---is not a function normally performed by a judge in his judicial capacity.

\textit{Forrester v. White}, 484 U.S. 219, 228 (1988). Absolute judicial immunity does not attach to Thompson's conduct.

\item Defendant Clark is a Community Corrections supervisor with no prosecutorial role. She is therefore entitled to qualified immunity only. Clark's qualified immunity is defeated because the right to notice and an opportunity to be heard before a criminal proceeding is

modified was clearly established at the time of her conduct.

\textit{Mullane v. Central Hanover Bank & Trust Co.},

339 U.S. 306 (1950); \textit{Mathews v. Eldridge},

424 U.S. 319 (1976). No reasonable official in Clark's position

could have believed that transmitting an ex parte communication to a

sitting judge---without notice to the affected party---was

constitutionally permissible.

\item The ex parte contempt chain was compounded by Washington

County's court notification system, which directed all notices to

Plaintiff to a residential address she had not occupied for

approximately ten years and to an administrative placeholder entity

she never retained---while Plaintiff's actual, current address

appeared in the court's own release documents. Plaintiff received no

notice of the June 2025 show cause hearing in case 25CN02140.

Proceedings affecting Plaintiff's liberty advanced entirely without

notice reasonably calculated to reach her.

\textit{Mullane}, 339 U.S. at 314.

\item The contempt proceeding initiated through this ex parte chain

lacked a legally valid statutory predicate. Plaintiff was subject to

a security release pursuant to ORS 135.265. ORS 135.290 bars a

contempt proceeding predicated on conduct during a security release.

The proceeding was void on its face---a fact that Thompson, as the

presiding judge, and Clark, as the initiating supervisor, either knew or were deliberately indifferent to.

\item On June 10, 2025, Washington County employee Stiefer authored an email documenting the Clark-to-Thompson ex parte communication chain. The state withheld this email chain from Plaintiff in violation of \textit{Brady v. Maryland}, 373 U.S. 83, 87 (1963).

The withholding of this documentation---which is direct evidence of the due process violation alleged in this Count---further deprived Plaintiff of her ability to challenge the proceedings affecting her liberty.

\item As a direct and proximate result of Defendants Thompson's and Clark's conduct, Plaintiff was subjected to a void contempt proceeding, suffered deprivation of liberty, emotional distress, reputational harm, and ongoing legal harm, in an amount to be proved at trial.

\end{enumerate}

% — COUNT VIII —————

\subsection\*{COUNT VIII}

\subsubsection\*{Fourteenth Amendment --- Substantive and Procedural

Due Process\\

Knowing Use of False Grand Jury Testimony and Suppression of

Exculpatory Evidence\\

42 U.S.C. \sect\ 1983\

(Against Defendant Gerten, Individually)}

\begin{enumerate}

\item Plaintiff realleges and incorporates paragraphs 1 through 55  
and paragraphs 26 through 31 as if fully set forth herein.

\item The Fourteenth Amendment's Due Process Clause prohibits the  
government from obtaining or maintaining a criminal prosecution  
through the knowing use of false or misleading evidence.

\textit{Napue v. \ Illinois}, 360 U.S.\ 264, 269 (1959) ("[T]he same  
result obtains when the State, although not soliciting false evidence,  
allows it to go uncorrected when it appears."). The government's  
knowing use of false testimony---or its failure to correct testimony  
it knows to be false---violates due process regardless of whether the  
testimony was technically elicited by the prosecutor. \textit{Id.}

\item The Fourteenth Amendment's Due Process Clause additionally  
requires the prosecution to disclose material exculpatory evidence to  
the defense. \textit{Brady v. \ Maryland}, 373 U.S.\ 83, 87 (1963).

Evidence is material if there is a reasonable probability that, had  
the evidence been disclosed, the result of the proceeding would have  
been different. \textit{United States v. \ Bagley},  
473 U.S.\ 667, 682 (1985).

\item On January 14, 2025, a Washington County grand jury returned a

true bill in case 24CR49043. Defendant Gerten was the presenting prosecutor responsible for presenting the matter to the grand jury.

Item Witness Baker provided testimony before the grand jury. Baker's testimony materially contradicted Deputy David Rambin's sworn probable cause affidavit---the affidavit that formed the basis for Plaintiff's September 18, 2024 arrest and continued prosecution. The contradiction was not peripheral; it went to the core factual predicate of the charge: the identification of Plaintiff as the person responsible for the conduct alleged.

Item Defendant Gerten knew of the contradiction between Baker's testimony and Rambin's affidavit at the time of the grand jury presentation. Specifically: (a) Gerten was present during Baker's testimony before the grand jury; (b) Gerten had access to Rambin's probable cause affidavit as the presenting prosecutor---it was the foundational document of the prosecution she was presenting; and (c) the contradiction between Baker's account and Rambin's affidavit was apparent on the face of the two documents. No reasonable prosecutor reviewing both documents could have failed to recognize the conflict.

Item Despite this knowledge, Gerten failed to correct the false or misleading impression created by Baker's testimony before the grand jury returned its true bill. This failure allowed the indictment to

issue on a false factual foundation, in violation of

\textit{Napue v. Illinois}, 360 U.S. 264, 269 (1959). The

indictment---and with it, Plaintiff's continued prosecution and

deprivation of liberty---rests on a grand jury record that Gerten

knew was materially false and misleading.

\item Gerten's failure to correct Baker's contradictory testimony is

an investigatory act, not an advocacy act. The duty to ensure the

accuracy of evidence presented to a grand jury---and to correct known

false impressions---arises before the initiation of formal adversarial

proceedings and is part of the investigatory function.

\textit{Buckley v. Fitzsimmons}, 509 U.S. 259, 273 (1993).

Absolute prosecutorial immunity does not attach to this conduct.

\item Separately, the June 10, 2025 Stiefer email documenting the

Clark-to-Thompson ex parte communication chain constitutes material

exculpatory evidence under \textit{Brady v. Maryland},

373 U.S. 83, 87 (1963): it is direct evidence of the

unconstitutional ex parte initiation of the contempt proceeding

against Plaintiff, and its disclosure would create a reasonable

probability of a different outcome in the contempt proceedings and in

the underlying criminal case. The state withheld this email chain

from Plaintiff. Gerten, as the supervising prosecutor responsible for

the prosecution of Plaintiff, was responsible for the disclosure

obligations owed to Plaintiff under *Brady*. The withholding of the Stiefer email constitutes a *Brady* violation.

The right to be free from prosecution maintained through knowingly false grand jury testimony was clearly established as of January 14, 2025. *Napue v. Illinois*, 360 U.S. 264 (1959); *Giglio v. United States*, 405 U.S. 150 (1972).

The right to disclosure of material exculpatory evidence was clearly established as of June 10, 2025. *Brady v. Maryland*, 373 U.S. 83 (1963); *United States v. Bagley*, 473 U.S. 667 (1985). No reasonable prosecutor could have believed that knowingly allowing materially false testimony to stand uncorrected before a grand jury, or withholding direct evidence of an unconstitutional ex parte proceeding, was consistent with the Fourteenth Amendment. Gerten is not entitled to qualified immunity.

As a direct and proximate result of Gerten's conduct, Plaintiff has been subjected to prosecution under an indictment issued on a false factual foundation, has been denied material exculpatory evidence, has suffered continuous deprivation of liberty from September 18, 2024 through the present, and has suffered emotional distress, reputational harm, and financial loss, in an amount to be proved at trial.

% =====

% PRAYER FOR RELIEF

% =====

\section\*{PRAYER FOR RELIEF}

\noindent WHEREFORE, Plaintiff Ashle' Penn respectfully requests that  
this Court enter judgment in her favor and against Defendants as  
follows:

\bigskip

\noindent \textbf{A.} \quad COMPENSATORY DAMAGES} against all  
Defendants, in amounts to be determined at trial, for: deprivation of  
liberty from September 18, 2024, to the present; emotional distress,  
anxiety, and psychological harm; reputational harm; financial losses  
incurred in defending against unlawful prosecution; and denial of  
access to public records and harm resulting therefrom.

\bigskip

\noindent \textbf{B.} \quad PUNITIVE DAMAGES} against individual  
Defendants Rambin, Does 1--4, Bineham, Gerten, Thompson, and Clark in  
amounts sufficient to deter future constitutional violations, based on  
Defendants' reckless or callous indifference to Plaintiff's clearly  
established constitutional rights. \textit{Smith v. Wade},  
461 U.S. 30, 56 (1983).

\bigskip

\noindent \textbf{C.\quad DECLARATORY RELIEF} pursuant to  
28 U.S.C.\ \S\ 2201--2202:

\begin{enumerate}[label=\arabic\*.,leftmargin=0.75in,  
itemsep=4pt,topsep=6pt]

\item A declaration that the January 14, 2025 indictment in Case  
No.\ 24CR49043 is void \textit{ab initio}, the grand jury having  
operated during a period---January 3 through January 31,  
2025---when no valid Presiding Judge Order authorized its existence;

\item A declaration that the Washington County Circuit Court has not  
acquired subject matter jurisdiction over Case No.\ 24CR49043 on  
the basis of the void January 14, 2025 indictment;

\item A declaration that Plaintiff's September 18, 2024 arrest  
violated the Fourth Amendment;

\item A declaration that the May 10, 2025 warrantless home entry and  
arrest violated the Fourth Amendment;

\item A declaration that Washington County's use of law enforcement  
intelligence data in public records fee determinations violated  
ORS 181A.250 and the First and Fourteenth Amendments.

\end{enumerate}

\bigskip

\noindent \textbf{D.\quad INJUNCTIVE RELIEF:}

\begin{enumerate}[label=\arabic\*.,leftmargin=0.75in,

itemsep=4pt,topsep=6pt]

\item An injunction barring Defendants from proceeding with prosecution of Plaintiff in Washington County Case No.\ 24CR49043 under the January 14, 2025 void indictment, pursuant to \textit{Ex parte Young}, 209 U.S.\ 123 (1908), as to official-capacity claims;

\item An injunction barring Washington County from using law enforcement intelligence data derived from Plaintiff's associational activities or exercise of constitutional rights in any administrative records or fee determination.

\end{enumerate}

\bigskip

\noindent \textbf{E.\quad ATTORNEY FEES AND COSTS} pursuant to 42 U.S.C.\ \sect\ 1988 and any other applicable statute.

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\noindent \textbf{F.\quad SUCH OTHER AND FURTHER RELIEF} as this Court deems just and proper.

% =====

% JURY DEMAND

% =====

\section\*{DEMAND FOR JURY TRIAL}

Plaintiff Ashle' Penn demands a jury trial on all issues so triable

pursuant to Rule 38 of the Federal Rules of Civil Procedure.

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\noindent Respectfully submitted,

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\noindent Dated: \underline{\hspace{2in}}

\bigskip\bigskip

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\textbf{ASHLE' PENN}\

Pro Se Plaintiff\

\underline{\hspace{2.5in}} \textit{[Address]}\

\underline{\hspace{2.5in}} \textit{[Phone]}\

\href{mailto:edify@pennandpenn.com}{edify@pennandpenn.com}

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\textbf{IN THE UNITED STATES DISTRICT COURT}\

\textbf{FOR THE DISTRICT OF OREGON}\

\textbf{PORTLAND DIVISION}

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ASHLE' PENN, & Case No.: \underline{\hspace{1.5in}}\}[4pt]

\hspace{0.3in}\textit{Plaintiff}, & \][4pt]

v. & \textbf{COMPLAINT FOR}\][4pt]

WASHINGTON COUNTY, OREGON; & \textbf{VIOLATION OF CIVIL RIGHTS}\][4pt]

DEPUTY DAVID RAMBIN; & \textbf{(42 U.S.C.\ \sect\ 1983)}\][4pt]

ALICIA GERTEN; & \][4pt]

JUDGE JAMES C.\ THOMPSON; & \textbf{JURY TRIAL DEMANDED}\][4pt]

MOLLY BINEHAM; & \][4pt]

SHEILA CLARK; & \][4pt]

DOES 1--10, & \[4pt]

\hspace{0.3in}\textit{Defendants}. & \\  
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% PRELIMINARY STATEMENT

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\section\*{PRELIMINARY STATEMENT}

\begin{paras}

\item This action arises from a coordinated pattern of constitutional

violations by Washington County officials against Plaintiff, AshLe'

Penn. Those violations began on September 18, 2024, when Washington

County deputies racially profiled Plaintiff and arrested her without a

warrant and without probable cause. They continue through the present

day, as Plaintiff remains subject to ongoing prosecution under a

charging instrument issued by a defectively constituted grand jury

operating without lawful authority.

\item Plaintiff brings this action pursuant to 42 U.S.C.\sect\ 1983

for violations of her rights under the First, Fourth, and Fourteenth

Amendments to the United States Constitution, seeking compensatory

damages, punitive damages against individual Defendants, declaratory

relief, and injunctive relief.

\item Younger abstention does not bar this action. This Court's intervention is warranted notwithstanding the pending state criminal proceeding in Washington County Case No.\ 24CR49043. \textit{Younger} is inapplicable on two independent grounds. \textit{See} \textit{Younger v.\ Harris}, 401 U.S.\ 37, 43--54 (1971) (establishing abstention doctrine and enumerating exceptions for void proceedings, bad faith, and inadequate state remedy).

\begin{subparas}

\item \textit{Younger} presupposes a state court proceeding conducted pursuant to lawful authority and subject matter jurisdiction. The indictment in Case No.\ 24CR49043 was returned by a grand jury on January 14, 2025, during a period when no valid Presiding Judge Order authorized the grand jury's existence---PJO 325 expired January 3, 2025; PJO 350 did not take effect until January 31, 2025. Court administration confirmed this gap in writing. Under \textit{State v.\ Lawrence}, 12 Or.\ 297 (1885), a grand jury operating without lawful authority cannot issue a valid true bill. The indictment is void \textit{ab initio}. The Washington County Circuit Court has not acquired subject matter jurisdiction over this matter, and there is no legitimate state proceeding to which this Court should defer. \textit{See} \textit{Kugler v.\ Helfant}, 421 U.S.\ 117, 124--25 (1975) (abstention inappropriate where state

court lacks jurisdiction over subject matter of proceeding).

\item In the alternative, the prosecution falls within

\textit{Younger}'s bad faith and harassment exception. The arrest

was made on a probable cause affidavit contradicted by three

contemporaneous reports. Prosecution continued after the arresting

officer admitted misidentification in writing. The prosecutor knew a

grand jury witness's testimony contradicted the sworn affidavit and

failed to correct it. The state circuit court has refused to rule on

Plaintiff's pending demurrer challenging its subject matter

jurisdiction, treating the motion as nonexistent in violation of

ORS 1.050. These facts establish prosecution maintained without hope

of a valid conviction. \textit{See} \textit{Dombrowski v. Pfister},

380 U.S. 479, 490 (1965) (bad faith exception applies where

prosecution is maintained as part of a plan to harass or to deter

exercise of constitutional rights, without hope of valid conviction).

\end{subparas}

\item As to Plaintiff's claims seeking damages, \textit{Younger}

abstention does not apply in any event. \textit{Deakins

v. Monaghan}, 484 U.S. 193, 201--04 (1988) (federal court must stay,

not dismiss, damages claims not cognizable in state forum).

\item Plaintiff's juvenile dependency proceeding (25JU04261) involves

distinct constitutional claims against different state actors and is

reserved for a separate federal action.

\end{paras}

% =====

% PARTIES

% =====

\section\*{PARTIES}

\begin{paras}

\item Plaintiff \textbf{ASHLE' PENN} is a resident of Washington

County, Oregon. She is self-represented in this action. At all times

relevant to this Complaint, Plaintiff was a private citizen with no

criminal conviction.

\item Defendant \textbf{WASHINGTON COUNTY, OREGON} is a municipal

corporation organized under Oregon law, operating the Washington County

Sheriff's Office (WCSO), Washington County Community Corrections

(WCCC), and the Washington County District Attorney's Office.

Washington County is a ``person" within the meaning of

42 U.S.C.\sect\ 1983. \textit{Monell v.\ Dep't of Soc.\ Servs.},

436 U.S.\ 658, 690 (1978).

\item Defendant \textbf{DEPUTY DAVID RAMBIN} (``Rambin") is or was at

all relevant times a deputy with the Washington County Sheriff's

Office. Rambin is sued in his individual capacity for acts taken under

color of state law.

\item Defendants \textbf{DOES 1--4} are Washington County Community Corrections officers who entered Plaintiff's home on May 10, 2025, identities currently unknown to Plaintiff. Plaintiff will amend this Complaint to substitute their true names when ascertained through discovery. Does 1--4 are sued in their individual capacities.

\item Defendant \textbf{MOLLY BINEHAM} ("Bineham") is or was at all relevant times an officer or supervisor with Washington County Community Corrections who directed the May 10, 2025 entry into Plaintiff's home. Bineham is sued in her individual capacity.

\item Defendant \textbf{ALICIA GERTEN} ("Gerten") is or was at all relevant times a Deputy District Attorney for Washington County. Gerten is sued in her individual capacity for investigatory acts only.

The specific conduct alleged---(a) directing Deputy Rambin to conduct a post-arrest investigation to determine whether Plaintiff violated her release agreement, documented in Rambin's own written report, and (b) failing to correct grand jury testimony Gerten knew contradicted the sworn probable cause affidavit---constitutes investigatory function, not advocacy, to which only qualified immunity attaches.

\textit{Buckley v. Fitzsimmons}, 509 U.S. 259, 273 (1993).

\item Defendant \textbf{JUDGE JAMES C. THOMPSON} ("Thompson") is or was at all relevant times a judge of the Washington County Circuit Court. Thompson is sued in his individual capacity for administrative

acts only. The specific conduct alleged---directing the Washington County release office to seek a violation report against Plaintiff based on an ex parte email communication, without any pending motion before the court and without notice to Plaintiff---is an administrative act, not a judicial act, to which absolute judicial immunity does not attach. \textit{Forrester v.\ White}, 484 U.S.\ 219, 228 (1988).

\item Defendant \textbf{SHEILA CLARK} ("Clark") is or was at all relevant times a supervisor employed by Washington County Community Corrections, acting under color of state law at all relevant times. Clark is sued in her individual capacity. As a Community Corrections supervisor, Clark exercises no prosecutorial function and is entitled to qualified immunity only.

\item Defendants \textbf{DOES 5--10} are persons whose identities are currently unknown to Plaintiff who participated in the constitutional violations described herein. Plaintiff will amend to substitute their true names when ascertained.

\end{paras}

% =====

% JURISDICTION AND VENUE

% =====

\section\*{JURISDICTION AND VENUE}

\begin{paras}

\item This Court has subject matter jurisdiction under 28 U.S.C.\sect\ 1331 (federal question) and 28 U.S.C.\sect\ 1343(a)(3) (civil rights). The claims arise under 42 U.S.C.\sect\ 1983 and the First, Fourth, and Fourteenth Amendments to the United States Constitution.

\item Venue is proper in the Portland Division under 28 U.S.C.\sect\ 1391(b) because all events giving rise to Plaintiff's claims occurred in Washington County, Oregon, within this district and division.

\item The applicable statute of limitations is Oregon's two-year personal injury statute, ORS 12.110(1), as applied to \sect\ 1983 claims. \textit{Wilson v. Garcia}, 471 U.S.\ 261 (1985). The earliest accruing claim---false arrest under Count I---accrued no earlier than September 18, 2024. \textit{Wallace v. Kato}, 549 U.S.\ 384, 388 (2007). Each remaining claim accrued later: the unlawful home entry claim (Count II) accrued May 10, 2025; the continued-seizure claim (Count III) alleges an ongoing violation continuing to the present; the First Amendment retaliation and Equal Protection claims (Counts IV--V) accrued no earlier than September 19, 2025 (the Mendes Denial). Every claim in this Complaint is timely filed within two years of accrual.

\end{paras}

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% STATEMENT OF FACTS

% =====

\section\*{STATEMENT OF FACTS}

\subsection\*{Background}

\begin{paras}

\item Plaintiff Ashle' Penn is a Washington County resident and community advocate. At all times relevant to this Complaint, Penn had no criminal conviction. She is the subject of criminal cases 24CR27775 and 24CR49043, contempt proceeding 25CN05790, and juvenile dependency proceeding 25JU04261---all arising from the conduct of Defendants described herein.

\item At all relevant times, each Defendant acted under color of state law within the meaning of 42 U.S.C.\sect\ 1983.

\subsection\*{The Misidentification Arrest --- September 18, 2024}

\begin{paras}

\item On September 18, 2024, at approximately 9:42 p.m., Washington County Sheriff's Office Deputy Rambin arrested Plaintiff Ashle' Penn. The arrest was made before the underlying investigation by Officer Orozco had concluded.

\item Rambin's probable cause affidavit attributed the conduct at issue---specifically, tag removal---to Plaintiff Penn. This

attribution was contradicted by at least three contemporaneous incident reports documenting the same event.

\item No valid judicial arrest warrant had been issued for Plaintiff at the time of the arrest. The arrest was warrantless.

\item On December 27, 2024, Rambin filed a supplemental report acknowledging that the original attribution may have been a misidentification.

\item In the same December 27, 2024 supplemental report, Rambin directed further evidence gathering concerning Plaintiff---after the arrest had already occurred and after the grand jury presentation was already scheduled.

\item Rambin's December 27, 2024 misidentification acknowledgment predates the January 14, 2025 grand jury presentation. The acknowledgment was not disclosed to the grand jury.

\item As a direct result of the warrantless arrest without probable cause, Plaintiff was seized and subjected to ongoing criminal prosecution in case 24CR49043, suffering deprivation of liberty, emotional distress, reputational harm, and financial loss.

\end{paras}

\subsection\*{The Defective Grand Jury --- January 14, 2025}

\begin{paras}

\item On January 14, 2025, a Washington County grand jury returned a

true bill in case 24CR49043.

\item No valid Presiding Judge Order authorizing the grand jury's existence was in effect on January 14, 2025. Presiding Judge Order 325 expired on or about January 3, 2025. Presiding Judge Order 350 did not take effect until on or about January 31, 2025.

\underline{\hspace{2in}}, a Washington County court administrator, confirmed this 28-day gap in writing.

\item A grand jury operating without a valid presiding judge order is not a lawfully constituted grand jury under Oregon law.

\textit{State v. Lawrence}, 12 Or. 297 (1885). A true bill returned by such a grand jury is void \textit{ab initio} and confers no subject matter jurisdiction on the Washington County Circuit Court.

\item Witness \underline{\hspace{2in}} ("Baker") provided testimony before the grand jury. Baker's testimony materially contradicted Deputy Rambin's sworn probable cause affidavit.